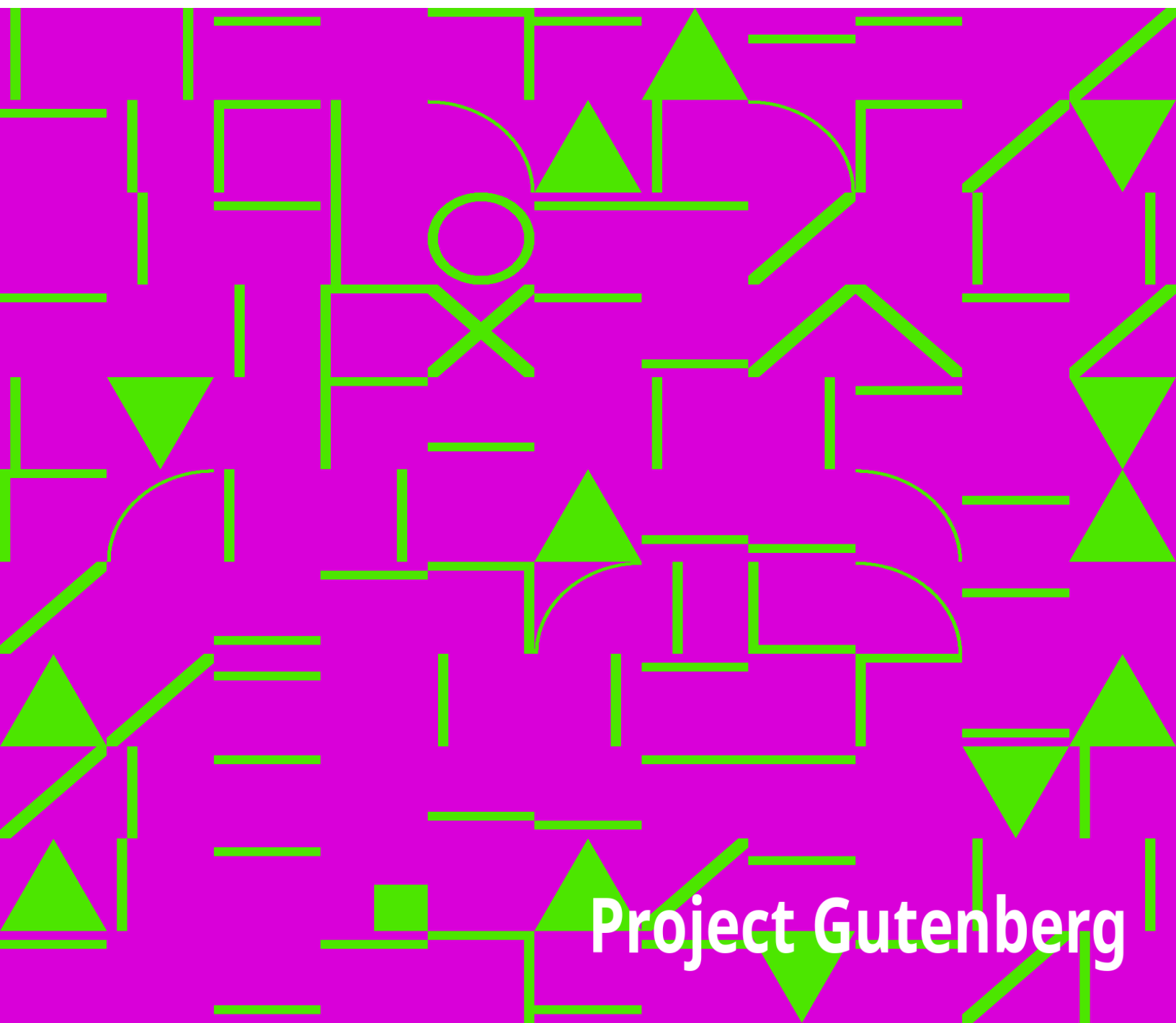


The peace negotiations between the governments of the South African Republic and the Orange Free State, and the

J. D. Kestell and D. E. van Velden



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**The peace negotiations between the
governments of the South African Republic
and the Orange Free State, and the**

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between the governments of the South African Republic and
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Title: The peace negotiations between the governments of the South African Republic and the Orange Free State, and the representatives of the British government, which terminated in the peace concluded at Vereeniging on the 31st May, 1902

Author: J. D. Kestell
D. E. van Velden

Translator: D. E. van Velden

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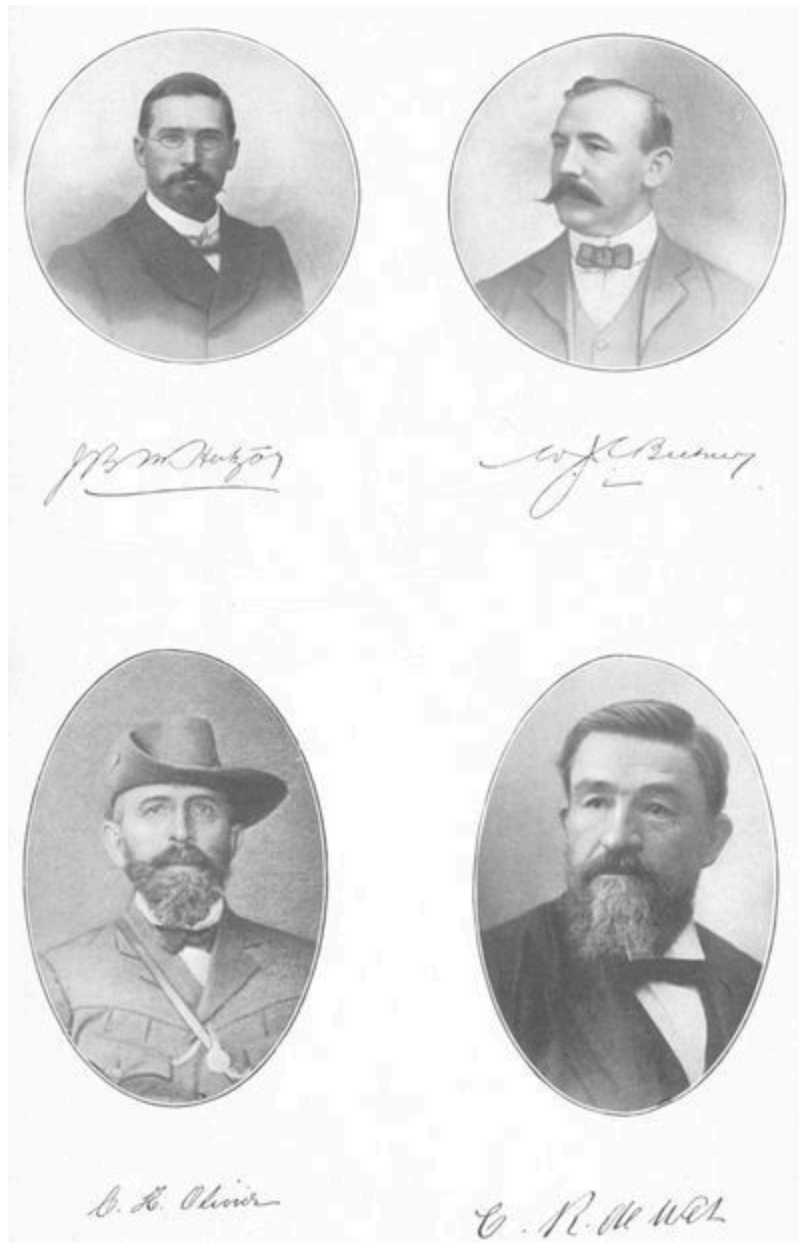
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*** START OF THE PROJECT GUTENBERG EBOOK THE PEACE
NEGOTIATIONS BETWEEN THE GOVERNMENTS OF THE SOUTH
AFRICAN REPUBLIC AND THE ORANGE FREE STATE, AND THE
REPRESENTATIVES OF THE BRITISH GOVERNMENT, WHICH
TERMINATED IN THE PEACE CONCLUDED AT VEREENIGING ON
THE 31ST MAY, 1902 ***

Transcriber's note: Obvious printer's errors have been corrected, all other
inconsistencies are as in the original. The author's spelling has been maintained.



The Signatories to the Peace Treaty on behalf of the South African Republic.



The Signatories to the Peace Treaty on behalf of the Orange Free State.

V.S.
25 3 3

ARMY HEADQUARTERS, SOUTH AFRICA.

PRETORIA. 4th March, 1902.

Your Honour,

By direction of His Majesty's Government,
I have the honour to forward enclosed copy of an Aide-
Mémoire communicated by the Netherland Minister to the
Secretary of State for Foreign Affairs, together with
his reply thereto.

I have the honour to be,

Your Honour's Obedient Servant,

Kitchener

General.
Commanding-in-Chief, South Africa.

To

His Honour,

Mr. Schalk Burger.

*Facsimile of the letter from Lord Kitchener upon which the Peace
Negotiations were entered into.*

THE PEACE NEGOTIATIONS

*Between the Governments of the South African Republic
and the Orange Free State, and the Representatives
of the British Government, which terminated
in the Peace concluded at Vereeniging
on the 31st May, 1902*

BY
REV. J. D. KESTELL
Secretary to the Orange Free State Government

AND

D. E. VAN VELDEN

Secretary to the Government of the South African Republic

TRANSLATED AND PUBLISHED BY
D. E. VAN VELDEN

WITH PHOTOS AND FACSIMILES OF ORIGINAL DOCUMENTS

LONDON
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PREFACE

The want has been repeatedly expressed of an official publication of the Minutes of the Negotiations which led to the Peace concluded at Vereeniging on May 31, 1902, events which have hitherto been a closed page in the history of the Boer War. As the Republics had ceased to exist, the question arose: Who could publish such Minutes? It is true that some very incomplete Minutes appeared in General de Wet's book, but although they were in all probability reliable, yet they had not the seal of an official document.

The only way in which the want could be met appeared to be for the Secretaries, who had been appointed by the two Republican Governments to minute the Negotiations, to publish those Minutes after they had been read and approved of as authentic by persons competent to do so.

This is what has been done by this publication, which places the reader in possession of all the correspondence leading up to the Negotiations, exact reports of what was said and done, not only at Vereeniging, but also previously at Klerksdorp, and, finally, all the Negotiations which took place at Pretoria between the two Republican Governments and the British Government, represented by Lord Kitchener and Lord Milner.

We, however, were not satisfied to publish this record, which we had most carefully taken down, merely on our own authority. We felt that, if only this and nothing more were done, the world would after all have only our word to rely upon, and that, although the record thus published would always serve as a highly reliable book of reference, it would lack the authority of a document properly authenticated by a body competent to do so.

In order, therefore, to obtain this desirable seal of authenticity to our record, we submitted our manuscript to President Steyn, Acting President Burger, the Chairman of the Meeting of Representatives of the People at Vereeniging (General C. F. Beyers), Generals Botha and Smuts for the South African Republic, and Generals de Wet and Hertzog for the Orange Free State, with the result that they all found our record to be a true and correct account of the Peace Negotiations.

So this book sees the light with their *imprimatur*, and we therefore publish it with the greatest confidence.

The Reader's attention is drawn to the following particulars:—

In respect of the speeches made by the members of the Republican Governments at Klerksdorp, and the speeches delivered later at Vereeniging by them and by the Delegates from the various Commandos, the reports are almost *verbatim*. The addresses of the Presidents and principal Generals especially were transcribed from the stenographic notes of D. E. van Velden, and revised by J. D. Kestell.

This completeness does not extend to what is published of the *First* Conference between the two Republican Governments and Lord Kitchener and Lord Milner, because no Secretaries were admitted to that Conference. Lord Kitchener had expressed the desire that no official notes should be taken, as the parties would first confer informally. What was discussed, however, has not been lost, for an account of what took place at this Conference was taken down by J. D. Kestell from the dictation of General Hertzog immediately after the conference was over, and revised by President Steyn and Mr. W. J. C. Brebner (Acting Government Secretary, Orange Free State), and appears in this book.

With reference to the *Second* Conference, however, we were present, and what is given is a *verbatim* account of the discussion.

Of some official documents in our possession, reproductions or facsimiles are given in the hope that the reader will find them of interest.

J. D. K.
D. E. v. V.

Pretoria,
October, 1908. [\[Back to Contents\]](#)

INTRODUCTION

DEAR READER,

In connection with the publication, by the Rev. J. D. Kestell and Mr. D. E. van Velden, of the official minutes of the Peace Negotiations (together with the official correspondence relating thereto) between the British Government and the Governments of the Orange Free State and the South African Republic, which terminated in the Peace concluded at Vereeniging on May 31, 1902, I do not wish in this introduction to enter into details, but merely to confine my remarks to the great responsibility which rested upon us and to the question, "Was it necessary to conclude Peace?"

If it was a task of supreme importance to decide to enter upon the struggle which had been waged, if it was an arduous and difficult duty to carry on the struggle, it was much harder and more difficult to foresee what the result of that struggle would be, and still harder and more difficult to decide to give it up. With how much hope, fear, and anxiety was not the end looked forward to! And when the end came, what did it not cost us to persuade the head to do what the heart refused to perform? What was realised of that hope for which there had been such a struggle, for which so much had been suffered, so much endured, so much sacrificed—the Reader will find in this book. He will also find in it the correspondence which led up to, and was carried on during, the Peace Negotiations; the proceedings at our meetings at Klerksdorp, Pretoria, and Vereeniging; the opinions, views, and grounds upon which the leaders of the people acted, in so far as those were expressed. You will not, however, find here the struggle that took place at Vereeniging within every Delegate between the heart and the head; the intense effort which it cost us to bring ourselves to acknowledge to our powerful enemy that we had been overpowered, exhausted, and were unable to continue the struggle any longer; to acknowledge to ourselves and

posterity that our sacrifices, the blood and tears that had been shed, the indescribable anxiety for wife and children, the suffering and death of the thousands of innocent women and children, the awful evils which had fallen to the lot of the rebels, had been all in vain; that we were about to lose all for which we had suffered and sacrificed. All this, I say, you do not find recorded here, but you may read it in the grey hairs of the Delegates to Vereeniging and of our people, in the deep wrinkles on their faces, and in the expression on the countenance of every Boer—that expression which cannot conceal what the soul had to endure. We had already sacrificed much, yet, in spite of all, the hope had inseparably clung to us that no sacrifice, no privation, no loss would be in vain. There at Vereeniging, however, we had to surrender what was dearest to us, we had to stand at the open grave of the two Republics, and we had to say with bowed heads: "We had not hoped, expected, willed for this, but—Thy will be done!"

We are asked: "Why did you make peace? Why did you not persevere? Was there no hope? Had the last resources been exhausted, and was all your strength spent?" To these questions I must emphatically reply "Yes"; there was no means that had not been resorted to, no strength, no reasonable hope left. As rational beings we could see no grounds upon which to continue the struggle with any hope of success. It was, however, not the arms of the enemy which directly compelled us to surrender, but another sword which they had stretched out over us—namely, the sword of hunger and nakedness, and, what weighed most heavily of all, the awful mortality amongst our women and children in the Concentration Camps. I, as Acting State President, upon whom great responsibility rested, was convinced that it was time for us to conclude peace, not for the sake of ourselves, the leaders, but for the sake of the People, who were so faithful, in order to preserve the root that still remained, and in order not to allow our nation to be entirely exterminated; out of the ruins of our country to endeavour later on to develop a South African nationality, to build up the nation again, and to preserve the unity of the People. It was our conviction that the further prosecution of the war would mean the destruction of our national existence. Whether that conviction was correct or not, we confidently leave to the judgment of posterity.

Allow me also a reply to the question: "Why did we not conclude peace sooner?" A question which by some is even put reproachfully. My answer is that, as we fought for the retention of our Fatherland and our National honour, we, as men, could not give up the struggle before we had convincing proof that we had persevered and resisted to the uttermost. That proof was thrust upon us at Vereeniging, and now every one who defended his Fatherland to the last can bear his fate with an easy conscience, and the world is convinced with us that we fought to the bitter end. With all our disappointments we had further to experience that Great Britain, in addition to the tremendous forces with which her mighty Empire supplied, also availed herself of natives and other unjustifiable means. I wish merely to mention this.

At Vereeniging we began by looking up prayerfully to God, Who decides the destinies of men and nations, and became convinced that it was the right time to make peace, and that we were on the right road by concluding the Treaty of Vereeniging. My closing words at Vereeniging were: "Comrades, we stand beside the grave of both Republics, but not at the grave of our People. We have laid down our arms and concluded the struggle which has brought death, misery, and destruction. But now we have to enter upon another struggle, much greater and much nobler. It will be our duty to labour with vigour and sacrifice at the rebuilding of our nation. Therein lies a great work before us. Although our former functions have now lapsed, our calling and duty still remain. The People who have looked up to us and remained so faithful to the end will continue to look up to us, and rightly expect assistance and advice under the altered circumstances. Let it always be our aim to serve our People."

Have subsequent events not proved that our view was correct?

Peace! How was it received?

I think the answer must be: "With deep disappointment." The victors did not exult. Was it perhaps because they involuntarily felt that from the time when they, principally upon distorted representations, unjustifiably interfered with the affairs of the South African Republic, up to the Conference at Vereeniging, they had achieved no honour? Our People, especially the women and daughters in the Concentration Camps, were

deeply dismayed. I have never seen a more impressive and sadder scene than the sight of the 4,000 women and children in the Merebank Concentration Camp, Natal, when I informed them that we had concluded peace, by which we had had to sacrifice our country. The question: "Is it for *this* that I sacrificed my husband, my son, my child?"—which resounded in my ears from the lips of the weeping women made the discharge of this, my last duty, also the most painful one. The deep conviction was there wrought in me that it was only their faith in God that enabled these women and children to endure what they had had to endure. May their patience, their courage, their faith, be transmitted to their descendants!

I would further like to say that it was hard for us all, especially for me, to be deprived, during the Negotiations at Vereeniging, of the advice and support of President Steyn, who was forced by illness to leave us during the early days of the negotiations. The absence of his strong shoulder made our task so much harder.

S. W. BURGER.

Pretoria,
October, 1907. [\[Back to Contents\]](#)

TRANSLATOR'S NOTE

In response to wishes very generally expressed, an English translation of "De Vredesonderhandelingen tusschen Boer en Brit in Zuid Afrika" (The Peace Negotiations between Boer and Briton in South Africa) is now placed before the Public.

Though the greatest care has been taken to ensure that the translation conveys to the reader exactly what the Dutch original contains, the latter remains the official record, from the Boer side, of the Peace Negotiations. The translator accepts all responsibility for the English translation.

In anticipation of any critical remarks that may be made, it is only due to state that the addition to the English translation of a few facsimiles of original documents and the few verbal improvements are by no means due to a desire to differentiate between the publications in the two languages, but are merely the improvements which, as every author knows, suggests themselves and are rendered possible by the publication of a later edition.

The Reader will not always find the translation of the speeches in idiomatic English, but it may be pointed out that in most cases that defect is due to the translator having aimed at preserving, as far as possible the stamp of originality as it exists in the original.

Pretoria,
September, 1911. [\[Back to Contents\]](#)

THE PEACE NEGOTIATIONS

CHAPTER I.

PRELIMINARY CORRESPONDENCE.

ARMY HEADQUARTERS, SOUTH AFRICA.

PRETORIA,

March 4, 1902.

YOUR HONOUR,

By direction of His Majesty's Government, I have the honour to forward enclosed copy of an Aide-Mémoire communicated by the Netherlands Minister to the Secretary of State for Foreign Affairs, together with his reply thereto.

I have the honour to be,

Your Honour's obedient servant,

KITCHENER, General,

Commanding-in-Chief, South Africa.

TO HIS HONOUR, MR. SCHALK BURGER.

Aide-Mémoire communicated by the Netherlands Minister, January 25, 1902:—

1. It is the opinion of the Government of Her Majesty the Queen that the exceptional circumstances in which one of the belligerent parties in South Africa is situated, which prevents it from placing itself in communication with the other party by direct means, constitutes one of the causes for the continuance of this war, which continuously without interruption or termination harasses that country, and which is the cause of so much misery.

2. The circumstances are indeed exceptional, where one of the belligerent parties is entirely enclosed and isolated from the rest of the world; and where the representatives of the Boers in Europe are precluded from all communication with their Generals. This state of affairs has called into existence the difficulty that those in authority, who ought to negotiate in the interests of the Boers, are divided in two, and deprived of all means of

deliberating with each other. It is plain that the Boer Delegates in Europe can do nothing because they are not acquainted with the condition of affairs in Africa, and that the Boers, who are under arms, must refrain from taking the initiative because they are not informed on the condition of affairs in Europe.

3. Further, the Delegates in Europe are tied by their credentials, which were issued in March, 1900, and which bind them so closely to the independence of the Republics, that they would not be warranted even to accept the restoration of the *status quo ante bellum*, if the method (of settling) the differences, which might arise, was not at the same time arranged.

4. These circumstances cause the question to arise whether an offer of good services could not be made by a neutral Power with the object of at least making it possible to open the way to negotiation, which could otherwise not be begun.

5. For these reasons it would be of importance to know whether it would be agreeable to the Government of His Britannic Majesty to make use of the good services of a neutral Power, if these good services would confine themselves to the task of bringing the negotiators appointed by both parties into communication with each other.

6. Perhaps the Government of Her Majesty the Queen could be considered as indicated to fulfil this task, because the Delegates of the Boers are on Netherland's ground and are accredited only to this Government.

7. If the Government of His Britannic Majesty concurs with this idea, there would be ground for the Government of Her Majesty the Queen to approach the Delegates of the Boers with the question whether they would undertake to proceed to Africa with the object of conferring with the heads of the Boers there, to return to Europe, after staying a limited time (say a fortnight), invested with authority making provision for every possible event, and giving them power to conclude a Treaty of Peace, which would be inviolably binding on the Boers in Europe as well as on the Boers in Africa.

8. In case of an answer in the affirmative, it would be necessary for the Government of His Britannic Majesty to give the Government of the Netherlands three safe-conducts, allowing the Boer Delegates to proceed free to South Africa, to remain there free for the stipulated time, and to return free to Europe. Further, it would be necessary that the British Government allow the use of a telegraphic code to indicate the place where the said Delegates could meet the Leaders of the Boers.

9. After their return the Government of Her Majesty the Queen would place them in communication with the Plenipotentiaries designated for that purpose by the Government of His Britannic Majesty, and voluntarily undertake to place at the disposal of these gentlemen all that is necessary for their meeting.

10. The Government of Her Majesty would then consider its task as completed.

11. It is very clear that, in spite of everything, the negotiations thus commenced might lead to nothing; but the possibility of the contrary is by no means excluded; and under the circumstances it appears to be desirable to try to open negotiations in the hope that they will bear fruit. And with the difficulty in view which exists for all belligerent parties to take the first step in this direction, it might be useful that a third party undertook to do so, and offered itself as mediator.

Confidential.

The Marquis of LANSDOWNE to Baron GERICKE.

FOREIGN OFFICE,
January 29, 1902.

SIR,

You were good enough to lay before me on the 29th instant a communication from the Netherlands Government, in which it was proposed that, with the object of bringing the war to an end, His Majesty's

Government might grant a safe conduct to the Boer Delegates now in Holland for the purpose of enabling them to confer with the Boer Leaders in South Africa. It is suggested that after the conference the Delegates might return to Europe with power to conclude a Treaty of Peace with this country, and the Netherlands Government intimate, in this event, they might at a later stage be instrumental in placing the Boer Plenipotentiaries in relation with the Plenipotentiaries who might be appointed by His Majesty's Government.

The Netherlands Government intimate that if this project commends itself to His Majesty's Government, they will inquire of the Delegates whether they are prepared to make the suggested visit to South Africa.

It may therefore be inferred that the communication which I received from you was made on the responsibility of the Netherlands Government alone, and without authority from the Boer Delegates or Leaders. His Majesty's Government have given it their best consideration, and whilst they entirely appreciate the motives of humanity which have led the Netherlands Government to make this proposal, they feel that they must adhere to the decision adopted and publicly announced by them some months after the commencement of hostilities by the Boers, that it is not their intention to accept the intervention of any foreign Power in the South African war.

Should the Boer Delegates themselves desire to lay a request for safe conduct before His Majesty's Government, there is no reason why they should not do so. But His Majesty's Government are obviously not in a position to express an opinion on any such application until they have received it, and are aware of its precise nature and the grounds on which the request is made.

I may, however, point out that it is not at present clear to His Majesty's Government that the Delegates retain any influence over the Representatives of the Boers in South Africa or have any voice in their councils. They are stated by the Netherlands Government to have no letters of credence or instructions later in date than March, 1900. His Majesty's Government had, on the other hand, understood that all powers of Government, including those of negotiation, were now completely vested in

Mr. STEYN for the Boers in the Orange River Colony, and Mr. SCHALK BURGER for those in the Transvaal.

If this be so, it is evident that the quickest and most satisfactory means of arranging a settlement would be by direct communication between the Leaders of the Boer forces in South Africa and the Commander-in-Chief of His Majesty's forces, who has already been instructed to forward immediately any offers he may receive for the consideration of His Majesty's Government.

In these circumstances His Majesty's Government have decided that, if the Boer Leaders should desire to enter into negotiations for the purpose of bringing the war to an end, these negotiations must take place not in Europe, but in South Africa.

It should, moreover, be borne in mind that, if the Boer Delegates are to occupy time in visiting South Africa, in consulting with the Boer Leaders in the field, and in returning to Europe for the purpose of making known the result of their errand, a period of at least three months would elapse, during which hostilities would be prolonged, and much human suffering, perhaps needlessly, occasioned.

I have, &c.,
(Signed) LANSLOWNE.

To this letter Acting-President Schalk W. Burger, with the advice and consent of the Executive Council, replied as follows:—

*To His Excellency Lord KITCHENER, Commander-in-Chief of the British
Troops, Pretoria.*

GOVERNMENT LAGER,
IN THE VELD, S.A.R.,
March 10, 1902.

YOUR EXCELLENCY,

I have the honour to acknowledge the receipt of Your Excellency's letter dated the 4th inst., and to thank you for the transmission of the therein enclosed Confidential Memoranda exchanged between the Netherlands Minister and the Marquis of Lansdowne.

With reference to this communication, I have to say that I am desirous and prepared to make peace proposals, but, in order to be able to decide upon the terms thereof, it is indispensable that I should meet His Honour President Steyn, to enable us to make a proposal jointly, and, to expedite matters, I therefore respectfully request Your Excellency to give me and the Members of my Government a safe conduct through Your Excellency's lines to His Honour President Steyn and back.

I have the honour to be,
Your Excellency's obedient servant,
S. W. BURGER,
Acting State President.

In reply to this letter Acting State President Burger received the following communication:—

PRETORIA,
March 13, 1902.

YOUR HONOUR,

I beg to acknowledge the receipt of Your Honour's letter of the 10th March, and to inform Your Honour that I shall be pleased to allow the safe conduct you ask for.

I shall be obliged if Your Honour would inform me of the number you propose to bring with you, and that you will send in to Balmoral a day in advance, so that an officer whom I shall designate for the purpose may meet Your Honour and see that all proper arrangements are made for your reception.

I shall order my troops immediately to withdraw from the neighbourhood in which Your Honour now is, and inform them of the safe conduct that is hereby given to Your Honour.

I have the honour to be,
Your Honour's obedient servant,
KITCHENER, *General*,
Commanding-in-Chief South Africa.

TO HIS HONOUR, MR. S. W. BURGER.

Before making use of the opportunity thus obtained of meeting President Steyn, the Government of the South African Republic considered it necessary to ascertain where President Steyn with his Government was, so that he might be informed that the Transvaal Government, under safe conduct from Lord Kitchener, was *en route* to meet him and his Government. In the following letter Acting-President Burger requested Lord Kitchener to transmit the following telegram to President Steyn:—

*To His Excellency LORD KITCHENER, Commander-in-Chief of the British
Troops, Pretoria.*

GOVERNMENT LAGER,
IN THE VELD, S.A.R.,
March 17, 1902.

YOUR EXCELLENCY,

I have the honour to acknowledge the receipt of Your Excellency's letter of the 13th inst.

I thank Your Excellency for consenting to our travelling through Your Excellency's lines, and also for the order given to your troops to immediately withdraw from the neighbourhood where I at present am, and for the notice given them of the safe conduct extended to us.

In order to obviate delay I respectfully request Your Excellency to transmit the enclosed telegram to President Steyn, and to put me in possession of His Honour's reply thereto, on receipt of which I shall immediately inform Your Excellency a day in advance, as requested by you, of the time when we shall arrive at Balmoral.

Pending the receipt of Your Excellency's reply we shall remain at Roodepoort, near Rhenosterkop.

I have the honour to be,
Your Excellency's obedient servant,
S. W. BURGER,
Acting State President.

TELEGRAM.

FROM S. W. BURGER,
*Acting State President,
Rhenosterkop, distr. Pretoria.*

TO HIS HONOUR PRESIDENT STEYN,
IN THE VELD.

With reference to confidential Memoranda exchanged between the Netherlands Minister and Lord Lansdowne, which correspondence was kindly sent to me by His Excellency Lord Kitchener, I with the members of my Government, wish to proceed to meet you. For that purpose a safe conduct has been granted to us by Lord Kitchener. Be so good as to inform me as soon as possible where and when such meeting can take place.

To this the following reply was received by Acting-President Burger:—

ARMY HEADQUARTERS, SOUTH AFRICA.
PRETORIA,
March 18, 1902.

YOUR HONOUR,

I am placed in some difficulty by the receipt of Your Honour's dispatch enclosing a telegram which you request me to forward to His Honour Mr. Steyn.

Owing to recent military operations in the country South of the Vaal and East of the Railway, His Honour Mr. Steyn, with a following estimated at about Thirty Burghers, has left that district, and was last reported travelling in the vicinity of Bothaville. It is therefore not easy for me to communicate with him, especially as he does not at present make a prolonged stay in any one part of the country. For this reason I venture to suggest, for Your Honour's consideration, that it might save time, if you came now to Balmoral, where a special train would be placed at Your Honour's disposal. You might then travel to the neighbourhood of Kroonstad, where my Officers would give you every assistance to go out and meet His Honour Mr. Steyn, according to the latest information.

It will be understood that the safe conduct I had the pleasure of forwarding to Your Honour was for a definite purpose of passing my lines

to meet Mr. Steyn, and will have to be renewed if any delay takes place in taking advantage of it.

I have the honour to be,
Your Honour's obedient servant,
KITCHENER, General,
Commanding-in-Chief, South Africa.

HIS HONOUR MR. SCHALK BURGER.

The Transvaal Government then wrote to Lord Kitchener as follows:—

*To His Excellency LORD KITCHENER, Commander-in-Chief of the British
Troops, Pretoria.*

ROODEPOORT, NEAR RHENOSTERKOP,
DIST. PRETORIA, S.A.R.,
March 20, 1902.

YOUR EXCELLENCY,

I acknowledge the receipt of Your Excellency's communication dated the 18th inst., and have the honour to inform you in reply that we shall arrive at Balmoral on Saturday morning the 22nd inst., at 10 o'clock, to avail ourselves of Your Excellency's kind offer to allow us to travel to Kroonstad by rail, and to assist us from there to meet His Honour President Steyn.

I shall be accompanied to Kroonstad by five gentlemen, four white attendants, and one native servant. Furthermore we shall be escorted to Balmoral by some men who will take our vehicles and horses back from there.

I also wish to inform Your Excellency that my guard is still here, where it will remain until our return.

I have the honour to be,
Your Excellency's obedient servant,

S. W. BURGER,
Acting State President.

At this stage of the negotiations an express messenger was despatched to Commandant General Louis Botha, who was then in the South-Eastern districts of the South African Republic, to acquaint him with the decision of the Government, and with the correspondence with Lord Kitchener (of which copies were sent to him). Unfortunately, as it appeared later, the despatch rider did not reach General Botha.

On the morning of March 22nd, 1902, at ten o'clock the Members of the Executive Council, consisting of Acting State President S. W. Burger, State Secretary F. W. Reitz, and Messrs. L. J. Meyer and J. C. Krogh, arrived at Balmoral Station. The Executive Council was also accompanied by Mr. L. J. Jacobsz, Assistant State Attorney, and Mr. D. van Velden, Secretary of the Executive Council (the latter had arrived at Balmoral the previous day with the despatch of March 20th, 1902.)

When they approached the Station, Captain Marker, A.D.C. to Lord Kitchener, Major Leggett, who was connected with the Imperial Military Railways, and Captain Baird of the Intelligence Department, rode out to meet them. At 12 o'clock they left by special train for Kroonstad. There was an hour's delay at Pretoria while another train was being prepared. During this delay the Executive Council paid a visit to Lord Kitchener at his request. After that the journey was continued, and Kroonstad reached in the night.

On the following morning two despatch riders, Robberts and Hattingh, who had been brought with the Executive Council for that purpose, were sent out to find President Steyn. They took with them the following letter with annexures, consisting of copies of the letter of Lord Kitchener, dated March 4th, 1902, and the above-mentioned correspondence between the Netherlands and British Governments, which had been forwarded to Acting President Burger.

His Honour M. T. STEYN, State President, O.F.S., in the Veld.

KROONSTAD,
March 24, 1902.

YOUR HONOUR,

Herewith I send you copies of correspondence which has passed between us and Lord Kitchener, as a result of which I, with the Members of the Executive Council, have proceeded hither with the object of meeting Your Honour.

We learn that Lord Kitchener has sent, or that he intended to send, the same correspondence to Your Honour, but did not know where to find you. His opinion was, that you were somewhere to the west of the railway. I have therefore obtained a copy of the communication intended for Your Honour and send this also herewith.

We shall wait here until we learn where and when we can meet Your Honour.

Will you let us have this information as soon as possible and by the shortest way.

I have the honour to be,

Your Honour's obedient servant,

S. W. BURGER,
Acting State President.

The despatch riders reached President Steyn on March 26th, and handed him the correspondence. The President thereupon immediately sent a despatch to General de Wet—who was at the moment on his way to General Badenhorst—summoning him to attend the proposed meeting, and replied to the Transvaal Government as follows:—

*To His Honour S. W. BURGER, Acting State President of the S.A. Republic,
Kroonstad.*

PRESIDENT'S LAGER,
IN THE VELD,
March 28, 1902.

YOUR HONOUR,

I have the honour to acknowledge the receipt of Your Honour's despatch of the 24th inst., enclosing correspondence between Your Honour and His Excellency Lord Kitchener.

As I have been suffering from my eyes for six or seven weeks, and since, as you know, almost all our doctors have been captured or have left us, I was obliged to proceed to General de la Rey in order to place myself here under the medical treatment of Dr. von Rennenkampff.

I am still under that treatment and am therefore obliged to meet Your Honour in the South African Republic.

I am prepared to meet Your Honour in the neighbourhood of Klerksdorp or Potchefstroom, on any farm in that neighbourhood which His Excellency Lord Kitchener may consider most suitable, or even in one of those towns, if desirable. When fixing the place of meeting, I wish to leave it to Your Honour to obtain a guarantee from His Excellency Lord Kitchener for me and my Government, with the necessary attendants, that we shall be allowed quietly and unhindered to continue our work there for a definite time, as well as a safe-conduct to proceed unhindered to the place of meeting and to return thence unhindered.

I have the honour to be,

Your Honour's obedient servant,

M. T. STEYN,
State President, O.F.S.

On receipt of the above letter the Government addressed the following communication to Lord Kitchener:—

*To His Excellency LORD KITCHENER, Commander-in-Chief of the British
Troops, Pretoria.*

KROONSTAD,
March 31, 1902.

YOUR EXCELLENCY,

Herewith I have the honour to send you copy of the letter this day received by me from President Steyn.

With reference thereto I request your Excellency to be so good as to furnish President Steyn with the safe-conduct desired by him, and further to inform us as well as His Honour where, in your opinion, the intended meeting can take place. Possibly Potchefstroom would be the most suitable place therefor.

As His Honour the Commandant-General and General de la Rey are both members of the Executive Council, I request Your Excellency kindly to send them the enclosed message, and also to furnish each of them with a safe-conduct to and from the place of meeting.

I further take the liberty of requesting you to forward the enclosed letter to President Steyn.

I have the honour to be,

Your Excellency's obedient servant,

S. W. BURGER,

Acting State President.

The above-mentioned message to General Botha and to General de la Rey read as follows:—

From
ACTING STATE PRESIDENT,
S.A.R.

To
(1) COMMANDANT GENERAL LOUIS
BOTH.

(2) GENERAL DE LA REY.

With reference to confidential memoranda exchanged between the Netherlands Minister and Lord Lansdowne, which was sent to us by His Excellency Lord Kitchener, we have come under a safe conduct to meet President Steyn. This meeting will take place in a locality to be decided upon by Lord Kitchener. As we consider your presence necessary there, we have requested His Excellency to furnish you also with a safe-conduct thither and back.

Be so good as to come without delay on receipt hereof.

S. W. BURGER,
Acting State President.

KROONSTAD,
March 31, 1902.

The letter to President Steyn referred to above was as follows:—

To His Honour PRESIDENT STEYN.

KROONSTAD,
March 31, 1902.

YOUR HONOUR,

Acknowledging the receipt of Your Honour's letter of the 28th inst., I have, in pursuance of the desire therein expressed by you, requested Lord Kitchener to furnish you with a safe-conduct to such place as may be considered most suitable by His Excellency for the proposed meeting between us.

I have the honour to be,

Your Honour's obedient servant,

S. W. BURGER,
Acting State President, S.A.R.

On April 1st, 1902, Lord Kitchener wrote as follows to Acting State President Burger:

ARMY HEADQUARTERS, SOUTH AFRICA.

Pretoria,

April 1, 1902.

YOUR HONOUR,

The letters and safe-conducts Your Honour has requested me to send out to Mr. Steyn, Commandant General L. Botha, and General de la Rey will be forwarded at once. I consider Klerksdorp would be the best place for your meeting with these gentlemen.

I have the honour to be,

Your Honour's obedient servant,

KITCHENER, General,

Commanding-in-Chief, South Africa.

TO HIS HONOUR MR. S. W. BURGER.

The following letter was forwarded by Lord Kitchener to President Steyn:—

ARMY HEADQUARTERS, SOUTH AFRICA.

PRETORIA,

April 1, 1902.

YOUR HONOUR,

At the request of His Honour Mr. S. W. Burger, I beg to forward the enclosed letter, and at the same time to provide you with this a safe-conduct for Your Honour and your Executive to come to Klerksdorp and to return thence after your meeting with Mr. Burger and the Transvaal Government.

I have the honour to be,
Your Honour's obedient servant,
KITCHENER, General,
Commanding-in-chief, South Africa.

HIS HONOUR MR. M. T. STEYN.

President Steyn then addressed the following letter to Acting President Burger:—

*To His Honour the Acting State President, S.A.R., S. W. BURGER,
Klerksdorp.*

PRESIDENT'S LAGER,
IN THE VELD,
April 7, 1902.

YOUR HONOUR,

I have the honour to acknowledge the receipt of Your Honour's letter, d.d. March 31st, 1902, with the safe-conduct from Lord Kitchener, to whom I have replied direct.

I hope to be at Klerksdorp on Wednesday, the 9th inst., if not prevented, with General de la Rey and my Executive Council.

I have the honour to be,
Your Honour's obedient servant,
M. T. STEYN,
State President, O.F.S. [\[Back to Contents\]](#)

CHAPTER II.

PROCEEDINGS AT KLERKSDORP.

On April 6th the Government of the South African Republic left Kroonstad by rail, and arrived at Klerksdorp the next day, where they received the letter from President Steyn, mentioned above, as well as the following from General de la Rey:—

IN THE VELD,
April 7, 1902.

His Honour The Acting State President, S.A.R., Klerksdorp.

YOUR HONOUR,

I have the honour to acknowledge the receipt of Your Honour's telegram forwarded to me by His Excellency Lord Kitchener. I leave to-day with His Honour President Steyn for Klerksdorp, and hope, D.V., to arrive there on Wednesday next.

I have the honour to be, &c.,

J. H. DE LA REY,

Asst. Commandant General.

On the evening of April 7th Commandant General L. Botha also arrived at Klerksdorp.

President Steyn, accompanied by his Executive Council and by General de la Rey, left the farm Weltevreden on April 7th, and arrived at Klerksdorp at 12 o'clock on April 9th.

The British authorities gave accommodation to the Free State Government in the Old Town, while the Transvaal Government was accommodated in the New Town.

The first meeting between the two Governments took place on Wednesday afternoon, April 9th, at three o'clock, in a large tent which had been pitched for that purpose some little distance out of the town.

There were present, representing the South African Republic:—

The Acting State President, S. W. Burger.

The State Secretary, F. W. Reitz.

The Commandant General, Louis Botha.

General de la Rey.

Mr. L. J. Meyer.

Mr. J. C. Krogh.

Also Mr. L. J. Jacobsz, Asst. State Attorney; Mr. N. J. de Wet, Military Secretary of the Commandant General; Mr. I. S. Ferrerra, Military Secretary of General de la Rey, and Mr. D. van Velden, Secretary of the Executive Council.

Representing the Orange Free State:—

President M. T. Steyn.

Chief Commandant C. R. de Wet.

General J. B. M. Hertzog.

General C. H. Olivier.

Acting Government Secretary W. J. C. Brebner.

Further: Revd. J. D. Kestell, Acting Secretary of the Executive Council, and Mr. B. J. du Plessis, Private Secretary to President Steyn.

The Acting State President of the South African Republic was elected Chairman.

After the meeting had been opened with prayer, the Chairman spoke as follows:—

As you are aware, we have for some time been desirous of meeting one another. The correspondence between the Netherlands Minister and Lord Lansdowne was sent us by Lord Kitchener, under instructions from his

Government. I consider the transmission by the British Government of this correspondence as an invitation from England to the two Republics to discuss the question of peace. Having placed this interpretation upon England's action, I requested a safe-conduct from Lord Kitchener, in order to be enabled to meet the President and Government of the Orange Free State. These circumstances suggested to us that the opportune time to meet one another had arrived. When we see another Government trying to do something for us, I think that we ought to make use thereof. It was impossible for us to meet the Free State Government in another way, and though it was hard for us to make use of the enemy, our cause is of too great importance for us to consider that. I regret that we had to remain at Kroonstad for such a long time. This was certainly not desirable. Faithful, however, to our compact, we can do nothing without the Orange Free State. I considered that it was time for us, the Leaders of the People, to meet each other and discuss matters fully, with our eyes fixed on God. We must face our condition as it really is. Our object is to make a proposal for the restoration of peace. The terms of such a proposal must be discussed by us. If we had not availed ourselves of this opportunity, I would not have been able to justify my actions to the People. I believe all will agree with me that it has become necessary for us to take such a step.

The Meeting then desired to have a brief review from the three Generals of the conditions in their respective districts.

The Commandant General of the South African Republic said, that after the fight at Bakenlaagte the enemy proceeded against him with eighteen columns. Almost all the cattle in his District was taken. By the building of block houses the space on the High Veld was limited very much. The lines of block houses were only about three or four hours' ride from each other. He had to leave the High Veld to try to lead the enemy away, and proceeded to the Vryheid district. He explained how the block house lines on the High Veld ran. In the course of their last operations the enemy captured about 1,000 men on the High Veld, of which the half were good men. The speaker then enumerated the numerical strength of his commandos. He had eight commandos under him, numbering 5,200 men. Food, he said further, was scarce. There was hardly a sheep to be seen in his division, and in one district, which he mentioned, there were only 20 head of cattle. In some

other districts conditions were more favourable, and they could not complain of want. There were no mealies whatever, except what was standing in the fields. The question of horses also caused anxiety. Four hundred of his men went on foot. He concluded by bringing to the notice of the Governments the fact that Zulus had been armed against him. The Swazies, with the exception of a small number, were well disposed. On the whole the spirit of the burghers was good. Only here and there could dejection be discerned.

Chief Commandant de Wet said that innumerable hostile forces had continually operated against him during the last eight or ten months. He, with his Government, were so surrounded by the enemy in the North-eastern districts of the Free State, that they had to fight their way out. Seven hundred burghers were then captured, but among them there were many grey-beards, boys, and other men not capable of serving, so that the number of serviceable burghers captured was not more than 250. As regards cattle, if one compared the present condition with that before the war, you would have to say, "There are no cattle." However, there were sufficient for the burghers and families. In the Western and South-western portions of the Free State almost all the burghers laid down their arms when the great forces of the enemy marched through there for the first time. The Commandos there were consequently very weak. They had enough corn in those districts for a full year. Cattle, however, were so scarce that bulls and rams were slaughtered. From the division where General Brand commanded, the enemy at an earlier stage of the war removed all cattle, but now they had large herds again and sufficient corn to last for a year. In the South-eastern portion of the Free State matters were much the same as in the South-western. In the districts of Boshof and Hoopstad there were many sheep and cattle, and there was no want of mealies. The numerical strength in the entire State amounted to 5,000 men, and there were many burghers in the Cape Colony. The spirit of all the burghers was splendid.

General de la Rey informed the meeting that he still had 2,000 men under arms. By means of a line of block houses the enemy had divided the Western districts, and thus made matters difficult for him. Zeerust and Rustenburg were still intact. The approach to his food-districts was also hampered by block houses, much to his detriment. There were between

1,800 and 2,000 men who fought. There were also others who had no horses. These he concealed, and if a burgher fell or was wounded, one of them was brought out to take his place. The burghers were also destitute of the necessary clothes. Mealies were still abundant, and they had a fair number of cattle, but at the present moment the British had all the mealie and Kaffir-corn fields in their possession, and if they should cut these fields off by a block house line, his food would be in their hands. With reference to the Cape Colony, he had about 1,800 men there, and General de Wet about 600. He saw a chance of still continuing the war.

The Members of the Transvaal Government then reported that they had met General Kritzinger at Kroonstad. He had received permission from the British to see President Steyn, and he had greatly regretted that the President had not been there. With regard to the Cape Colony he had not given a hopeful prospect to the Transvaal delegates. He stated that the entire force there amounted to from 1,800 to 2,000 men. There was a great want of horses, and the enemy made it impossible for the commandos to get them, as not only horses and mules, but also donkeys were taken possession of by the enemy. He also said that many Colonists had laid down their arms.

To this President Steyn and General de Wet replied that at the time when General Kritzinger made the above statements he was not competent to express an opinion on the state of affairs in the Cape Colony from personal observation, because after his rather protracted visit to the Free State he had barely returned to the Cape Colony when he was captured at Hanover, badly wounded.

The Meeting then proceeded to the discussion of the question whether they would request a personal interview with Lord Kitchener, or make him a proposal in writing.

President Steyn said that, as far as he was concerned, there was only one condition upon which he could make peace, and that was: Independence. His opinion was still the same as a year ago, and he saw nothing to make him change. It was plain to him that the enemy continually climbed down from the position they had taken up. If the enemy did not wish the Republics to remain independent, the struggle must continue. This was what

the burghers also desired. Rather than make terms with the British he would submit unconditionally to them for ever.

State Secretary Reitz said that to make terms and to give up the country were two distinct matters. They should try to grasp the position in which England stood. If England consented to the existence of the independence of the Republics, she would be done for. For that reason it was probable that England would not lend her ear to the two Republican Governments if independence was immediately insisted upon. The question therefore was whether terms could not be offered. The Republics were the weaker party, and therefore they could make the offer. That would also be proof that they were prepared to make peace. They should make a proposal of some kind or other. The making of such a proposal did not signify that thereby their independence was sacrificed, but that the question of independence was not for the time being under discussion.

President Steyn was of opinion that the enemy should be compelled to state what terms they were prepared to give.

Mr. Krogh thought that a conference with the British should first be requested, but no proposals made for the present.

General de la Rey said that the Republics should make a proposal for the restoration of peace, especially after what the Netherlands Government had done. It could not be expected that the British would now make a peace proposal.

The Acting State President of the South African Republic said the war had done away with the *Status quo ante bellum*. Other proposals should therefore be made. The question was: what proposals? If Lord Kitchener agreed to a conference with them, he would ask: what do you propose? In his opinion the two Governments should ask and concede as much as it was in their power to do. To retain their independence, they should concede something. It was better for them to make a proposal first. If the enemy made the first proposal it would be much more difficult for them (the Boers) to get some point or other conceded, than to obtain the alteration of a proposal made from the Republican side. The matter should be considered from all sides, and its seriousness, especially, should not be lost sight of. If

no change came, many of the burghers, forced by sheer necessity, would go over to the enemy. Amongst the people there were always the courageous and the disheartened. And the two elements were still amongst them. A burgher who was with them to-day went to lay down his arms to-morrow. The cause became weaker day by day. Every man who was lost was gone, and his place could not be filled up. The question was whether it was better to continue until the people were exterminated, man, woman and child, than to try to come to terms. Or, on the other hand, to continue until they obtained what they wanted, only to find that the people were extirpated. For whose benefit would the struggle then have been carried on? It should seriously be considered whether the decision taken last year should be adhered to, or whether an attempt should be made to obtain for the people what was possible to obtain. If they must surrender unconditionally, the time should be fixed for doing so, and not delayed till all were captured or killed. They should not be lead away too much by their feelings. If he acted emotionally he would say, "Continue." But they should use their heads.

After this the meeting adjourned to the following morning.

THURSDAY, APRIL 10, 1902.

The meeting was resumed. General L. J. Meyer was the first speaker. He said that if anyone intended to continue the struggle he would stand by him, but they should first consider how great the responsibility was that rested on the two Republican Governments. The principal matter that should be taken into consideration was what is to the advantage of the people. Unless a miracle occurred nothing could save the people. He knew what their condition was as regarded food and ammunition. Their cause—whatever might be said—had not improved since June, 1901, but had gone backward. They should not shut their eyes to facts. The rebellion in the Cape Colony was, after all, feeble, and the cause was not progressing there. Would it not be possible to conclude a federal union with the two Colonies? An offensive and defensive treaty? Friendship in trade? If all attempts in these directions came to nothing, could they not be satisfied with an "encumbered independence"? and if England did not want this, and refused to concede anything, the time would have arrived for the matter to be laid before the people.

Chief Commandant de Wet said he did not wish to boast when he said that the enemy had concentrated their greatest forces against him, and that he had at his disposal the smallest forces; but as far as he was concerned there could be no mention of the surrender of their independence. Their cause had progressed since last June. The places of the burghers whom they lost in the Republics were filled by recruits in the Cape Colony. He had sufficient food, clothes, and ammunition for more than a year. Before he conceded an iota of their independence he would allow himself to be banished for ever.

State Secretary Reitz asked whether they should not discuss some questions first. Should they not, for example: (1) Request an armistice; (2) Try to get into communication with their Deputation; (3) Make proposals in which the following points were raised: (a) Customs Convention; (b) Postal Union; (c) The Franchise; (d) Their Foreign Affairs; (e) Amnesty for Colonial Burghers; (f) Their relation to other Powers; (g) The Paramount Power of England, and (4) In order that they did not at once repulse the British by using the word "Independence," would it not be better to use another word instead, for instance, "Self-government"?

General Hertzog said that the Constitution of the Republics did not permit the Governments to meddle with the independence. That was most severely punishable under Roman-Dutch law. The Governments could not part with the independence of the Republics without authority from the people. They should request a conference with Lord Kitchener on the basis of their independence. All they heard was from British sources, and they therefore did not know what the true condition of affairs was. What assurance had they that England was not willing to give them their independence, if she could retain the Cape Colony?

General de la Rey also thought that they should demand their independence. They should concede only what was forced from them.

General Hertzog, seconded by General Olivier, then submitted a draft resolution to the meeting, which was referred to a committee consisting of the two Presidents, the State Secretary, and General Hertzog.

After an adjournment the committee handed in a draft resolution, which was accepted and dispatched to Lord Kitchener.

The resolution read as follows:—

Resolution passed at Klerksdorp by the Governments of the South African Republic and the Orange Free State.

"The Governments of the South African Republic and the Orange Free State having met with reference to the transmission to them of the correspondence which passed in Europe between the Government of His Majesty the King of England and the Government of Her Majesty the Queen of the Netherlands concerning the desirability of giving the Governments of these Republics an opportunity of communicating with their plenipotentiaries in Europe, who still continue to enjoy the confidence of both the Republics;

"Considering the spirit of reconciliation (*rapprochement*) which is apparent on the part of the Government of His Britannic Majesty, as well as to the desire therein expressed by Lord Lansdowne on behalf of his Government to cause this struggle to come to an end;

"Are of opinion that this is a suitable time to again show their willingness to do all in their power to terminate this war; and

"Consequently resolve to make certain proposals to Lord Kitchener as representing the Government of His Britannic Majesty, which can serve as a basis for further negotiations with the object of establishing the desired peace;

"It is further the view of both these Governments that in order to accelerate the attainment of the desired object, and to prevent misunderstandings as much as possible, His Excellency Lord Kitchener be requested to meet the two Republican Governments personally, at a time and place to be appointed by him, in order to enable them to submit to him direct peace proposals, which they are prepared to make, in order thus by means of direct discussion and conference with him immediately to solve

all questions which may arise, and thereby to ensure that this meeting shall bear the desired fruit."

This resolution was forwarded to Lord Kitchener under covering letter signed by the two Presidents.

In the afternoon, after a general discussion, the same Committee was appointed to make a draft of the points which could be conceded to the British.

The meeting adjourned till the following morning.

APRIL 11, 1902.

On meeting again the following morning, the Committee submitted the following document:—

"Proceeding from the basis that they do not recognise the annexation, the two Governments are prepared to conclude peace by conceding the following matters:—

1. The concluding of a perpetual Treaty of friendship and peace, including:—
 - (a) Arrangements relative to a Customs Convention.
 - (b) Post, Telegraph and Railway Union,
 - (c) Fixing of the Franchise.
2. Dismantling of all State Forts.
3. Arbitration in all future differences between the contracting parties, an equal number of arbitrators to be appointed by each party from their subjects, with an umpire to be chosen by both parties.
4. Equal educational rights for both the English and Dutch languages.
5. Mutual amnesty.

Mr. Krogh asked whether the following could not be included in the proposal:—"The conclusion of an offensive and defensive Treaty with England."

President Steyn remarked that if they themselves offered to conclude an offensive and defensive treaty with England, they would thereby alienate all other nations from them. England would use such proposal to kill all the sympathy other nations had for them.

The meeting did not consider it advisable to add anything to the proposal, and accepted it as submitted by the Committee.

Mr. L. J. Jacobsz inquired whether, although it was plain that the Governments were not competent to decide on questions touching the independence of the Republics, they could not raise the point. If England did not accept the proposal of the Republican Governments, and the matter had to be laid before the people, it would be well if those Governments knew what England was prepared to give instead of the independence. The question should be thoroughly taken into serious consideration by their Governments, because, in his opinion, matters had not improved, but become worse since June, 1901.

General Hertzog was of opinion that the Republican outlook had improved during the past year. As proof thereof he pointed to the good spirit that prevailed amongst the burghers. They were determined to persevere. He also pointed to the engagements that had taken place since June, 1901. Then it had also been said that the cause was hopeless, and that no engagement of any importance could still be fought. He also showed that they knew nothing of the real condition of the enemy. The Republics being so shut off made that impossible. They should bear in mind that the enemy also had a hard time of it. England could not continue indefinitely to enlist soldiers and to borrow money. He was not yet prepared to surrender his independence.

Commandant General Botha said that they could not take it amiss in one another if there was no unanimity of views. They had gathered together confidentially, and should treat one another open-heartedly. There was nothing that urged him personally to terminate the struggle. He could flee

about as well as anyone else, but when he considered the circumstances, he was bound to say, "We are becoming weaker." They were being forced out of those parts of the country which were the best for them, and to which they had clung most tenaciously. He wished to prove from facts that they had become weaker. In the Northern and South-eastern parts of the Republic they had 9,570 men a year ago. Now they had there only 5,200 men, a reduction thus of 4,370 men. At their meeting on June 20th last year he had said that they should throw the responsibility of the continuance of the war more upon the people. They should then have said plainly that only faith and perseverance could save them, and that there was no other means of salvation. However, the majority of them had taken another view. What he then specially relied upon was the Cape Colony, on the strength of the reports that they received from there. Their reports were to the effect that 2,000 burghers had risen in the Cape Colony. Now, according to the statements of Generals de Wet and de la Rey, there were about 600 of his (General Botha's) burghers and of the Free State burghers together in the Cape Colony; altogether there were about 2,600 burghers under arms there. There has therefore been no further rising during the past year. He was firmly convinced that they could expect nothing from the rebellion in the Cape Colony. The time for a big rising there was past. It appeared that their men were scattered over that Colony in small groups, and effected nothing. They had to live on those people who were well disposed towards them (the Boers), and the result was that those people were treated very harshly by the enemy, and would be compelled later to assist the latter to drive those groups of rebels out of the country. Already many Colonists had been hanged. Their cause was often compared to that of the American Colonists, but it was not clear to him how that comparison could be made. The enemy (the British) had about 40,000 men in America, and America had more than one million inhabitants. She also had the support of France, and a means of importing supplies. They (the Boers) had no such means of importing what was necessary, and there was no proper communication with the outside world. The forces of the enemy in the country were much greater than the entire male population of the two Republics. Their population had now been reduced to 15,000 or 16,000 men. Had they grounds for saying that they with 15,000 men could achieve what 50,000 burghers could not do? They were becoming so weak that he was afraid that they would afterwards no longer be considered a party that had to be reckoned with. It was not

impossible that they would afterwards be declared rebels, and then a mutual murdering would take place. He did not think that it could be expected of him to co-operate towards that end. They could not speak of "right," because they knew from sad experience that the stronger party did just what it wanted to. Their people were too good to allow matters to proceed so far. Scheepers was already under the sod, and whom must they shoot for him? Not an ordinary soldier, but an officer, for only officers were equal to their burghers. If the enemy continued to capture burghers as they had done during the last year, then they would within a short time become too weak to effect anything. They had indeed during the last year had such successful engagements that they could hardly account for it themselves, but it was also equally true that the best part of their country was being made uninhabitable for their commandos. In the High Veld there was no more food for their people. They could not bring food there either, because if wagons with provisions were sent thither the enemy captured the greater part of them. He had already informed his Government and General de la Rey that he would be obliged to give up certain portions of the country, and they would have to discuss whither the commandos of those parts had to go.

How must this war end? Must they wait until everyone had been captured? or should they, for the sake of their people, adopt another course? His Government, his officers, and he himself, could say: "Let the enemy carry out their proclamations concerning us. We have nothing more to lose. We have fought for nothing else than our country, and wish to have that back or nothing else. Banish us, banish the Government." But then, what about the People? The People could not be banished. Was there now not still a chance to save something for the People? He considered this point worthy of consideration. For their Leaders he thought it would be easier to continue till they died a manly death, or till they were banished to far-off islands, than to submit to the yoke of the enemy; but they had a duty towards the People.

The State Secretary thought it would be best for the People themselves to elect persons to make their views clear to the Government.

At this juncture a telegram was received from Lord Kitchener stating that he was prepared to have a personal interview with the two Republican

Governments, and requesting them to come to Pretoria that same evening.

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CHAPTER III.

FIRST NEGOTIATIONS AT PRETORIA.

Early the next morning, Saturday, April 12th, 1902, the two Republican Governments, travelling in separate trains, arrived at Pretoria, and at nine o'clock a meeting with Lord Kitchener took place in his house.

Lord Kitchener expressed the desire that they should first confer informally, and that the Secretaries should withdraw.

The Secretaries then left the chamber, and therefore the discussion that ensued between Lord Kitchener and the Governments cannot be communicated officially.

However, we publish the following report, embracing what took place at the interview on April 12th, 1902, with Lord Kitchener, and at the interview with Lord Kitchener and Lord Milner on April 14th and following days, which was taken down by the Rev. J. D. Kestell immediately afterwards, as communicated to him by General Hertzog. The report was immediately revised by President Steyn and by the Government Secretary, Mr. W. J. C. Brebner. This report can therefore be considered as secondary evidence of great value.

After a few everyday observations, President Steyn remarked that Lord Kitchener might begin.

Thereupon Lord Kitchener began. He spoke in the tone of a person who had a grievance. He wished, he said, to say something concerning what he had been reported as having said in February, 1901, when he negotiated with General Louis Botha. In connection with those negotiations, he declared that he had been misrepresented, wrong motives having been imputed to him. It had been said, for instance, that he had aimed at the destruction of the Boers. He could, however, assure them that no such thing had ever been his intention. Those who said so grossly misrepresented him. (Whether what he said was aimed at General Botha, nobody can say—he mentioned no names. He spoke, however, in the tone of a person who considered that he had been unfairly treated.) "But," he suddenly said, "that

is past. I only say this because no official minutes are being kept, everything must take place here informally and in a friendly manner ... I understand that you have something to propose. You can do so now."

Acting President S. W. Burger then introduced the question. He said that both the Governments had drawn up a proposal at Klerksdorp, and then proceeded to read the proposal, article by article.

(State-Secretary F. W. Reitz acted as interpreter between the two parties.)

Then President Steyn spoke. He thanked Lord Kitchener for the readiness with which he had consented to meet the Governments, and assured him that they were earnestly desirous that the war should cease. He also wished, he said, to make an explanation, and this was with respect to a misunderstanding which the British Government was apparently labouring under in regard to the position of the Deputation in Europe in relation to the Leaders of the burghers in South Africa. From the correspondence of Lord Lansdowne with the Netherlands Government, it seemed as if the Government of His Britannic Majesty were in doubt as to whether the Deputation in Europe still represented the Boers in the field. That they still represented the Boers President Steyn declared was most certainly the case. They still enjoyed the fullest confidence of both Governments. Coming to the matter at issue, the President said that the Governments and the People were very desirous that Peace should be restored. But the Peace that was to be restored should be a lasting one, and that was the reason for the proposals being of the nature submitted by the Governments. They had come there to attain no other object than that for which the People had fought until this moment.

Here Lord Kitchener interrupted President Steyn with a question which seemed to express great astonishment. He drew up his shoulders, threw his head forward to one side, and asked, "Must I understand from what you say that you wish to retain your Independence?"

President STEYN: Yes, the people must not be reduced to such a condition as to lose their self-respect, and be placed in such a position that they will feel themselves humiliated in the eyes of the British.

Lord KITCHENER: But that could not be; it is impossible for a people that has fought as the Boers have done to lose their self-respect; and it is just as impossible for Englishmen to regard them with contempt. What I would advise you is, that you submit to the British flag, and now take advantage of the opportunity to obtain the best terms as regards self-government and other matters.

President STEYN: I would like to know from Your Excellency what sort of self-government it would be? Would it be like that of the Cape Colony?

Lord KITCHENER: Yes, precisely so.

President STEYN: I thank Your Excellency. I put the question merely for information.

Lord Kitchener then proceeded to say that one should bear in mind the case of the British Colonies. "The Colonies," he said, "were proud of their own nationality. If anyone, for instance, asked a Colonist in Australia whether he was an Englishman, then his answer would be, 'No, I am an Australian.' And yet such a man felt himself to be one with the British nation, and was proud to call himself a British subject."

President Steyn then said that this comparison would not hold. In the case of British Colonies one had to do with communities which from the beginning had grown up under the British flag, with all the limitations attached thereto. These Colonies had not possessed anything which they had had to surrender, and having had nothing to lose they could have nothing to complain of. In the case of the Boers it was quite different. The Afrianders in the two Republics were an independent people. And if that independence were taken away from them they would immediately feel themselves humiliated, and a grievance would arise which would necessarily lead to a situation similar to that now existing in Ireland, which situation was mainly due to the fact that Ireland was a conquered country.

Lord Kitchener replied that Ireland could not serve as a parallel, seeing that it had never had self-government.

To this President Steyn replied that the Irish had self-government, and that in a measure that had never yet been granted to any Colony, seeing that they were represented in the Imperial Parliament. Their power also in this respect was so great that the Irish vote, under a strong man like Parnell, could turn the scale in a Parliamentary question one way or another.

Lord Kitchener then said that he was himself an Irishman, and therefore better able to judge in regard to Irish affairs. He proceeded to say that what was contemplated by the British Government was self-government for the Boers, preceded by military rule for a certain period; that this military rule as a preliminary measure was indispensable at the commencement of Peace for the establishment and maintenance of law and order; that as soon as this period had elapsed self-government would be substituted for it, and that then the Boers could annul any measure or law made by the military authorities. He remarked, however, that he felt sure that much that was good would be introduced by the military government, which they would not desire afterwards to rescind. But the People would have it in their power to decide in every case.

A desultory discussion followed now, and Lord Kitchener urged that the Governments should make a proposal in accordance with what he had suggested; and both the Presidents replied that the Governments, according to the constitutions of the Republics, were not qualified to make any proposals whereby the Independence of the Republics would be touched.

When Lord Kitchener saw that he could make no progress he moved about impatiently in his chair, and said, again with the same gesture as before: that if the Governments wished he would telegraph their proposal to his Government, but he could surmise—he did not know officially what they would do in England—what he said was merely his own opinion—but he could surmise what the answer would be.

The Presidents then expressed their desire that Lord Kitchener should transmit the proposal that had been made by them; but the latter thought that it was not desirable to communicate it in the form in which it had been laid before him. He thought it could be drafted in a more acceptable form. Thereupon he took a pencil and roughly drafted the preamble of a cablegram. He read it aloud, and asked whether anybody wished to make

any remark upon it, in order to make the cablegram still more acceptable, and whether they wished to appoint anyone for this purpose. Mr. Reitz was nominated, and the preamble of Lord Kitchener, with the points of the proposal (modified, as will be observed), was thus drawn up, approved of by all, and, on the adjournment of the meeting, transmitted to the British Government.

The telegram read as follows:—

FROM LORD KITCHENER TO SECRETARY OF STATE.

PRETORIA,
April 12, 1902.

"... The Boer Representatives wish to lay before His Majesty's Government that they have an earnest desire for peace, and that they have consequently decided to ask the British Government to end hostilities and to enter into an agreement of peace with them. They are prepared to enter into an agreement by which, in their opinion, all future wars between them and the British Government in South Africa will be prevented. They consider this object may be attained by providing for the following points:—

1. Franchise.
2. Equal rights for Dutch and English languages in educational matters.
3. Customs Union.
4. Dismantling of all forts in Transvaal and Free State.
5. Post, Telegraph, and Railway Union.
6. Arbitration in case of future differences, and only subjects of the parties to be the arbitrators.
7. Mutual amnesty.

... But if these terms are not satisfactory, they desire to know what terms the British Government would give them in order to secure the end they all desire."

After this conversation with Lord Kitchener the two Republican Governments consulted with each other, and agreed that when they again met the representative of the British Government they would very clearly declare their standpoint, namely, that in the matter of Independence it was the People alone that could constitutionally decide.

Early on Monday morning, April 14th, Lord Kitchener sent to the members of both Governments a copy of the following cablegram which he had received from his Government. He also stated that Lord Milner would take part with him in the conference.

The cablegram was as follows:—

FROM SECRETARY OF STATE TO LORD KITCHENER.

LONDON,
April 13, 1902.

"... His Majesty's Government sincerely share the earnest desire of the Boer Representatives, and hope that the present negotiations may lead to that result. But they have already stated in the clearest terms, and must repeat, that they cannot entertain any proposals which are based on the continued Independence of the former Republics which have been formally annexed to the British Crown. It would be well for you and Milner to interview Boer Representatives and explain this. You should encourage them to put forward fresh proposals, excluding Independence, which we shall be glad to receive."

At ten o'clock the members of the two Republican Governments again assembled in Lord Kitchener's house.

Lord Milner entered the room after the members of the Governments had assembled, and was introduced to them by Lord Kitchener. He (Lord Milner) greeted the Presidents as "Mr. Steyn and Mr. Burger." But later, during the conference, he addressed each (was it inadvertently?) as "President."

Before the conference was continued, Lord Milner spoke a few words. He also wished to remove erroneous impressions. He declared that it had been alleged that he was not well disposed towards the Boers. That was incorrect. He could give the assurance that he wished to promote the interest of the Boers; and that he, like themselves, desired peace.

Thereupon Lord Kitchener laid on the table the cablegram, dated April 13th, from the British Government. Without entering into discussion on it, the President pointed out that it was impossible for the Republican Governments to act in accordance with the desire of the British Government, seeing that, as had already been said on Saturday, they were not qualified to discuss the question of Independence before having consulted the People.

Lord MILNER: May I ask if the prisoners-of-war will also be consulted?

President STEYN: Your Excellency surely cannot be in earnest in putting this question?

Lord MILNER (in a tone of annoyance): Yes, certainly.

President STEYN: How can the prisoners-of-war be consulted?—they are civilly dead. To mention one practical difficulty: suppose the prisoners should decide that the war should be continued, and the burghers on commando that it should not—what then?—

Lord Kitchener and Lord Milner, seeing the absurdity of it, laughed aloud. They quite agreed with President Steyn, and admitted that the difficulty raised by him was to the point.

Lord Kitchener, however, wished to draw attention to the word "excluding" in the answer of the British Government. He put it that the words "excluding Independence" rendered a discussion, as to Dependence or Independence, superfluous. The question should now be discussed as if Independence were finally excluded; and assuming this, such proposals should be made as it was thought would be acceptable as well for the Boers as for the British Government.

President Steyn then pointed out again that it was beyond the power of the Government to do so. They had no right to make a proposal that even assumed the exclusion of Independence.

Lord Kitchener and Lord Milner here again agreed with the President. Both said at the same time, "We agree—we agree."

Meanwhile it had been urged several times that Lord Kitchener should request his Government to make such proposals as might be regarded as some measure of compensation, and which could, as such, be laid before the People, in case the question of surrendering their Independence were laid before them. This looked as if the Republican Governments were convinced that their cause was hopeless, and as if they, not being competent to sacrifice the independence, only waited for the decision of the people on that point. The fact, however, is that the members of the Governments never thought of such a thing, and that they were convinced that if they consulted the People, the People to a man would say: "We want to retain our Independence, and if England does not agree to that, we shall go on with the war."

The Representatives of the British Government would not, however, be persuaded that their Government should make any proposals, and after much discussion Lord Milner said that it appeared to him that they had come to a "dead-lock."

"It seems so to me too," said Lord Kitchener, "and that is just what I wish to avoid. Would the gentlemen not," he continued, "first consult about this privately? If so, Lord Milner and I can retire from the room for a while, and the result of your deliberations can, when you are ready, be communicated to me."

It was then agreed to adjourn till three o'clock in the afternoon.

At three o'clock they again met the Representatives of the British Government.

President Steyn then began by saying (in the spirit of the resolution that had been taken), that the Republican Governments, having taken the reply

of the British Government into consideration, had concluded that they could make no proposal on the basis therein suggested; but as they were desirous of seeing Peace restored, they requested (1) that one of their delegates [in Europe] should obtain a safe-conduct to come hither, and that, if it were deemed inadvisable to allow him to return, he might remain somewhere in South Africa, on parole, till the war was over; (2) that an armistice should be agreed upon in order to enable the Republican Governments to consult the People regarding the question of Independence.

Lord Kitchener said, "This comes as a surprise on us!"

The question as to allowing a member of the Deputation to come over was now left unanswered. It had already been discussed in the forenoon, and then Lord Kitchener had said, that it concerned a military question regarding which he himself had to decide, and that he could not grant the request, because it would be an exceptional mode of proceeding to which he could not consent.

As to an armistice, he now also at first said nothing; but after some moments' reflection he said, as if the thought had just occurred to him, that it seemed better for him to ask his Government to make proposals which could be regarded as compensation to the Boers for the surrender of their Independence.^[1] What he suggested was, of course, immediately accepted, and the following cablegram, drafted in accordance therewith, was sent by him to his Government:—

FROM LORD KITCHENER TO SECRETARY OF STATE.

PRETORIA.

April 14, 1902.

"A difficulty has arisen in getting on with proceedings. The Representatives state that constitutionally they have no power to discuss terms based on the surrender of Independence, inasmuch as only the burghers can agree to such a basis, therefore if they were to propose terms it would put them in a false position with regard to their people. If, however, His Majesty's Government could state the terms that, subsequent to a

relinquishment of Independence, they would be prepared to grant, the Representatives, after asking for the necessary explanations, without any expression of approval or disapproval, would submit such conditions to their people."

On the following (Thursday) morning, April 17th, Lord Kitchener requested the members of the Republican Governments to meet him again, and laid before them the following cablegram which he had received the previous day:—

FROM SECRETARY OF STATE TO LORD KITCHENER.

LONDON,
April 16, 1902.

"We have received with considerable surprise the message from the Boer leaders contained in your telegram. The meeting has been arranged at their request, and they must have been aware of our repeated declarations that we could not entertain any proposals based on the renewed Independence of the two South African States. We were therefore entitled to assume that the Boer Representatives had relinquished the idea of Independence and would propose terms of surrender for the forces still in the field. They now state they are constitutionally incompetent to discuss terms which do not include a restoration of Independence, but ask us to inform them what conditions would be granted if, after submitting the matter to their followers, they were to relinquish the demand for Independence.

"This does not seem to us a satisfactory method of proceeding, or one best adapted to secure at the earliest moment a cessation of the hostilities which have involved the loss of so much life and treasure. We are, however, as we have been from the first, anxious to spare the effusion of further blood and to hasten the restoration of peace and prosperity to the countries afflicted by the war, and you and Lord Milner are authorised to refer the Boer leaders to the offer^[2] made by you to General Botha more than twelve months ago, and to inform them that although subsequently great reduction in the strength of the forces opposed to us and the additional sacrifices

thrown upon us by the refusal of that offer would justify us in proposing far more onerous terms, we are still prepared, in the hope of a permanent peace and reconciliation, to accept a general surrender on the lines of that offer, but with such modifications in details as may be mutually agreed upon."

The conference was not long. The Governments left the room to consult with one another. They resolved again to ask Lord Kitchener that a member of the Deputation should be allowed to come over to them, and that an armistice should be agreed upon, to enable them to consult the people.

On returning they submitted to Lord Kitchener and to Lord Milner as their reply the following resolution, which they had taken at their private conference:—

"The Governments, considering that the People have hitherto fought, and sacrificed everything for their Independence, and that they constitutionally have not the power to make any proposals affecting the Independence, and since the British Government now ask for other proposals from them, which they cannot make without having previously consulted the People, they propose that an armistice be agreed upon to enable them to do so. At the same time they request that a member of the Deputation in Europe should be allowed to come over to see them."

Lord Kitchener, without hesitation, replied that considering the matter from a military point of view he could by no means allow one or more of the members of the Deputation to come to South Africa. He asked, why that should be done, as there was really nothing happening in Europe that could help the Boers. This, he said, the Governments could see for themselves from the newspapers. He could also give them the assurance of it on his word of honour. Lord Kitchener also gave his decision with regard to an armistice. He could not grant it; but said he was willing to do what he could. He was prepared to give the Governments every possible opportunity and assistance to enable them to obtain the views of the people, by means of delegates, as requested by them. For that purpose he would give the Generals the use of the railway and telegraph. They could go to the people, and call them together to meetings where they could ascertain what the burghers thought on the matter in question, and elect delegates.

The Republican Governments then decided to lay the whole matter before their people, who would elect delegates, to decide as to the continuance or otherwise of the war, and to instruct their Governments in accordance with the decision to be taken by them.



SAFE CONDUCT available till 15th May, 1902.

ARMY HEADQUARTERS, SOUTH AFRICA.

PRETORIA. 18th April, 1902.

SAFE CONDUCT is hereby given to *General*
Lucas Meyer + W. J. C. Kragh and party,
to proceed fully armed to *Lydenburg*
and thence to visit and hold meetings in the following Districts
in connection with a meeting to be held at Vereeniging on or
about 15th May, 1902.

Lydenburg and Middleburg.

Commanders of posts in these Districts will be good
enough to afford the above named Officers every facility for
the purpose set forth, and will transmit at once any telegram
addressed by them to Lord Kitchener.

Kitchener

General.

Commanding-in-Chief The Forces in South Africa.

*Facsimile of Safe-Conduct granted to Members of the Republican
Governments by Lord Kitchener.*

It was decided that the South African Republic and the Orange Free State should each elect thirty delegates. This division was adopted irrespective of the number of burghers in the field in the respective Republics, because each Republic was considered as a separate Power.

A meeting then took place between Lord Kitchener and Generals Botha, de Wet, and de la Rey, at which it was decided where the various meetings would be held in the two Republics for the purpose of electing delegates. Lord Kitchener also undertook not to operate in the vicinity of the places where the various meetings would be held during the time of the meeting, and further that he would attack no commandos of which the Chief Officer might be elected as a delegate, provided the persons who conducted the meetings notified him of the election of such Officer.

It was further decided that the Delegates would meet at Vereeniging on Thursday, May 15th, 1902. A promise was also given that the Government Camps would not be attacked until the meeting began at Vereeniging on May 15th.

In the Orange Free State, Chief Commandant de Wet and General Hertzog conducted the meetings, at which the elections took place. In the South African Republic these meetings were conducted as follows:—On the High Veld by the Commandant General; in the Western districts by the Acting State President and General J. H. de la Rey; in the North-eastern districts by General L. J. Meyer and Mr. J. C. Krogh; and in the districts of Zoutpansberg and Waterberg by State Secretary Reitz, the Assistant State Attorney L. J. Jacobsz, and General C. F. Beyers.

The districts were represented as much as possible in proportion to the numerical strength of the various commandos.

Each of the Leaders who conducted the meetings was supplied with a *résumé* of the negotiations as set forth above, as well as with a copy of the Peace proposals made by Lord Kitchener to General Botha in March, 1901 (known as the "Middelburg Proposals"), which documents were read out to the burghers at each meeting.[\[Back to Contents\]](#)

CHAPTER IV.

VEREENIGING.

On the morning of Thursday, May 15th, 1902, the members of both the Governments and all the delegates had arrived at Vereeniging, and business was at once proceeded with.

Tents, &c., had been pitched there by Lord Kitchener for their accommodation during the deliberations. In the middle of this camp stood a large tent, which could easily accommodate the sixty representatives, and the members of the Republican Governments. On the one side were the tents for the Government and delegates of the Orange Free State, and on the other side for the Government and delegates of the South African Republic.

Erd
Van Speciale afgevaardigden naar het
Congres te Vereeniging op 15 Mei 1902.

Wij ondergetekenden zweren plechtiglyk
dat wij als Speciale Volksvertegenwoordigers ons
Volk en Land en Regering getrouw zullen zijn
en dienen, en onze plichten naarstiglyk zullen
betrachten met de noodige geheimhouding daart.
aan verbonden, — alles zooals betaamt getrouwe
burgers en vertegenwoordigers van het Volk.

Zoo wenschlyk helpe ons God almachtig!

Vereeniging, Z. a. R.
15 Mei 1902

C. J. Bouts
H. J. D. Bosman
Chris. Botha.

C. H. L. L. L.
J. J. L. L.
J. J. L. L.

C. B. L. L. L.
J. J. L. L.

J. J. L. L.

J. J. L. L.
J. J. L. L.

J. J. L. L.

J. J. L. L.

J. J. L. L.

J. J. L. L.

Handtekening van de afgevaardigden
15 Mei 1902
J. J. L. L.

2.

Ed
van Speciale afgevaardigden naar het Congres
te Krenning op 15 Mei 1902.

Wij ondergetekenden zwaren plechtiglyk dat
wij als Speciale volksvertegenwoordigers ons volk en
Land en Regering getrouw zullen zijn en dienen, en onze
plichten naarstiglyk zullen betrekken met de noodige
geheimhouding daaraan verbonden, — alles zooals behoort
getrouwe burgers en vertegenwoordigers van het volk.
Zoo waerlyk helpe ons God almachtig!

Vereniging Z.A.R.
15 Mei 1902

B. J. van der Merwe
J. C. van der Berg

A. J. de Vries

P. R. van der Vliet

J. H. van der Vliet

J. P. van der Vliet

P. J. van der Vliet

B. J. van der Vliet

D. J. van der Vliet

J. H. van der Vliet

A. J. van der Vliet

J. P. van der Vliet

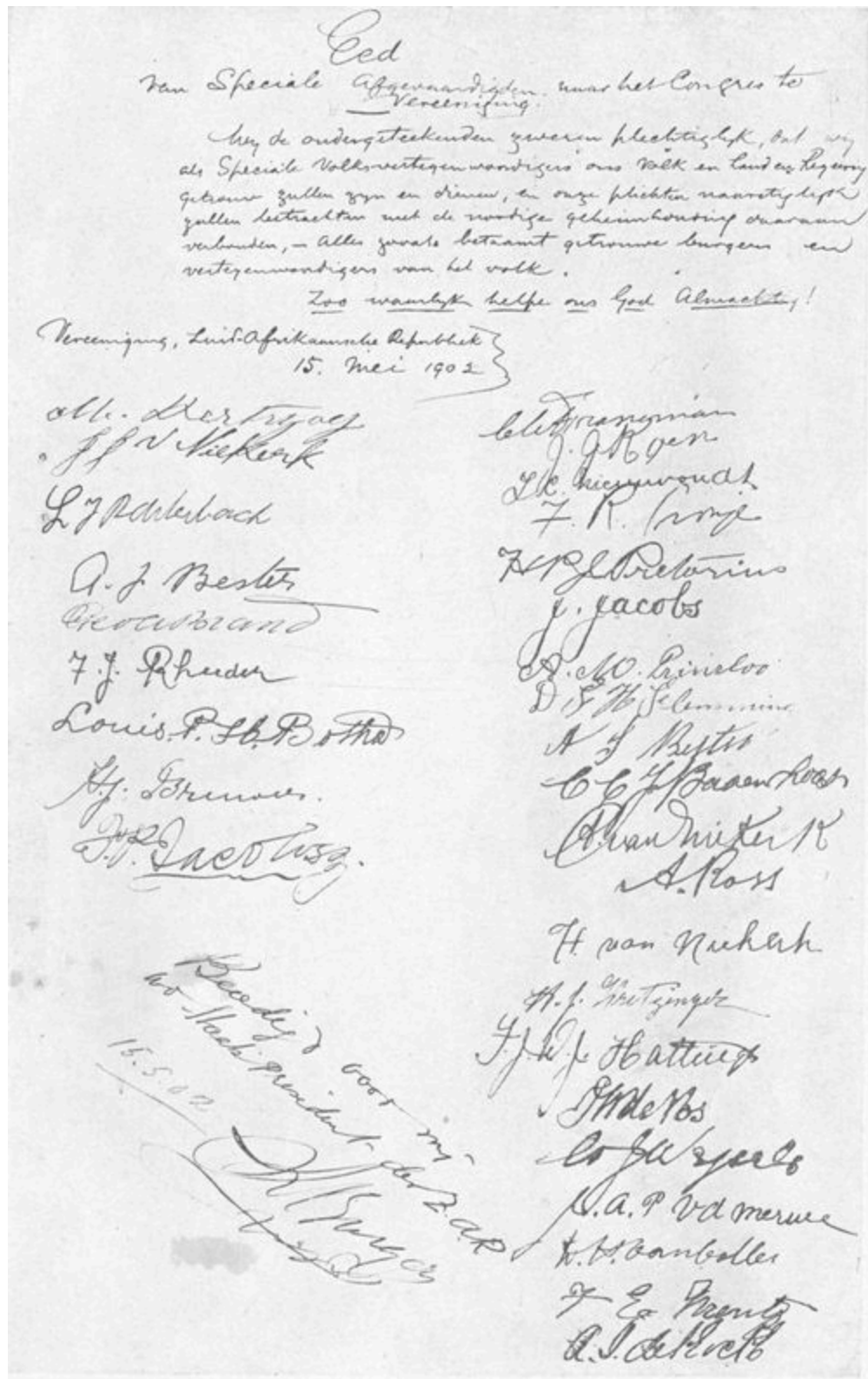
P. R. van der Vliet

J. H. van der Vliet

J. P. van der Vliet

Becedig voor my N. Burger
waarmande Haak President des
Z.A.R.
15/5/02
J. P. van der Vliet

*Facsimile of the Oath subscribed to at Vereeniging by the Delegates of
the South African Republic.*



Facsimile of the Oath subscribed to at Vereeniging by the delegates of the Orange Free State.

The following delegates represented the South African Republic:—

NAME.	COMMANDO REPRESENTED.
1—General H. A. Alberts	Heidelberg.
2—Commandant J. J. Alberts	Standerton and Wakkerstroom, south-west of the Natal Railway.
3—Commandant J. F. de Beer	Bloemhof.
4—General C. J. Brits	Standerton.
5—Acting Landrost H. J. Bosman	Wakkerstroom.
6—General Chris. Botha	Swazieland, and portion of State Artillery under Captain von Wichman.
7—C. Birkenstock	Vryheid.
8—Assistant-Commandant General C. F. Beyers	Waterberg.
9—Field-Cornet B. H. Breytenbach	Utrecht.
10—J. de Clercq	Middelburg (south of railway).
11—General J. G. Cilliers	Lichtenburg.
12—Field-Cornet T. A. Dönges	Heidelberg (town) and Corps Cpts. Hindon and McKenny.
13—Commandant H. S. Grobler	Bethel.
14—J. L. Grobler	Carolina.
15—General J. N. H. Grobler	Ermelo.
16—Field-Cornet B. J. van Heerden	Rustenburg.
17—Captain J. F. Jordaan	Vryheid Corps and First Scouting Corps.
18—General J. Kemp	Krugersdorp.
19—General P. J. Liebenberg	Potchefstroom.
20—General C. H. Muller	Boksburg and Middleburg (north of railway).

- 21—J. Naudé Pretoria (town) and detached
Commando under General de la Rey.
- 22—Commandant D. J. E. Pretoria (south of railway).
Opperman
- 23—Field-Cornet P. D. Roux Marico.
- 24—Commandant D. J. Lydenburg.
Schoeman
- 25—Landrost Stoffberg Zoutpansberg.
- 26—General S. P. Du Toit Wolmaransstad.
- 27—Commandant P. L. Uys Pretoria (north of railway).
- 28—Commandant W. J. Johannesburg.
Viljoen
- 29—P. R. Viljoen Heidelberg.
- 30—Field-Cornet B. Roos Piet Retief.

The following delegates represented the Orange Free State:—

- 1—Assistant-Chief Boshof, Hoopstad (west),
Commandant G. C. F. Bloemfontein, Winburg, and
Badenhorst Kroonstad.
- 2—Commandant A. J. Bester Bethlehem.
- 3—Commandant A. J. Bester Bloemfontein.
- 4—Commandant L. P. H. Harrismith.
Botha
- 5—Assistant-Chief Bethulie, Caledon River, Rouxville,
Commandant G. A. Brand Wepener, and Bloemfontein (east).
- 6—Commandant H. J. Bruwer Bethlehem.
- 7—Commandant D. H. van Heilbron.
Coller
- 8—Commandant F. R. Cronje Winburg.
- 9—Commandant D. F. H. Hoopstad.
Flemming
- 10—Assistant-Chief Winburg and Ladybrand.
Commandant C. C. Froneman
- 11—Assistant-Chief Kroonstad (east) and Heilbron.
Commandant F. J. W. J.

Hattingh

12—Commandant J. A. M. Philippolis.
Hertzog

13—Commandant J. N. Boshof.
Jacobs

14—Commandant F. P. Harrismith.
Jacobsz

15—Commandant A. J. de Vrede.
Kock

16—Commandant J. J. Koen Ladybrand.

17—Field-Cornet H. J. Kroonstad.
Kritzinger

18—Commandant F. E. Heilbron.
Mentz

19—Commandant J. A. P. van Heilbron.
der Merwe

20—Commandant C. A. van Kroonstad.
Niekerk

21—Commandant H. van President Steyn's Guard.
Niekerk

22—Commandant J. J. van Ficksburg.
Niekerk

23—Assistant-Chief Philippolis, Fauresmith, Jacobsdal,
Commandant T. K. and portion Bloemfontein.
Nieuwoudt

24—Commandant H. P. J. Jacobsdal.
Pretorius

25—Assistant-Chief Bethlehem and Ficksburg.
Commandant A. M. Prinsloo

26—Commandant L. J. Bethlehem.
Rautenbach

27—Commandant F. J. Rouxville.
Rheeder

38—Commandant A. Ross Vrede.

29—Commandant P. W. de
Vos Kroonstad.

30—Assistant-Chief
Commandant W. J. Wessels Harrismith and Vrede.

At the request of the Government of the South African Republic, and with the assistance of Lord Kitchener, General J. C. Smuts, the State Attorney, had also come from the Cape Colony to assist his Government as legal adviser.

At eleven o'clock all the delegates met in the large tent and took and subscribed to the following oath before the Acting State President of the South African Republic:—

OATH.

"We the undersigned swear solemnly that we, as special representatives of the people, will be faithful to our people and country and Government, and serve them faithfully, and that we will diligently perform our duties with the necessary secrecy, as behoves faithful burghers and representatives of the people. So help us God Almighty.

"Vereeniging, South African Republic, May 15th, 1902."

After a few matters concerning the conduct of the meeting had been settled, a discussion arose on the question whether the representatives had come with definite instructions from their electors or whether they should decide here for the people according to circumstances.

President Steyn, Chief Commandant de Wet, and General de la Rey thought that the delegates had definite instructions.

Commandant-General Botha said that before they separated at Pretoria the understanding was that the delegates should decide here at Vereeniging. It could not be expected that the people could give them definite

instructions, because they were not fully acquainted with the circumstances all over the country. Here the delegates should ascertain from the Governments and from their fellow-delegates what the condition was in both the Republics and in the Cape Colony, and then, taking everything into account, come to a decision.

General Meyer was also of opinion that the delegates could not be tied. Suppose, for instance, that the Governments could retain the independence of the Republics by surrendering a portion of their territory, then those delegates who had a definite instruction to vote only for independence could not vote for such a surrender, because that would not be the maintenance of their full independence. And then at the elections the leaders had also told the people that the Governments could not communicate everything to them, but that they would do so to the delegates here.

President Steyn remarked that the meeting stood before an accomplished fact, from which they could not get away, because as far as he knew the most of the delegates had definite instructions how to vote.

General de la Rey said that if they still had hopes of retaining their independence, it was a good thing that the delegates had definite instructions, because these instructions were in the most cases to retain independence. This the enemy knew, and therefore the Republican Governments had so much more power.

Acting State President Burger thought that the matter was fraught with danger on both sides. If, for instance, the majority of the representatives had been instructed to vote for terms, this would hamper the Governments very much if the enemy came to know about it. On the other hand, if it was decided here to continue the war, it would be said that the leaders kept the people in the field. Where he had been, the people had unanimously decided to give up everything, but not the independence. However, they were now together to get a general view of their whole position, and each one should then decide as he thought proper, unto which decision the minority must bow.

General Hertzog said that he had acted as General Botha had done. Where he had conducted elections the burghers had left everything in the hands of their representatives. These should know how to justify to their electors the vote which they would cast.

General Botha asked what the delegates came to do? On the basis of their independence the British did not wish to negotiate. The representatives should thus decide whether the people could continue with the struggle, or whether they should come to terms with the enemy. The people themselves could not take a proper resolution because they were not properly informed.

General Hertzog said that this was a legal matter. It was a legal principle that a delegate could not be considered a mere mouthpiece of his constituents, but that in matters of a public nature he was virtually a plenipotentiary. The delegates could thus form their opinions according to what they learnt here, provided they adhere to what was the spirit of the people, and provided they are convinced from the facts laid before them, that if those facts were known to the people, the people would have instructed them to vote as they did.

General Smuts concurred fully with the opinion of General Hertzog.

As appeared from the disposition of the delegates, they acted in the spirit of this legal opinion.

The Acting State President acted as temporary Chairman, and caused the meeting to elect a permanent Chairman.

The following gentlemen were nominated as candidates:—General Beyers, J. de Clercq, General Brand, General Froneman, and General Wessels.

General Beyers was elected Chairman with 19 votes, while the others obtained 13, 11, 10, and 6 votes respectively.

After a short address, the Chairman adjourned the meeting till the afternoon.

In the afternoon the meeting was opened with prayer by the Rev. J. D. Kestell.

Acting State President S. W. Burger then addressed the meeting as follows:—We are here under peculiar circumstances. Many who commenced this struggle with us are no longer with us. The war has claimed its victims, and many who were highly esteemed by us have fallen or have been captured, or, alas, have become unfaithful. We have only reached the foot of the mountain, and everything now depends upon you as representatives of the people. Here we shall have to decide whether, under the circumstances, we can or must continue the war. We may not deny that our position is very critical and gloomy. Let us conduct ourselves as behoves comrades who have a common cause at heart. We shall have to say much about the future. Opinions will be widely divergent, and therefore it is important that we bear with one another and be not afraid to express our opinions in a manly way. You know what gave occasion for this meeting. A copy of the correspondence between the Netherlands and British Governments was sent to us by Lord Kitchener under instructions from his Government. When the Government of the South African Republic received this correspondence they thought it should be considered as an invitation to negotiate. They also considered that the opportunity should be availed of to discuss matters with the Orange Free State, and requested Lord Kitchener to enable them to meet the Government of that Republic to consider the advisability of making peace proposals to Britain. We met and discussed the matter at Klerksdorp. Then we negotiated with Lord Kitchener and Lord Milner, and the outcome of it all was the document (with the correspondence between the two Governments and the British Government attached), which was submitted to all the commandos. We felt that we had no power to decide with reference to the question of independence, and that it was only in our power to conclude a peace by which the independence would be maintained. As to the independence, only the people could decide. And for that purpose you are here. We, the members of the Governments, are here to give you advice and explanation. As you know, the enemy will not hear of letting us retain our independence, but they are willing to negotiate for terms on the basis of the relinquishment of our independence. If we consider all we have sacrificed and suffered, and for what we have sacrificed and suffered, it is very hard for us to think of giving up our

independence, but we are not here to consult our hearts but our heads. You must now give an account of the condition of our country and of our women and children. You must determine whether, after all the sacrifices that we have made, we are prepared to make further sacrifices. If we have no prospects, we cannot proceed and allow our people to be further exterminated. It will be hard after all that we have done to surrender our independence, but we must consult our heads. The Governments will do nothing without the people, and it is for you now to consider all the circumstances and decide, and if you, for instance, arrive at the conclusion that we have resorted to our last expedient, will it be right to continue? Let each one frankly express his opinion. As far as I am concerned, I do not flinch yet. But I wish to know what the people say. A year ago the Governments decided never to give up the independence, but to continue the struggle until we could do so no longer, and then to surrender unconditionally; but if we become convinced that our strength and resources are exhausted we should consider whether we should not still try to do something for our people. Or shall we continue until all the leaders and many burghers are banished or killed? By a frank expression of opinion we shall be enabled to decide what course to pursue.

Here I must draw your attention to a difficulty that has arisen. Some of you have received definite instructions from the people from which it appears you consider you cannot deviate. Others have received authority to act according to circumstances. Now I believe that this need not cause a difference; in any case let it not cause a split among us. We must be unanimous here, and if we are, then the people will also be unanimous. If we are divided here, what will the people be?

At this juncture a letter was read, written five months before by the Deputation in Europe, and safely brought out by a person whose name was not mentioned. The letter contained much, and maintained, among other things, that in Europe the Boer cause was then more favourable than ever before.

The Chairman now gave the Generals and Delegates an opportunity of laying before the meeting the general condition in their respective divisions.

Commandant General Botha said: In the Utrecht district there are not sufficient mealies to support the commandos long, and then there could be no question of supplying the horses with mealies. There was still a considerable number of slaughter cattle. In Swazieland there was no grain, nor was there any in Wakkerstroom, so that the commandos could not exist there for another month. In Ermelo and Carolina there was still sufficient corn to exist on for some little time, say two or three months, and sufficient slaughter-cattle for the winter, if the cattle and sheep belonging to the burghers were indiscriminately taken. Most of the grain belonged to the Kaffirs. What had been sown was too near the enemy, otherwise they would have provisions for a considerable time still. In Bethal, Standerton, and Middelburg there was no corn whatever, and they could still hold out for one month at the utmost. The Heidelberg and Pretoria commandos have no corn to live on. In the neighbourhood of Boksburg and Springs there was a considerable quantity of mealies—the old mealie-cobs of last year—but the commandos have been squeezed out from those parts by the blockhouses. They had absolutely no slaughter-cattle. In a great area there was no living animal except horses, and when he was with the men a few days ago, three days had passed since they had had meat. All that Middelburg (south-east of the railway) possessed of slaughter-cattle was 36 goats. Wakkerstroom also was entirely without slaughter-cattle. The condition on the High Veld as regards horses was very bad. The burghers were hard pressed by the enemy, and many were unmounted. The horses were now so weak that the commandos could not undertake a long journey. The Kaffir question became daily more serious. Shortly before his departure for Vereeniging 56 burghers were murdered in Vryheid by Kaffirs who came from the English lines. All the Kaffirs in the South-eastern portion of the Republic were more or less under arms, and this had an unfavourable influence on the spirit of the burghers. Furthermore they had a considerable number of families who were in a most lamentable condition. The entire High Veld was divided up by the lines of blockhouses, and the commandos were so cornered that they had continually to cross these lines of the railway, and then a fortnight often passed before the husbands could return to attend to their families. It had happened that women had to flee to Kaffirs to be helped by them. Many were attacked and raped by the Kaffirs. Truly the condition of these women was the saddest thing with which he had had to do in this war.

Coming to the numerical strength of the burghers, they had in the field in the South African Republic 10,816 men, of which 3,296 were unmounted, leaving thus only 7,520 men who were available for use. Since last June their numbers had been diminished by 6,084 men. The most of these had been captured, but the number included the surrenders and killed. They still had about 2,540 families. What their condition was he had already described, and what the difficulties were to support them, the delegates could imagine themselves. Summoning up all in one word the Commandant General concluded by saying that the greatest difficulties lay in the questions concerning horses and food, and the maintenance of the families.

Chief Commandant de Wet said that he would leave it to the delegates who were officers to give an account of the conditions obtaining in their respective districts. They came from far and near, and knew what the condition of matters was. He could, however, inform the meeting that the number of burghers in the Orange Free State was 6,100, of which about 400 were not serviceable. The Basutos were as well disposed towards the Boers as ever before.

General de la Rey said that he did not know exactly what was expected of him, and that it was the duty of the delegates to give an account of the condition of affairs. He could say this, however, that food was scarce in his division a year ago, and that was so still, but no one had suffered hunger yet. If a burgher had no food he had to fetch it from the enemy. He also thought it would be better to leave it to the delegates to give an account of the conditions in their respective divisions.

General Beyers said, I shall be brief. As regards food, we obtain supplies from the hostile Kaffirs, who are all, with the exception of one tribe, in rebellion against us. In Waterberg all the Kaffirs are sitting on the fence, and are in a way still well disposed, so that we cannot take anything from them, but must purchase what we want. What we require in Zoutpansberg we take. The Kaffirs fire on us, but then we shoot back. It is our good fortune that there is no co-operation between the Kaffirs in Zoutpansberg, otherwise they could make matters difficult for us. When the British forces are operating against us the Kaffirs are very troublesome, because the English use the Kaffirs. The greatest difficulties with which we have to

cope are: fever, horse-sickness, and the Kaffirs. Food we have in abundance. I think there is sufficient food in the Zoutpansberg district to support the burghers of the South African Republic and of the Orange Free State for a year. The British, however, are buying up much grain there now at 10s. a bag and removing it.

General Muller remarked that everything was scarce with him, but that the burghers had never suffered hunger yet. He had cattle for two months still, if he slaughtered everything. His great difficulty was in connection with the families when the Kaffirs were rebellious. If provisions became scarce he intended to obtain these from the Kaffirs. In his opinion he could still hold out to the end of the winter.

General Froneman (Winburg and Ladybrand) had no reason to complain. They had sufficient food still. There were many women and children in his division, altogether about 80 families, who had to be supported. The Kaffirs were particularly peaceable, and always prepared to assist in supplying them with clothing out of Basutoland. When he ran short of cattle he took some again from the enemy. He saw his way clear to continue the struggle for another year.

Commandant Hattingh (Kroonstad) informed the meeting that he still had much cattle, sheep and grain, sufficient for a year. The district of Heilbron had been entirely depleted of provisions, but he had supplied them again from the Bethlehem district.

Commandant Badenhorst (portion Bloemfontein, Boshof and Kroonstad) stated that in his districts there were still thousands of cattle and sheep, and therefore he could hold out for another year. The farmers had cattle on their farms, and then there was always a chance of capturing from the enemy. On one occasion he captured 1,500 cattle from the enemy, and he also saw a chance of obtaining cattle by this means for other parts. Hundreds of cattle and thousands of sheep could still be spared in his district for other districts. Grain was not so plentiful as it had been the previous year, but they could still raise so much that they could even supply others.

General Nieuwoudt (S.W. and S. portions of O.F.S.) said that during the last seven months the enemy had destroyed everything in his districts. The

Fauresmith district had been totally devastated. No cattle had been left there. There were only about 70 bags of grain left, but they still managed to live well. He had found out that even when they had nothing they managed to get along. His horses were now in excellent condition. If they could sow he saw a chance of raising food for another year. In his division there were only about three women.

General Prinsloo (Ficksburg and Bethlehem) stated that he would not be speaking the truth if he said that there was no food, in his division. He had no cause for complaint yet on that score. Latterly many forces of the enemy had operated against him, and all the cattle had been removed from the Southern Ward, but in the other Wards there was still much cattle. They could help other districts from there. Unfortunately, however, cattle could not be moved from those Wards on account of the blockhouses. Further, he thought that the Lord would provide for them. Recently one of his Commandants had discovered what he might call a gold mine, in which there were 150 bags of mealies.

General Brand (Rouxville, &c.) said that the enemy had overrun his districts very much, built blockhouses, removed cattle, and destroyed grain. Portions of his division had been totally ruined. Everything had been removed, and not even a sheep was left. It frequently happened that for two or three days they were without food, but then they fortunately captured some food again. There were only nine women in his division. He had the means to continue for another year.

General Wessels (Vrede, Harrismith, and Frankfort) informed the meeting that the Khakis had latterly dealt fearfully with him. They moved up and down in his division, and he thought that nothing would be left, but he always found food still. It was a marvel to him that sheep, cattle and grain were still to be found there. Even if the enemy removed all the cattle he saw a chance of maintaining the struggle on the grain that would be left, and he knew for certain that he would be able to capture much cattle from the enemy. Only recently he had brought 300 head of cattle from Natal, and they had also discovered a cave containing 300 bags of mealies. As regards slaughter-cattle, he thought he had enough to last them for another three months.

Commandant van Niekerk (Vredefort) had to admit that his district had been entirely devastated, and that he had been forced out of it, so that they could neither plough nor sow. However, in Hoopstad and Kroonstad they had sown 35 bags of grain. The enemy had built blockhouses right through the middle of his division. There was no cattle, but he had captured 1,000 sheep and 52 head of cattle, and thought that in some way or other he would still manage to obtain food for another year.

Commandant van der Merwe said that matters with him were much the same as in the districts of Commandant van Niekerk. Everything was scarce, but they had not yet suffered hunger.

General J. C. Smuts related how his expedition to the Cape Colony had originated, and how it had been carried out. Last year, he said, it was the opinion of President Kruger and of their Deputation in Europe that there was good hope for their cause from the Cape Colony. On that ground and also on the reports that they received from there, it was decided to send General de la Rey thither to assume the supreme command as soon as the Cape was strong enough to be considered a third party in the struggle. Later, however, they came to the conclusion that it would be best to act more cautiously, that General de la Rey could hardly be missed in the Western Transvaal, that he (General Smuts) should go with a small commando to ascertain what the possibilities in the Cape Colony were. "I went," he continued, "with 300 men, while 100 men followed me, but 100 men I had to leave behind with General Kritzinger because their horses were too poor. We had a very difficult journey, certainly the most difficult that I and my people ever experienced. I went through the whole of the Cape Colony. I proceeded to Grahamstown, then to Graaff Reinet, and down to the coast again. With a few exceptions I met all the commandos in the Cape Colony. I questioned the leaders and thus came to be well informed on everything. Commandant Kritzinger did not follow me according to agreement, and as I saw that there was a danger of disorder arising I took everything under my command. I found that there were about 1,400 or 1,500 men under arms, and not 3,000 as had been reported. To obtain the exact numbers, however, was almost impossible. Commandant Lotter was captured with his whole commando of 100 men. I have now been in the Cape Colony for about a year, and the number that joined us in that time was about 1,400. The

number of men under arms had thus been doubled, and but for the losses there would now have been 3,000 men. There are now about 2,600 men under my command, but then there is another division sent in by General de la Rey under General de Villiers in Griqualand West, about 700 strong, and another in Bechuanaland under Commandant van der Merwe. There are thus about 3,300 men operating in the Cape Colony, and this does not include the men under Myburgh, Wessels, and van Reenen, of whom I know nothing.

The question now is: What help can be expected from the Cape Colony for our cause? There will be no general rising in the Cape. We had very good expectations, and thought that it would not be difficult to cause a general rising there. The people are very enthusiastic—more so than with us; but they have peculiar difficulties. The first is with reference to horses. The British have taken all the horses that could be used, and shot the useless ones. There is, therefore, a great scarcity of horses in the Cape Colony. And, further, it is extraordinarily difficult for the Colonist to rise if he has to fight on foot with the knowledge that if he is captured he will have to undergo heavy punishment. Unmounted men cannot fight in the Cape Colony. You can operate only with mounted commandos, and as we have no horses we cannot accept a tenth of those who are willing to join us. On account of this deficiency of horses, we cannot expect a general rising. Another great difficulty is the absence of grass. The veld over the entire Cape Colony is overgrown with bushes (scrub). There is no grass as in the Republics. Where you have no forage, therefore, the horses cannot exist. Where I have been latterly there is wheat, and I fed my horses on that, but now the wheat is becoming scarce, and there is no prospect of obtaining any more on account of the proclamations of the British, which prohibit all sowing. We have, indeed, issued a counter proclamation, but that has not helped. The question of horses and forage is thus a great stumbling-block for our cause in the Cape. In my opinion, the small commandos in the Cape Colony have done their best. Three British camps were lately taken by them.

The question now arose whether commandos from the Republics could proceed to the Cape Colony, and whether there was an opening for them there.—Yes, there was an opening, but the difficulty was how to get there. More of our commandos from the Republics would be able to exist in the

Cape Colony if food became too scarce here, but the great trouble was how to get there. The British have now about 50,000 English and Dutch Africanders under arms.—These conditions have led me to the conclusion that there will be no general rising in the Cape Colony, and that the continuance of the war will depend more on the Republics than upon the Cape Colony."

The meeting was then adjourned till the evening.

On re-assembling, the first speaker was Commandant P. L. Uys (district Pretoria), who said that in his commando there were only 153 mounted men; the other 128 burghers were unmounted. There were still about 2,000 head of cattle, and grain enough to last them for a month. All the Kaffirs in his district were hostile, with the exception of the captain Matello. In the portion of Middelburg under him there were 26 mounted men and 38 burghers on foot.

Commandant H. S. Grobler (Bethal) stated that during all the summer he had had no rest. He still had a commando of 150 men, but no food, and he could trek nowhere, because his horses were too poor. Only recently he had to break through a cordon (kraal), and managed to get through with only 153 men, while 63 were captured. The Bethal district had been devastated from the one end to the other. There was no food left for his commandos, nor for the 300 women and children, who were in a pitiable condition. They were not only without the necessaries of life, but also exposed to danger from the Kaffirs, who had already raped some of the women, which drove some of them to take refuge in the blockhouses.

General Chris. Botha remarked that he represented Swazieland. With regard to provisions, the supply of mealies was almost exhausted. They lived on what they could get from the Kaffirs as a favour. There were no more women with them. His commando of 113 men was still in the Piet Retief district. They had no grain, and had to proceed from one Kaffir-kraal to another to purchase food, which required money. However, they still managed to live. In this way he had helped the Transvaal for two and a half years, and now that he heard that there was food in the Orange Free State he would proceed thither and help them for two and a half years. In the Piet Retief district they had grain for about two months, but no cattle, and they

had to live on what they could capture from the enemy. There were 65 families still there, and it was hard to provide for them. Their position was very critical.

Mr. Birkenstock (Vryheid) said that he would go more fully into a few points relating to his district than the Commandant General had been able to do in his general review. In Vryheid during the last six or eight months they had been much harassed by large forces, and the district had been completely devastated. The presence of the families caused the greatest difficulties. Latterly the British refused to receive any more families. They were also continually in danger from Kaffirs, who were decidedly hostile to them. Horses and corn were scarce. But yet, as far as grain was concerned, they would manage, if the enemy did not again make incursions into that district. Recently in the early morning, before daybreak, a Kaffir commando had attacked a Boer commando consisting of 70 men, of whom they had killed 56. The families in that district had said to him: "You must make peace in any case," and he felt it his duty to inform the meeting of this.

General Alberts (Heidelberg) said that for the last twelve months they had had no rest in his district. During the past year they had not been able to plough and sow at all, and a commando could no longer exist there. Three times had they been enclosed in a cordon (kraal), but had fortunately always managed to get out. They had no slaughter-cattle themselves, but had received some from Commandant Roos, of the Orange Free State. His horses were in a most deplorable condition.

Landrost Bosman (Wakkerstroom) informed the meeting how matters stood in the Wakkerstroom district. They were dependent upon the Kaffirs for grain; in fact, for everything except meat. They bartered meat from the Kaffirs for mealies. But this year there were scarcely any mealies, and what there were had been badly spoilt by the enemy. With the supply they had, they would be able to manage for another two months, and out of this the families with them would also have to be supported. The supply of slaughter-cattle was also running short, and the horses were in such a poor condition that they could not be used against the enemy for a fortnight. It would perhaps become necessary for the commando to leave the district,

and then the great question arose: What would become of the families there?

Mr. de Clercq (Middelburg) regretted that he had not the privilege of several members of the meeting of being able to present a rosy report. The portion of Middelburg which he represented was entirely exhausted. They had indeed some grain left, but that would last them for only a short time. They had no slaughter-cattle whatever. With the horses they still had, they could not operate. They were in too poor condition to enable the commando to escape if it became necessary to get out of the way of the enemy. The condition of the burghers was disheartening. If they should have to leave their district it was very doubtful whether they would reach their destination, on account of the condition their horses were in. There were only about 100 burghers left out of 500. They also had about 50 families with them, and these were in a miserable plight. The district would have to be abandoned, and then came the question: What would become of these families? Even now they were very badly provided for. Some women wished to proceed on foot to the British, but he had advised them not to do so until the result of these negotiations were known.

Commandant D. J. Schoeman (Lydenburg) said that until recently they had about 800 head of cattle, but these had all been removed now by the enemy. There was no grain at all. As they had no more food for the men, what would become of the families if the struggle was to be continued?

Commandant D. J. Opperman (Pretoria, South of the railway) gave an account of how matters were situated in that part of the district represented by him. His remarks were to the same effect as those of Commandant Alberts (see above).

General Liebenberg (Potchefstroom) spoke about the commandos of Potchefstroom under his command. During the past eight or nine months blockhouses had been established in his division, and he had only a narrow space of about twelve miles wide where he could exist. A considerable amount of corn had been sown, but their fields had recently fallen into the hands of the enemy, and now everything had been destroyed, burnt, and trampled down by the horses. They had still 93 families. Some women from the Orange Free State had been placed on the boundary between the

districts of Lichtenburg and Potchefstroom by the British. These were in a most deplorable condition, and were almost dying from misery. These women had informed him that unless matters improved they would proceed to Klerksdorp on foot. He had advised them to wait until after the completion of the negotiations. His commando consisted of 400 mounted men and about 100 dismounted. He would be able to continue the struggle for some little time yet, and then he would have to seek salvation elsewhere.

General du Toit (Wolmaransstad) informed the meeting that provisions were very scarce with him, and that they had 500 families to support. The horses were in a very poor condition, but by making *détours* he could always manage to get out of tight corners. His commando was not large—it consisted of only about 450 mounted men—and the cattle they had were in good condition, but grain was scarce.

Commandant de Beer (Bloemhof) stated that he had 444 mounted men and about 165 unmounted burghers. Grain was not plentiful in his district, nor cattle, but Bloemhof had never had much cattle. The families with them were not yet suffering very much from scarcity of provisions, and he thought he would be able to continue the struggle for another year.

General Kemp said that he had under his command portions of the commandos of Krugersdorp and Rustenburg, and portions of the commandos of Pretoria and Johannesburg. In the Krugersdorp district they could not sow any more, and the majority of the cattle had been taken from them. And yet they were not suffering from want. Indeed, he thought they should never be in want if they had such a large commissariat upon which they could draw, namely, the Zoutpansberg district, where General Beyers was in command. He took from the Kaffirs what he required, but what he took was not the property of the natives, but what they had stolen from the burghers. He could hold out for two years longer.

Chief Commandant de Wet asked why those commandos in the eastern portions of the Transvaal could not do the same as those under command of General Kemp, and re-take their property from the Kaffirs?

General Botha replied that the native tribes with which General Kemp had to do could not even remotely be compared with the tribes with which

they had to deal in the south-east. There the natives were in contact with the British. Whatever they looted from the Boers they handed over to the British, who sold the loot. If cattle were therefore taken from the Kaffirs in the south-eastern districts, they would be taking cattle the lawful property of the natives. Besides this, he had to point out that the Zulu was an entirely different kind of native from the Kaffir with whom General Kemp had to do. The Zulus were much stronger, and, further, the Republic had an agreement with the Swazies that they (the Boers) would not trek into their country with a commando to fight against them. They had to govern themselves as long as the war lasted. Most of the cattle of the Swazies also had been moved to behind the Lebombo mountains and to Zambiansland, and were therefore beyond the reach of the commandos.

General Chris. Botha also declared that no cattle belonging to the burghers in the eastern parts of the Transvaal were in possession of the natives.

Mr. J. L. Grobler (Carolina) next related how matters stood in his district. They had always had cattle and grain, but the British had cut off the best part of their fields by means of blockhouses. What they had now sown would stand them in good stead if nothing happened to prevent them reaping. The Kaffirs were not well disposed. He thought they could still hold out for seven or eight months, if nothing unforeseen occurred. They still had 300 horses for the burghers, but they were weak, and there were a good many burghers for whom they had no mounts.

Mr. Naudé said that he was delegated by a portion of the Pretoria commando and by the detached commando under General Kemp. They sowed and reaped as usual. Fortunately he had no women and children to deal with. His commandos had no large supply of cattle, but yet there was no want.

After this the meeting was closed with prayer, and adjourned to the following morning.

FRIDAY, MAY 16TH, 1902.

The delegates met again shortly after nine o'clock.

The meeting was opened with prayer by the Rev. J. D. Kestell.

General Chris. Botha asked whether it was not desirable to attempt to get into communication with the Deputation in Europe.

After some discussion on this matter, the following two proposals were made:—

I. Assistant Chief Commandant Froneman, seconded by Commandant Flemming:—

"That the Republican Governments be instructed to thank the Governments of His Majesty the King of England and of Her Majesty the Queen of the Netherlands, through Lord Kitchener, for interesting themselves in connection with the opening up of peace negotiations, as appears from the correspondence between the said Governments, and to express their regret that His Majesty's Government did not accept the proposal of Her Majesty's Government to place their representatives in Europe, who still enjoy their full confidence, in a position to come to the Republics, and also that Lord Kitchener has refused a similar request made by our Governments."

II. Acting Landdrost H. J. Bosman, seconded by Commandant J. N. Grobler:—

"The Representatives of the people here assembled resolve to record their regret that the request of their Governments to meet one or more of the members of their Deputation had been refused by Lord Kitchener, and instruct their Governments to try to send the Deputation a cablegram informing them that a meeting is now taking place to discuss the possibility of bringing about peace, and further to instruct their Governments to thank the Government of Her Majesty the Queen of the Netherlands for interceding in the interests of peace."

On being put to the vote, the first proposal was carried by 36 votes to 23.

The Chairman now laid before the meeting for discussion the document which had been drawn up by the Republican Governments relative to the negotiations in March and April last, and which had been read to all the commandos at the election of delegates.

Mr. P. R. Viljoen (Heidelberg) then addressed the meeting. He laid stress on the great seriousness of the matter before the delegates. The ground whereon they stood, he said, was holy ground. And, indeed, it was so when they considered how it had been soaked with the tears and the blood of their fathers and of so many others in the present struggle. It was extremely hard for him even to think of relinquishing the independence after all the blood and tears that had been shed, and all the hardships that had already been endured, but from the information given them yesterday it was a matter they had to look in the face. It had been plainly shown that if they wished to continue the war they would be obliged to abandon some ten districts. By doing so they would be more concentrated, and that was exactly what the enemy wanted, for then they would be able to concentrate all their forces against the Republican commandos. According to what had been reported in this meeting, matters appeared to be going comparatively well in the Orange Free State. Here in the Transvaal, however, they were differently situated. The outlook was very dark, and it appeared to him that they should try to end the war. If there was a chance of retaining the independence then they could still continue, and they would be willing to undergo the bitterest suffering. But the question was whether there was any prospect of their retaining their independence. They knew nothing of how matters stood in Europe. The report from the Deputation that had been laid before the meeting was six months old. If there were any events in Europe in their favour it would have come to their knowledge by this time. It was plain that they should try to obtain peace in an honourable way. But how? They should still try to retain their independence, and for that purpose it would be as well if they instructed the Governments to ascertain once more what the British Government would give if they (the Boers) relinquished their independence, and that they should know this before they took a final decision. He did not see much chance to continue the war. Though it was bitter for him to have had to speak as he had done, he had felt that it was his duty to do so.

Mr. de Clercq (Middelburg) said he held the same opinion as the last speaker. They were confronted with great difficulties. The question was whether they should or should not continue the war. It was necessary to look into the future, and if they did so they must ask themselves what would be the consequences of a continuance of the war, and what the consequences would be if they terminated the struggle now. He drew the attention of the meeting to the fact that they had at present about 15,000 men against 250,000 of the enemy. They should also consider what had been said about the scarcity of food and horses and the other difficulties. All these matters made it difficult to prosecute the struggle, and before he could decide in favour thereof it would have to be shown him that the continuance of the war would mean the retention of their independence, and if that could be done, he was prepared to make still further sacrifices. But if there was no probability of retaining their independence, and if by the continuance of the struggle all would ultimately only be killed or captured, could there be a more lamentable termination? He considered that the most sensible course was to save what could still be saved. Their national existence should not be sacrificed. Who knew what was still to fall to the lot of their people in the future? But if everything was eradicated, they would cease to exist as a people. Was it a good thing that they should allow a people that had struggled as the Africander people had done to share such a fate?

Commandant Rheeder (Rouxville) said that though the circumstances were dark, yet there were some rays of light. If, however, they gave up their independence, where then could they look for a ray of light? He was prepared to give his last drop of blood for his country. It had been asked whether they should continue until they were eventually annihilated. But he would ask: Should they not continue until they were all delivered? There were three things possible: deliverance, annihilation, or surrender to the enemy. The retention of their independence must take the first place. They should fight on until they were dead, captured, or delivered.

General Kemp (Krugersdorp) remarked that the matter was most serious. It was beyond doubt that to a certain extent their circumstances were dark. But when they commenced the war the chances were not on their side. They should continue. If they considered what the war had already cost them, how much blood had been shed, they could not give up the struggle. As far

as he was concerned he wished to continue until he was dead or saved. They should not look at the dark side only. In some districts food was indeed scarce, but they could still find food everywhere. Those districts where they were threatened with famine they should give up. So many had been captured or killed, but that gave him so much the more courage. Because the struggle had cost them so much it could not be given up. If once they were vanquished, it was all over with the Africander people, and all chance of a revival would be gone for ever. Why should they not continue to place their trust in God? They had no right to distrust the God Who had helped them hitherto.

Mr. Breytenbach (Utrecht) thought that they should not brag. All this tall talk did not help them. They should consider each other's feelings. He also had received an instruction from the burghers whom he represented, and that instruction was that if he could adduce proofs after this meeting that they were able to continue the war, then Utrecht would continue to fight; but if he could not do that, Utrecht would fight no longer. And he could not. They should take a note of what had been said here yesterday. There were ten districts in the Transvaal that could not keep up the struggle any longer. Could they give up these districts? They should not consult their hearts only, but also their heads, and what did his head tell him? That they could not continue the war. If they decided that the struggle must go on, they should be able to carry out that decision as they had done from the beginning. But they could not. It had been said that they should trust the Lord, but they could not enter into the decrees of Providence. They could to some extent understand what God's answer to their prayers had been. With the Mauser and with Prayer they had commenced the war, and what had God's answer to those prayers been? He had led them on ways on which they had not expected to be led. If they continued now, they would, in his opinion, be dealing a death blow to the nation. They had seen that ten districts could not keep up the struggle any longer; should they now say: "We must continue and leave those districts to their lot?" Would it be right to let those districts, with the men, women and children who were still in them be lost? No; they should try to save what could still be saved.

General P. Liebenberg (Klerksdorp) concurred in the views of Mr. Viljoen and Mr. de Clercq. If they could secure their independence he

would gladly pay for it with his blood. The future appeared dark to him. They should keep their eyes on God, but also use their brains, and consider where their present course was leading them to. The commission he had received from those whom he represented was: "Secure our independence if it is in any way possible, but be careful and see to it that our national existence be not destroyed." If they could not do otherwise they should save what could still be saved, and obtain peace on the best terms.

Commandant P. L. Uys (Pretoria) spoke as follows: Comrades, we are faced with a most serious matter. If we continue the struggle I must leave my district, and hand over the families there a prey to the Kaffirs, because the British will not receive them. My mounted men I can always save, but if I did so what would become of the unmounted men, and what of the women and children? And under these circumstances it is a question whether all the mounted men would follow me. It now rests with the delegates and no longer with the Governments to decide this matter. Never yet have I experienced a day like this, on which I am called to such a great task. This is no time to criticise each other. We cannot blame one another, but must bear with one another. The Bible has been quoted here, but if we do this we must not omit the text in which reference is made to the King who ought to consider whether he was competent to proceed with 10,000 men against him who was marching on him with 20,000 men. A further consideration is, what will become of the widows and orphans if we do not come to terms, and thus no longer remain their natural protectors? Oh, we must open our eyes and observe that God's hand is stretched forth against us, and not continue to add to the number of widows and orphans.

General J. N. H. Grobler (Ermelo) spoke in the same strain.

The meeting was then adjourned until the afternoon.

On resuming in the afternoon, a letter was read from General Malan, who was operating in the Cape Colony, and also one from General Kritzinger. General Malan reported on his operations, and General Kritzinger advised that the struggle be given up.

General S. P. du Toit was the next speaker, and said: The matter before us is so serious that I hardly know how to discuss it. We must bear with one

another and remember that we stand here as responsible people. I have been delegated to this meeting by a portion of the people who have suffered heavily, and I have a definite instruction. The people wish to retain their independence, but if that is impossible, then I am instructed to do the best I can. The state of matters in my division is, indeed, not so bad as to oblige us to give up the struggle, but the question is not only what must I do with a view to the condition in my district alone, but I must also take into consideration how other districts are situated. We must be specially on our guard against disunion. What will the future be if a portion of this meeting decides to make peace and another portion to continue the war? What will be the position of those who return to continue the war? Should we not rather all co-operate to obtain from the enemy what we can, and try to retain a portion of our independence? The eyes of the enemy are upon us, and what will be the effect if we are divided? We must consider whether we should not approach the enemy with proposals, and in that way enter into negotiations with them. If we cannot prosecute the war we must see what terms we can get. Let us, above all, guard against internal disunion. If we as one man can decide to continue the war I shall support the resolution, but if we cannot be unanimous I am in favour of conceding more to the British than what our Governments have already offered. I mean we should do what we can to restore peace, and I would like to add that I am greatly disappointed in regard to the course matters have taken in the Cape Colony. It appears to me that the situation was not properly represented to us from there, but I am glad that we are now well informed.

Mr. F. W. Reitz, State Secretary of the South African Republic, said: The future of our country depends upon this opportunity. It is known what the Governments have already done, and the question I put myself now is whether there is still something that can be offered to the enemy consistent with the retention of our independence, and I think there is. Should we not offer the British the Witwatersrand and Swazieland? We can also sacrifice our foreign policy and say "We desire to have no foreign policy, but only our internal independence." We can then become a protectorate of England. What have we got in the Witwatersrand? After the Franco-Prussian war France surrendered Alsace and Lorraine to Germany to retain her independence. What has the wealth from Johannesburg done for us? That money has only injured the noble character of our people. This is common

knowledge. And the cause of this war originated in Johannesburg. I could adduce more arguments, but let me only say that the money obtained from there was to our detriment. It would now tend to our advantage to be rid of Johannesburg. We shall then have heard the last of Liquor-jews and other matters. I do not grudge England that inheritance. And then what have we in Swazieland? Our object was to get nearer the sea, but I do not believe that even from that point of view it has now any more value for us. We have had more loss than gain from Swazieland. As regards a protectorate, what does that mean? It means that England undertakes the obligation to defend the country against foreign attacks. And with reference to our foreign policy, only difficulties have originated out of that for us. Washington said that his country must have no foreign policy, and his country became strong enough to say that other Powers must not interfere with America.

General Muller (Boksburg) agreed with State Secretary Reitz. If they made a proposal in the terms suggested by Mr. Reitz they would also prove to the world that they were not fighting for gold or for honour, but only to be free. His burghers were prepared to surrender the Witwatersrand and Swazieland, but nothing of their independence. Rather than do that they would fight to the finish.

Field Cornet Roux (Marico) said: My instruction is that I can concede much, but we must retain our independence. I stand or fall by that.

Landrost Stofberg (Zoutpansberg) said: Disunion must not even be mentioned with us. We must strive to be unanimous. I make this remark with reference to what General du Toit said. Zoutpansberg has said to me: "Our independence we will not surrender. We are prepared to concede much, but not that." If we can satisfy the British in some way or other and retain our independence, I will support such a course. Some of the burghers are of opinion that the Gold Fields can be surrendered for a time, and others point out that gold was the cause of the war. The gold has indeed injured us all, and I agree that we can give up the Gold Fields. What has the gold done for us? You may say: "It has enriched us." Yes, but it has been much more of a stumbling block. If there had been no Johannesburg, there would also never have been a war. Is it not better for us to be a poor but independent people than rich and a subject nation? The gold is only a temptation, and

has a pernicious moral influence on our national character. Let the Gold Fields be given up. We shall in any case retain the Johannesburg market.

Commandant Mentz (Heilbron) I must ask the indulgence of the meeting, as I regret that I am not able to present such a rosy report as my fellow delegates from the Free State. From ten to fifteen columns are trekking about in my district, devastating everything. There is but little grain, but my greatest trouble is the families who are still with us. We have 200 families, and how and on what must they live? Some months ago I had 200 burghers. Now I have only 80. If we must continue the war I with my men can leave my district, but what must I then do with my 200 families? My instruction was: "Do not surrender the independence," but more than half the burghers who gave me this instruction have been captured, and subsequently others have asked me to try to arrive at a satisfactory arrangement, and to act according to circumstances. I am at one with the proposal of State Secretary Reitz. Let us even give up a portion of our country if we can thereby retain our independence. I recollect when I was still a child the late President Jan Brand saying: "Give up the Diamond Fields! You will profit more from them than England; you plough and sow and farm." This we can do now, too.

Commandant Fleming (Hoopstad) said that Hoopstad had been considerably devastated, and few cattle had been left, but there were still other cattle with which they had escaped. Matters in his district were not in such a state that they could not continue the war. There was also sufficient game for them to live on. The burghers had said to him: "We have sacrificed wives and children, fathers and mothers, brothers and sisters, money and blood, and if we must now surrender our independence too, we give up everything, and rather than do that we will fight to the finish." However, he had to admit that the burghers were not acquainted with the conditions in other parts of the country and in the Transvaal, and now that he knew what these conditions were he could support the proposal of State Secretary Reitz to give up a portion of the country to save the independence. They should, if possible, make an end to the war out of sympathy with the poor families who suffered so grievously from the enemy and from the Kaffirs.

Acting State President Burger spoke as follows: The Governments must receive an instruction from the delegates after they have heard and considered everything. We should now make a fresh proposal to the British and see what will come of it. If our proposals are rejected then we stand exactly where we were before. If any one of you is attached to his independence, I am too, and I shall very seriously consider the matter before I surrender it. If any one of you has sacrificed everything and is prepared to sacrifice still more I am prepared to do so too. Some say: "We must retain our independence or continue to fight. We can continue the struggle for another six months or nine months or a year." But supposing we did that, what would we gain thereby? Only this, that the enemy would be stronger and we weaker. If I take everything into consideration I must say it appears to me impossible to prosecute the war any longer. We can, indeed, proceed and say: "Let come what will," but who of us can declare to-day with an upright and clear conscience that we can continue the struggle with any chance of success? God works miracles, but who can assure me that He will do so in our case? It is argued that European complications may arise, but that is a mere hope without foundation. We must view the matter from all sides, and there is this other point to which I wish to draw your attention. In a wonderful way the Lord has hitherto preserved and spared us, and kept us standing, so that we are still acknowledged as a party, and can speak and negotiate for our people. Now we should ask ourselves whether this is not the last chance we shall have of being able to do so. If this opportunity is allowed to pass, I fear all chances will for ever be gone for us to negotiate as a party for the entire people. Commandant Rheeders said that we must fight till we are dead, captured, or saved. That would be manly and would redound to the honour of ourselves and of our descendants; but must we act from lust of glory? Would that be sensible and right towards our people? Can we let the people be annihilated for the sake of honour and fame for ourselves? If I sacrifice my person for my people it would bring me true honour, but not otherwise. If after discussion and consideration we become convinced that we can only continue the war for a little while longer, it is our duty to make an end to it now. What would further unnecessary torture avail us? Have we not now arrived at that stage when we should pray: "Thy will be done"? and then when we feel what His will is, surrender ourselves to it? That is a prayer of faith, and one must be prepared to abide by His will. We have already effected supernatural things at which the world stands

amazed. Shall we now allow a people, who have sacrificed even women and children, to be exterminated? If we do not arrive at a proper peace now, then when the last shot shall have been fired, and the war terminates in another way, what will become of our women and children and of our prisoners of war? We shall have rejected the proposals of the British Government, and what right will we have to intercede for these unfortunate people? We must think seriously over this. If we see that we have no ground for hope upon which we can continue the war, then we must now try to get for our people the best that can be got. We were proud and despised the enemy, and is it not perhaps God's will to humble us and cast down the pride in us by allowing us to be oppressed by the English people? The time will come when we shall again exist as a people. If you decide to proceed with the war, I shall stand or fall with your decision, although I would not approve of it. I think we should draft a proper peace proposal, in which we concede as much as possible, in order to retain our independence. If England refuses to accept our proposals we can consider further what course to pursue. Reference has been made to the confiscation of farms, but there can be no confiscation, as long as we are in possession of the whole country. However, if we have to abandon ten districts of the Transvaal, and some in the Orange Free State, then, according to legal advice, those confiscation Proclamations could be carried into effect, and where would we then stand? I say it would be criminal of us to continue the struggle till everything is destroyed and everyone dead if we are now convinced that it is a hopeless struggle. Our people do not deserve to be annihilated.

After this the following proposal was handed in by General Kemp, seconded by Mr. Naudé, which was unanimously adopted:—

"In order to expedite the business this meeting resolves to appoint General J. C. Smuts and General Hertzog as a committee to draft a resolution in consultation with the two State Presidents, and submit same to the meeting to-morrow."

The meeting was then adjourned until the evening at 7.30 o'clock.

After a short service conducted during the adjournment by the Rev. J. D. Kestell, the meeting re-assembled at 7.30 p.m.

General Celliers (Lichtenburg) reported as follows: Circumstances in my district are favourable. We have abundant provisions and our horses are good. The burghers are also well organised. But I wish to take into account the circumstances in which the other districts are situated. My burghers are just at present a little fiery, and say: "Stand firm for the independence." But when they said that, they were not acquainted with the circumstances elsewhere, and the question is: To what extent can the other districts who are worse off than we are, co-operate with us? Well, the other districts say that, if the war is continued they cannot join in maintaining the struggle. I wish to act on the lines that will be best for my people and for the future. Now, what would be best—to say we shall fight to the finish, or to approach the enemy with a proposal, the acceptance of which will preserve us as a people? A further question is: Are we as leaders of the people justified in making further sacrifices? Personally, I must reply: "Yes, certainly, because we commenced with our trust in God, Who has preserved us miraculously hitherto." It was painful to me to hear a comrade say to-day that God's hand was against us. As far as I am concerned I say we must proceed, but as it appears that all of us are not able to keep up the struggle, we must jointly try to pursue a course by which we can in some measure retain our independence. If we give that up, what can we offer instead to the women and children who have suffered so grievously?

General Froneman (Winburg and Ladybrand) spoke as follows: I have not much to say, but it appears to me that matters in my division are viewed too favourably. The condition is not so rosy there as might be deduced from what has been said here. I am, however, tied by an instruction. In a word, my burghers have said to me: "We wish to hear of nothing else but the retention of our independence, and that intact." They do not wish to trample on the blood that has already been shed, but to persevere until deliverance comes. I sympathise with the comrades from those divisions where matters are so serious, but our deliverance is from the Lord. It grieves me to observe a doubt amongst some of us whether God is indeed with us. I would only ask: Has there ever been a greater miracle than this, that we have been able hitherto to maintain the struggle against such overwhelming odds? What has maintained us to this moment? It is the faith of those who in privacy prayed God to ward off the war, and who when they saw that such was not God's will, but that He ordained that there should be war,

trusted in Him, and fought bravely. The Lord has indeed hitherto helped us. The enemy cut us off entirely from the outside world, and yet these two small Republics have been enabled to maintain the struggle. Is that not a marvel? I should like to hear what Generals Botha, de Wet, and de la Rey have to say, for they can throw much light on the subject for us.

Commandant General Botha said: I am glad to have this opportunity of expressing my views. It has been observed that we must not be divided, but when I consider the information that has been given us here, then there cannot but be a difference of opinion, because in those divisions where the circumstances are favourable the delegates cannot flinch at anything. They must declare that they will maintain the struggle for our independence. If the delegates from those divisions, where they cannot hold out any longer, differ from the others with reference to the possibility of continuing the war, we must not ascribe that to indifference or cowardice or slackness, but to facts which have wrought a sincere conviction in them. Where I differ from one or other of you, I do so simply on facts. If I should maintain silence as to the true state of affairs, and matters went wrong later on, I, as Head, could be accused of having suppressed facts. Difference of opinion, however, need not cause any division. We have commenced this war together and prosecuted it with unanimity. There should, therefore, be no mention of discord. It is my duty and the duty of everyone to bow to the decision of the majority. Even though I may differ in opinion, the decision of the majority is my decision.

Some of the speakers have said that they, as delegates, are tied by the instructions received from their burghers, notwithstanding the legal advice given us here, that such an instruction is not binding. If we should adhere to an instruction given to us by a portion of the people, that was not acquainted with the position of affairs over the whole country, then we should not be acting honestly towards that people in general. We stand here before the question whether our people shall die a national death, or whether they shall live, and I am of opinion that no one can judge as to what course we should pursue unless the facts as to the true conditions obtaining over the entire country are laid before him, and only in this meeting will these facts come before us. Let us therefore not say that we are tied by an instruction.

On the great question before us, I would first ask: How are we now situated? For more than two and a half years we have fought for our just rights, and what do we see if we take a retrospective view? Are we making progress, or are we gradually going down the precipice? I have been in correspondence with my officers in all parts of the country, and have received information from them as to the condition of affairs, but I must tell you that from all that information there is nothing to show me that our cause is progressing, not even by the smallest stride. Instead of the large fighting force we had last year, we have now only 10,000 men. In the course of the last year we have lost 6,000 men either through death or capture.

When I consider our decline during the past ten months, I must say that the enemy has in that time learnt to fight better against us, and to do our people more damage. Ten months ago there was not a single blockhouse in my division; now lines of blockhouses intersect the entire division. You can cross these lines only at night, and then only with difficulty. The whole division is cut up into large areas. We are now obliged to split up our forces into small groups, so that the enemy may not be able to ascertain where the commando really is. Through being so intersected by these lines of blockhouses, which we cannot cross by daylight, we run a great risk of being captured, and, indeed, many burghers are captured.

It has been remarked that we can still obtain provisions here and there. Meat is almost our only food now, and everyone knows what it means to cross a blockhouse line with cattle. Latterly the commandos have been supporting themselves principally on cattle looted from the enemy, but recently the enemy has sent almost all their loot cattle down to Natal. The cattle, for instance, that was at Ladysmith has been removed to Estcourt, so that there is now very little opportunity for looting. To a large extent also we have lived on cattle purchased from the Kaffirs, but the enemy has now removed even the Kaffirs with their cattle. The danger is that these districts, forced thereto by hunger, will later be obliged to say, that however bitter, they must conclude peace on any terms. We have tried to obtain cattle from other districts, but that has been proved to be no longer possible. Our position has thus in this respect become much worse. The blockhouses are not the only cause of this, but the decline is also to be attributed to the

weakening of our horses, which are driven about so by the overwhelming force of the enemy, that they are in a very poor condition and weak, the more so because we have no more forage for them.

They are so poor that it is difficult, almost impossible, to travel any distance with them. Another reason is also, that most of the burghers have now only one horse which must always do service, so that there is no chance to let it have a proper rest. It has been suggested that those commandos that can no longer exist in their own districts should proceed to other parts of the country, but I may say that the majority of our horses are not able to cover a long distance. If that is attempted many burghers will be captured on account of their horses giving up.

I always heard that the Cape Colony is waiting for a suitable opportunity to rise in great numbers, but according to information now obtained by me from General Smuts, I am convinced that the cause is hopeless there. General Smuts also says, after having seen our horses, that it is absolutely impossible for us to reach the Cape Colony, as our idea was. We cannot, therefore, rely on the Cape Colony any more. Our cause has been a failure there. Colonials are also so harshly treated that they have not the chance or desire to rise. There are not many Colonists under arms, and it appears to me that lately there are more Africanders against us, than fighting for us.

In the beginning of the war I hoped and believed that the other European Powers would not allow one Power to become master of the Goldfields. But we cherished a false hope. In the letters received from our Deputation last year they wrote us, that we should not hope for intervention, because there was for the time being no prospect of it. From the correspondence between the British and Netherlands Governments it appears that our Deputation was accredited only to the Netherlands Government, and therefore that Government alone was in a position to take upon itself to procure the termination of the war. The Deputation was accredited by both Republics to all the European Powers. It appears, however, that only to the Netherlands Government did they hand in their credentials. This fact has a particularly great significance for me. It proves that they were advised not to present their credentials to other Powers. We know that the Deputation would have left no stone unturned to help us, but after they have been in Europe for two

years they had had to inform us that they had obtained no help for us, and further, that they could hold out no prospect of help. We must therefore cherish no hope whatever of help from Europe. And it is apparent that if no nation came to our assistance when the enemy introduced a new principle into warfare, namely, to remove women and children by force, crowd them in camps, and let them die in thousands, then we need not ever expect any help from other nations. Their inaction makes me think that they do not care what becomes of us, even though we all die. They ought to have known that if the British were tacitly allowed to introduce such a new principle into warfare, that principle would establish a precedent. We have only the sympathy of the European Powers, and that sympathy threatens to smother us, and there the matter remains.

I now come to another matter which lies very near to the heart of each one of us, namely, our families. If this meeting should decide to continue the war, then some provision or other must be made for them. We shall have to decide what to do with them. When I think over this matter my mind is at a standstill. Their condition is most pitiable, and they are exposed to all kinds of danger. I have lately tried to send them in to the British, but without success, because the British would not receive them. The position has now become such that I am beginning to think that the fathers of these families must accompany them into the British lines, because then the enemy receives them. But even this suggestion offers a great difficulty, namely this, that we have with us many wives of prisoners-of-war, and what can we do with them? Where could we find men to "hands up" with them? These families are in a terrible condition, and something must be done for them.

It has been said that we must fight "to the bitter end," but no one tells us where that bitter end is. Is it there where everyone lies in his grave or is banished? In my opinion we must not consider the time when everyone lies in his grave as the "bitter end." If we do so, and act upon that view, we become the cause of the death of our people. Is the bitter end not there, where the people have struggled till they can struggle no more? Personally, there is nothing that hinders me to prosecute the war still further. My family is well provided for. I have good horses, and when I consider what the enemy has done, then I say: "Rather die than surrender," and that is also my

inclination. But I must not regard myself, but my people and the other men who must fight.

I assure you that our position is serious, and when I lay matters bare to you, I do not do so to discourage you, but to give you a clear insight into them, as it is my duty to do, because you must take a very important decision here. I have always thought that when matters came to such a pass with us, that we were driven by hunger to surrender we should, before going under, and while we were still a nation, accept terms. We cannot wait until our numbers are reduced to a few thousand men and then try to negotiate. It would then be too late. If we wish to negotiate, now is the time. If the Lord God wills it, then, however bitter, we must come to terms. We cannot simply go on blindly and say that we trust in God. Miracles can happen, but it is not for me or for you to say what God's will is with us, or that the Lord will allow us to retain our independence. If we proceed, it will be a bitter cup for us to see that the one commando after the other is forced to surrender. Our responsibility will only be the greater if we go on and ultimately yet lose. We hear continually of the death of this one or that one, and it is asked who will care for the widows if we make peace now? But does not this question remain if we prosecute the war?

If we have to give up eleven districts—and that means the half of the South African Republic—then as far as I can see the war must end disastrously for our people. If a great victory is gained over us we shall not be able to stand it. All will immediately be over with us. There is a military reason why we have been able to carry on such a great war for such a long time against such overwhelming forces, and that is, because we have commandos in each district, which compels the British to divide their forces. But if we abandon eleven districts, as we shall have to do shortly, that will mean the concentration of our forces, which will give the enemy an opportunity of concentrating their troops against us, and the consequences thereof will be fatal for us.

In only one portion of our country, namely, in Zoutpansberg, is there still food, but how do we obtain our provisions there? It must be taken, and thereby we create more enemies. Our safety in Zoutpansberg lay in this: that hitherto the Kaffirs were divided, but if the enemy were to pour into

that district the Kaffirs will join them against us. I therefore foresee danger for our commandos if they proceed to Zoutpansberg.

I feel that our people have defended themselves and have fought better than any people in the world. Our little nation has already sacrificed proportionately more in this struggle than any other nation known in history, and I should regret it bitterly if this people should be destroyed, or have to fight till all are dead or captured, and the independence lost. If we become convinced that it is impossible for us to proceed, that it is impossible for us to retain our independence, then we must inform the people to that effect, and they can then decide what they wish to do. By continuing blindly we shall certainly fall. During the last year more than 20,000 women and children died in the concentration camps, and their suffering there was terrible. Then there are also some of our own people, who have taken up arms against us, and if matters go on as at present there will shortly be more Africanders fighting against us than for us.

The question now is: What must we do? There are only a few courses open to us. If we can retain our independence by the surrender of a portion of our territory, then, however hard it may be, let us do so. The State Secretary has made a few suggestions in this respect, and however detrimental it may be to us to have a Government within a Government in the country, it would nevertheless be better than to lose everything, for humanly speaking it is impossible for us to retain our independence by force of arms. Swazieland is a great country, and yet it is of no value to us, and we can well give it up. And let us also surrender the Witwatersrand—that cancer in our country—if we can save ourselves thereby. If by these means we do not succeed in our object it is for you to say whether the war must still be continued or not. The conditions show me plainly that we are going backward. In the Orange Free State we have only 6,000 men under arms, and in the South African Republic only 10,000. Compare these with the numbers with which we commenced. Are we not going down the precipice? Let us not co-operate to that end. Let us rather do what we can to save our people if we must lose our independence. If we must give up the struggle, are we then to say to the enemy: "We have fought for our independence only, and since we cannot get that, here we are, do with us as you please." That we can do for ourselves as leaders, but we cannot say that

for our people. We must interpose for our people. We must try to get for them what we can, because they are absolutely ruined, and if we make no terms we place them unconditionally in the hands of their bitterest enemies. Would that be desirable? If we cannot retain our independence, let us try to get responsible Government. Then we will be governed by leaders from amongst ourselves who can keep their hands over the heads of the people. Let us also try to secure the rights of our language, the Dutch language. You know how long it took before the rights of that language were in a measure acknowledged in the Cape Colony. Shall we not try to get those rights acknowledged here now we have the chance? Let us stand firm for these two points, and for the payment of all direct debts, as is done in the Cape Colony and Natal. We need not trouble ourselves about smaller matters for they are of such a nature that a Government must attend to them in the interests of the people.

Some argue that we must accept no terms, because we would thereby bind ourselves for the future, but that we should go over into a condition of passive resistance. But can we do that? It is a fact that when the war ceases there will be famine in the country, and what will be easier for the British Government than to supply the people with food on condition that the men take the oath of allegiance? Therefore I think that it is much better for us, the leaders, to try and stipulate certain terms for our people. Should we not now co-operate to that end, or should we wait until we are entirely overpowered and then have to wait some thirty years before we can be on our legs again. In my opinion there can be no question of unconditional surrender. You cannot say that you will accept no terms. We may not say: "Do with us what you please." If we do that, then our children will be a standing protest against us. Let us respect each other's opinions. I cannot, and may not, on account of your opinions, suspect anyone here to-night, who hitherto in spite of all hardship and bitterness, has faithfully stood under arms, of being afraid. Only by standing firmly together and taking one another by the hand can we extricate ourselves from the deep abyss in which we now stand. Believe me, it is bitter for me to have to speak as I do, and if you can remove my difficulties I shall be sincerely thankful.

General de la Rey said: I shall be brief and only touch upon a few points. You can understand that after the success that has crowned our arms lately, I

have a definite instruction from the burghers in my division to stand by our independence. And they have grounds for such an instruction. The burghers have, indeed, lost over 300 men from deaths and captures, but they have performed deeds of heroism. I do not say this to boast, but to make the position of myself and of my fellow delegates clear to you. These victories have naturally had a particularly good effect on the burghers and also upon the enemy. I do not wish to convey that these victories have such an effect upon the enemy that they will cause the scales in this struggle to turn in our favour, but I say it to show that no one can take it amiss in the burghers if they give such instructions as they have done.

However, since my arrival, and since I have learnt how matters are situated in other districts, I feel the difficulties that are brought forward against the continuance of the war. Under my command I have also districts, such as Potchefstroom and Krugersdorp, where the burghers cannot maintain the struggle, but they have the opportunity there of withdrawing to other parts where they can exist. I have always been of opinion that I may not lay down my arms as long as I have any food, even though that food consists of nothing else but mealies. But it appears to me that certain districts will be compelled by hunger to surrender. Therefore I am pleased that leaders speak openly here, and do not arrogantly say: "We can still continue," and then, when we return, lay down their arms, and put everything upon the shoulders of only some of us.

Referring to intervention, I may say that the Commandant General and other members of the Government know what my views have always been on that matter. I was certain of it that there would never be any intervention for us, and said so before the war. If Britain becomes the owner of the Republics, then South Africa would be owned partly by Germany and partly by England. If Britain becomes the owner of a portion, then the German possession was guaranteed. That would not be the case if the Republics won the struggle. The German possessions would then also be in danger. Will German statesmen therefore intervene to check England to their own detriment? We need not, therefore, give intervention even a thought.

There is another point. It is argued that we must fight to the bitter end. The Commandant General has asked whether that bitter end has arrived. I

think each one must decide that for himself. It must be borne in mind that everything—cattle, goods, money, man, woman and child—has been sacrificed. In my division many people go almost naked. There are men and women who wear nothing more than plain skins on the naked body. Is this not the bitter end? Only the fighting burghers are supplied with the necessary clothing, which they take from the enemy. Therefore I think that the time for negotiating has now arrived. If this opportunity is not availed of, the door will be closed. England will never again allow us to meet in this way, or give us an opportunity to conclude an agreement.

The question is: How shall we negotiate? I hardly know how to proceed. It is the duty of this meeting to instruct the two Governments, and I advise you to be sensible. If we cannot obtain what we desire I am prepared to fight to the finish, whatever that may be.

The proposals made by the State Secretary and supported by the Commandant General, namely, to surrender the Gold Fields, I cannot favour, and for two reasons. The first is because I am convinced that even though we should offer the Gold Fields, the British will refuse to accept them, because by doing so they would prove to the whole world that they only wanted the Gold Fields. The second reason is that we would be parting with our biggest source of revenue, and how shall we materially rescue the people from the impoverished circumstances in which we now find ourselves? How shall we pay our debts? I think we should try to obtain other and better terms.

Chief Commandant de Wet addressed the meeting as follows: I intended to say nothing on this great matter, because my opinions on it are no secret. I still have the same opinion which I had when the war threatened us. In the Orange Free State you find the same critical conditions that existed in the South African Republic. There are nine districts which were entirely abandoned by us for a time, but which were later on again occupied by the burghers. The only food there was some corn which had been hidden. Meat had to be taken from the enemy.

I deeply respect the feelings of Commandant General Botha, although I differ from him and others, who are of opinion that we must stop the war. I believe what has been said about the general misery in so many districts of

the South African Republic and about the difficulty in keeping up the struggle there, but you must not take it amiss in me if I point out that that unfortunate correspondence between our two Governments which fell into the hands of the British at Reitz, painted the conditions in more or less the same colours as those in which they are now represented. That was a year ago. I wish, however, to accept what has been said as true. Still the Free State does not wish to give up the war. I wish to speak openly, and let no one consider it as a reproach when I say that this is really a Transvaal war. I say this in a friendly and brotherly spirit, because, for me, the waters of the Vaal River never existed. I always was an advocate of closer union. There are unfaithful burghers amongst us, too, unfaithful to the Compact between the two Republics, but I cling to that Compact, and say that the entire war is our common cause.

What is now the mood prevailing amongst the burghers of the Orange Free State? The meetings held there were attended by 6,000 burghers. I myself was present at various meetings at which altogether 5,000 attended, while General Hertzog met the remaining 1,000. At these meetings a voice as of thunder was given for the independence. The resolution was: "Continue. We have always been prepared to sacrifice everything for our independence, and are still prepared to do so." Not a single man spoke differently. There is thus only one course open to me. We must see what can be done for those parts of the country which are helpless. I do not wish to be the man to say what must be done, but I shall do everything I can to help. It would be very hard for me if we have to adopt the suggestion of General Botha to send men into the enemy's lines with their families. But we must continue the war. Let us consider what our numbers were when we commenced. Let us assume that there were 60,000 burghers able to bear arms. We knew that England had an army of about 750,000 men. Of this she has sent about 250,000 here, namely, one-third. And experience teaches that she cannot send out much more than a third. Have we not also still got about a third of our fighting force?

I am also prepared to give up something for the sake of retaining our independence, but with reference to the suggestion of offering the Gold Fields, I agree with General de la Rey on that point. We can have no other Government, no English Colony, in the midst of our country. That will

cause friction. It is said that the Gold Fields have been a curse and a cancer for us. Well, they need not remain a curse. And then, how shall we materially rescue our people without the Gold Fields? Swazieland is not of much importance. That we can give up.

The war is a matter of faith. If I had not been able to do so in faith, I would never have taken up arms. Let us again renew our covenant with God. If we fix our eyes on the past we have more ground for our faith than I ever expected, and we have ground to continue in faith. The entire war has been a miracle, and without faith it would have been childish to commence the war. We must not think of intervention. That there has been no intervention is a proof that God does not will it, because through this war he wishes to form us into a people. Our help and our deliverance must come from Him alone, and then we shall not become proud. I cannot see into the future, but this I know, that behind me it is light. What lies before me I do not know. There it is dark, but we must go on trusting God, and then, when victory comes, we shall not be proud.

With reference to the Cape Colony, I may say that I am also disappointed, not with the reports from there, but because there has been no general rising. People who sent us information have not kept their word. We must accept the report of General Smuts, and he says we must not depend upon the Cape Colony; but he does not say that our cause is declining there. The Cape Colony has been of great assistance to us, because it compelled the enemy to withdraw about 50,000 troops from the Republics.

I feel for the poor families who are suffering so grievously, and also for our burghers in the camps. I think anxiously of their misery, but I have nothing to do with facts. The entire war is a matter of faith. I have to do with a fact only when I have to remove it.

I must still make this one remark, that if we surrender, as vanquished, we shall be able to depend on small mercy from England. We shall then in any case have dug the grave of our independence. Well, then, what is the difference between going into our graves in reality, and digging the grave for our national existence?

Mr. C. Birkenstock (Vryheid) said: We must be careful how we deal with the Gold Fields. Our country is dreadfully impoverished, and I fail to see how we can give up that source of income.

The meeting was then adjourned, after prayer, to the following day.

SATURDAY, MAY 17TH, 1902.

At the request of the Chairman the meeting was opened with prayer by Chief Commandant de Wet at 9.30 o'clock.

A private report from Mr. Schmorderer, who had brought the despatch from Europe from the deputation, was read, after which Landdrost BOSMAN (Wakkerstroom) said: We do not know what the future will bring us, but we can gauge the future by the past. The commando, of the district which I represent, namely, Wakkerstroom, had 600 men a year ago. Now that number has been reduced by more than 300. Then, we had more than sufficient horses. Everyone could simply catch a horse, and Vryheid got more than 400 horses from us. Now there are burghers of Wakkerstroom who have no horses, and it is impossible for them to obtain one. With regard to food, there were then 3,000 to 4,000 bags of mealies; now we have barely 300 to 400, and these are scarcely within our reach. If matters have proceeded thus in the course of a year, what will be our position twelve months hence? What will then become of the burghers who have no horses? We must also consider the condition of our families. They have no clothing. That, however, is not of great consequence. The principal matter is the want of food. More than one woman has been obliged to live for weeks on fruit alone. I myself have lived for days simply on mealie-pap (porridge). We must obtain mealies from the Kaffirs by using nice words. When the enemy operates in the district we must leave the families to the mercy of the British and the armed Kaffirs. If we supply them with provisions, the enemy simply removes those provisions, and they are left without a morsel of food. If we decide to continue the war some provision must be made for these families. Their husbands declare that if peace is not made now there is no other course open to them than to go over to the enemy, for they cannot any longer look on to see their families dying of hunger or being murdered.

Then we must also keep in view the condition of the families in the hands of the enemy. They have submitted to much anguish and suffering, but always in the belief that we had good hopes of deliverance. If they knew how matters were situated with us they would adopt other views. More than 2,000 women and children die per month in the camps, and if we prosecute the struggle without hope, we become accessory to their death.

The Kaffir question is also a serious matter.

Of intervention there is no hope. Some time ago I thought that we would get help from the British people, but that nation becomes more and more indifferent under all the occurrences of the war, and it appears to me that their Government will be able to prosecute the war to the finish.

What will now be the result if we decide to continue the struggle? We have seen how England has during the past year weakened us more and more; we have seen how many burghers have become unfaithful and strengthened the enemy. If it were not for those unfaithful people out of our midst we would never have had such a hard time of it. If we go on we shall ever become weaker and weaker, and ultimately dwindle away. What shall we then have gained by continuing the struggle? To-day we are still in a position to obtain something from the enemy, and to stipulate for assistance for our ruined people, who cannot get on their legs again without help. The burghers are prepared to proceed and to suffer still more if there is any ground upon which we can continue the war. If we have no well-founded grounds then I must warn this meeting that we shall lose many Wakkerstroom burghers. We have this opportunity for negotiating, and now is the time that we can still obtain something from the enemy. We shall never have this opportunity again. If it is clear to us that our independence is lost then we have still our people to consider. If we simply dwindle away, our people will sink and become of no account.

The matter has also been considered from a religious point of view. I am not ashamed to confess that I also serve God, but God has given us reason, and if we see that, humanly speaking, there is no prospect of our deliverance, we cannot expect that God will simply grant us our desire. If we desire to have our independence for the honour of God, He will let us retain it, but I fear that we desire it more for ourselves, more for our own

honour, than for the honour of God. Unless some other light is thrown on the matter, I fear it will be wrong of us to continue the struggle. Reference is made to the blood that has been shed and to the sacrifices that have been made; but what about the women and children who will still have to give up their lives if we now continue, and yet ultimately have to give the matter up as hopeless? The persons who are still living are of more importance to me than those who have already given their lives. I say we may not proceed unless we can give ourselves and our people good reasons for doing so.

At this stage the Committee appointed to draft a resolution handed in their draft. It was read, and after some discussion, adopted.

The draft resolution was as follows:—

"This meeting of representatives of the people from both Republics, having considered the correspondence and the negotiations that passed between the Governments of both Republics and His Excellency Lord Kitchener on behalf of the British Government;

"Having heard the information supplied by the delegates from the various parts of both Republics;

"Having heard the latest reports from their Representatives in Europe;

"Considering the fact that the British Government has refused to conclude peace, on the basis of their independence, and has refused to accept the proposals of their Governments made on that basis; yet, in spite of the above-mentioned refusal of the British Government, this meeting nevertheless desires to comply with the ardent wishes of the people to retain their independence, for which so many material and personal sacrifices have been made;

"RESOLVES, on behalf of the people of both Republics, to authorise the Governments to conclude peace on the following basis, to wit: The retention of a limited independence with the offer, in addition to what has already been offered by the Governments in their negotiations, dated April 15th, 1902, of:—

- (a) Surrender of all foreign relations and embassies;
- (b) acceptance of the protectorate of Great Britain;
- (c) surrender of portions of the territory of the South African Republic;
- (d) the conclusion of a defensive treaty with Great Britain with reference to South Africa."

During the discussion of this draft resolution the Governments were clearly given to understand that the portions of the territory which they could surrender were those already mentioned, namely, the Gold Fields and Swazieland.

The question was put whether the South African Republic alone should have to pay for the retention of independence, as these areas formed a portion of that territory.

To this Mr. de Clercq (Middelburg) replied "Yes, and if I could secure the independence of the Orange Free State with all I possess, I would do so." Other Transvaal delegates spoke in the same sense, indicating that the sacrifices made by the Free State during the war were most highly appreciated by them.

General Froneman thanked the Transvaal delegates on behalf of the Free State, remarking that there could be no further mention of the two States having divergent interests.

With reference to the resolution, General de la Rey declared that he was opposed to the surrender of Johannesburg.

Commandant Ross (Vrede) remarked: "I am surprised that the meeting takes such a resolution. What the people demand is total independence, and we can do nothing else but comply with that demand. Otherwise we act in a childish way. My commando is prepared to do everything to secure peace provided they retain their independence. If we part with that we cease to be a people."

Commandant J. J. van Niekerk (Ficksburg) declared that the meeting could not even think of surrendering their independence.

General H. A. Alberts (Heidelberg) said: I have a free hand to act according to circumstances. We shall be committing suicide if we continue the war without any hope and without any prospect of attaining our object, and not only suicide, but a murder also of women and children. If I could to-day purchase the independence of the Free State with all that I still possess, even with my life, I would do it with pleasure, but we cannot do what is impossible.

General P. R. Viljoen (Heidelberg) agreed with what General Alberts had said, and was of opinion that they had to reckon with facts.

The meeting was now adjourned to two o'clock in the afternoon.

The meeting resumed at two o'clock p.m.

After some discussion, the following proposal, made by General Brand and seconded by Mr. de Kock, was carried with the dissentient vote of General Kemp:—

"This meeting of representatives of the people of both the Republics resolve to instruct the two Governments to appoint a Commission with instructions to negotiate with His Excellency Lord Kitchener on behalf of His Britannic Majesty's Government on any subject in order to try to arrive at a satisfactory peace, and to submit their attempts through the two Governments to this meeting for approval."

After this the meeting was closed with prayer.

In pursuance of the above-mentioned resolution the two Governments appointed the following gentlemen as a Commission to negotiate with Lord Kitchener:—

Commandant General Louis Botha.
Chief Commandant C. R. de Wet.
General J. H. de la Rey.
General J. C. Smuts.

General J. B. M. Hertzog.[\[Back to Contents\]](#)

CHAPTER V.

FURTHER NEGOTIATIONS AT PRETORIA.

Conference between the Commission appointed to represent the meeting of Delegates at Vereeniging, and Lord Kitchener and Lord Milner.

Lord Kitchener was informed that the Meeting representing the two Republics had delegated Commandant General Louis Botha, Chief Commandant C. R. de Wet, General J. H. de la Rey, General J. C. Smuts, and General J. B. M. Hertzog to confer with the representatives of the British Government, and in the afternoon of Saturday, May 17, the Governments received a reply from Lord Kitchener that he and Lord Milner, on behalf of the British Government, were prepared to meet the Commission, who were requested to proceed to Pretoria immediately for that purpose.

The Commission left Vereeniging that same evening for Pretoria, where they arrived at 8 o'clock p.m. They were accommodated in "Park zicht," the residence of Mr. Carl Rood, corner of Maré and van der Walt Streets.

On Monday morning, May 19, 1902, the Commission assembled early and wrote the following letter to be submitted to Lord Kitchener and Lord Milner, and in which the wishes of the peoples' Representatives were expressed:—

To their Excellencies Lord KITCHENER and Lord MILNER, Pretoria.

PRETORIA, *May 19, 1902.*

YOUR EXCELLENCIES,

With the object of finally terminating the existing hostilities, we have the honour, by virtue of the authority from the Governments of both the Republics, to propose the following points as a basis of negotiations, in addition to the points already offered during the negotiations in April last:—

(a) We are prepared to give up our independence as far as foreign relations are concerned;

(b) We wish to retain internal self-government under British supervision;

(c) We are prepared to give up a portion of our territory.

If Your Excellencies are prepared to negotiate on this basis, the above-mentioned points can be more fully set forth.

We have the honour to be,

Your Excellencies' obedient servants,

LOUIS BOTHA,

C. R. DE WET,

J. H. DE LA REY,

J. B. M. HERTZOG,

J. C. SMUTS.

Minutes of Conference held at Pretoria on Monday, May 19, and following days between Lord KITCHENER and Lord MILNER, representing the British Government, and Commandant-General Louis BOTHA, Chief Commandant C. R. DE WET, General J. H. DE LA REY, General J. B. M. HERTZOG, and General J. C. SMUTS, representing the Meeting of the People's Delegates assembled at Vereeniging on May 15, 1902.

Mr. Advocate N. J. de Wet acted as interpreter, and as secretaries: for the British Representatives, Mr. O. Walrond, and for the Commission representing the Republics, the Rev. J. D. Kestell and Mr. D. E. van Velden.

The Commission met the British Representatives in Lord Kitchener's house at 10 a.m. After the parties had taken their seats, General BOTHA said: To begin with, I wish to say that although the negotiations have occupied a longer time than we expected, I nevertheless wish to give Your Excellencies the assurance of our good faith, and that everything is done seriously with the object of concluding the desired peace.

Further, I wish to say that everything we agree upon here must be submitted to the Representatives of our People for approval.

Thereupon the British Representatives said that they would like to hear what proposals the Commission had to make, and the letter (see page [98](#)) written by the Committee was read.

Lord MILNER: On account of the wide difference between this proposal and that made by His Majesty's Government when we separated, I must say that I foresee no hope for good results from negotiation on this basis. I think that Lord Kitchener shares my view.

Lord KITCHENER: We can take these proposals into consideration, but I cannot see how we can bring them into accord with those of His Majesty's Government.

General BOTHA: If you take up that attitude, we would like to have a final answer from you on our proposal.

Lord MILNER: Do you wish your proposal to be referred to His Majesty's Government?

General BOTHA: Yes, unless you have authority to give a final reply.

Lord MILNER: I am convinced that your proposal will not be accepted, and if you wish to make another proposal, it will injure you to refer this proposal to His Majesty's Government.

General BOTHA: If you have authority to reject our proposed basis, we would like to see you do so.

Lord MILNER: I have no hesitation to take upon myself to reject your proposals. The instructions received by me and Lord Kitchener are so clear on this point.

General BOTHA: Must I then understand that when Lord Salisbury said some time ago that this war was not waged with a view to obtaining territory he did not mean it?

Lord KITCHENER: There is now no question of territory, as the annexation stands.

General BOTHA: I fail to see that our proposal is in conflict with the annexation.

Lord MILNER: I do not recollect the exact words of Lord Salisbury, but it is true that Lord Salisbury said that his Government did not commence the war with the object of obtaining territory, but in the course of the war circumstances developed in such a manner that no other course was open than to annex the Republics, and my Government have expressed their fixed intention not to go back on their decision.

General HERTZOG: I would like to know what is really the difference between the basis now laid down by us and that laid down by His Majesty's Government in the negotiations last year? I do not mean so much in detail as in general principle.

Lord KITCHENER: Does your proposal assume that the Boers become British citizens?

General SMUTS: I do not see that our proposal is necessarily in conflict with the proposal of last year. Our proposal only makes provision as regards the government.

Lord MILNER then read out the following clause from the terms offered last year (the Middelburg proposals, March 7, 1901)^[3]: "At the earliest possible date military administration will cease and be replaced by civil administration in the form of a crown colony government. In each of the new colonies there shall be at first a Governor and Executive Council consisting of the principal officials, with a Legislative Council consisting of a certain number of official members, to whom will be added a nominated non-official element. But it is the desire of His Majesty's Government, as soon as circumstances permit, to introduce a representative element and ultimately to extend to the new colonies the privilege of self-government." "It may be," he remarked, "that I do not quite understand your proposal; but it appears to me to differ from the scheme here set forth not only in details but also in principle."

General HERTZOG: I fully agree with you that it can be taken to differ in principle, but a principle that is found to vary even from principles adopted in Colonies of the same State. In other words, you find that one principle was conceded to one colony, while another principle was applied to another colony, and yet they belong to the same Empire.

Lord MILNER: Absolutely. There are different principles in different colonies, but it appears to me that the principle laid down in your proposal differs from that laid down by His Majesty's Government.

General HERTZOG: I believe that I express the opinion of the entire Commission when I say that we desire to have peace, and the remarks I have made were intended to show that I consider that if we mutually really wish to arrive at peace, we must not attach too much value to theoretical differences as long as the practical object be attained. For instance, in the various colonies now constituting the United States of America, there were different principles for different colonies. Now the principle laid down in our proposal does not differ so much from your proposal that a practical difference would be created thereby, as would be the case if negotiations were confined strictly to your basis. I suppose that England's position towards South Africa is to arrive at a certain result with us, and that that result will now be equally well attained through our proposal as through the Middelburg proposals. And therefore I ask you whether the difference is so great that an entirely new situation will be created whereby England would not attain the object she has in view?

Lord MILNER: We compare two different matters. Here in the Middelburg proposals there are a number of definite proposals, which go into a great mass of details. I do not say that these details are perfect or are perfectly expressed. And I understand that it is entirely within the authority of Lord Kitchener and myself to confer further with you with reference to details, with the object of explaining anything that might be doubtful, and perhaps to make alterations which would not fundamentally affect the scheme. If you say that your proposals are not in conflict with the Middelburg proposals, there is no reason why you should not put your proposal aside and discuss the Middelburg proposals, which are definite.

General HERTZOG: I entirely admit that you are entitled to say that there is a fundamental difference between our proposals; but whether for the purpose for which we are together here that difference is of such a nature that if we are mutually inclined to make peace, we shall not arrive at something that would satisfy us both, and, further, that if we negotiated on the basis proposed by us, the same result would not be attained as by negotiating on the Middelburg proposals, I cannot see.

Lord MILNER: I understand that you grant that there is a fundamental difference between the two bases. Well, then I consider that we are not authorised to negotiate on a basis differing from that laid down in the last despatch from H.M. Government, and also differing from that contained in the Middelburg proposals. I may say that in their last message H.M. Government went as far as they possibly could to meet you. The whole spirit of the cablegram was to that effect.

Chief Commandant DE WET: You must understand that if I speak I do not do so as a lawyer. (Lord Kitchener, laughing: "It's the same case with me.") I fully agree with what General Botha and General Hertzog have said with reference to our being in earnest to establish peace; but to be brief I must say I did not understand that His Excellency Lord Milner could have intended, as I also view the matter, that we went to the people with the Middelburg proposals with the idea of returning with those proposals.

Lord MILNER: If I have given that impression it is not quite what I mean. But I think that you went to the people with the last message from His Majesty's Government in your minds, and it was clear from that message that His Majesty's Government were not prepared to take any terms into consideration which differed widely from the principle laid down in the Middelburg proposals.

Chief Commandant DE WET: So I understand the matter, too, and therefore we have come with a proposal that does not differ so much from those proposals.

General SMUTS: I had thought that the vital principle for your Government was to get the independence out of the way. And here the independence of the two Republics, as far as foreign relations are

concerned, is given away. I therefore thought that possibly the two parties would come to an arrangement on that basis. I did not think that the Middelburg terms were essential for the establishment of peace.

Lord MILNER: Not in details, but in general principles. If the British Government has laid down a basis, and you have had weeks to consider the matter, it will never do that you simply set it aside. Lord Kitchener has given you considerable time to consult the people; and now you come back and without even referring to the Middelburg proposals, you set aside those terms or that basis, and propose entirely different terms, and say: "Let us negotiate on them." I do not think that I and Lord Kitchener ought to do it; but if he takes another view the British Government can be asked whether they are prepared to set aside all the previous discussions and to commence now on a new basis.

Chief Commandant DE WET: We naturally cannot prevent Lord Kitchener from putting any question he pleases to his Government, but at the same time it is our request that you cable our request to the British Government.

General BOTHA: I cannot see that we have come here with a new basis, because in consequence of the negotiations during last April you were instructed by the British Government to encourage us to put forward new proposals. Our proposal stands in direct connection with that desire.

Lord MILNER: I did my best to get new proposals from you. But you would not make them. You forced the British Government to make proposals.

General BOTHA: I am of opinion that both parties should co-operate.

Lord KITCHENER: You were asked to put forward proposals, but you refused, and now after the British Government has made proposals you come forward with a proposal.

General DE LA REY: I think it was in consequence of the correspondence between the Netherlands and British Governments that we made our proposals. That correspondence was the commencement of the negotiations.

Chief Commandant DE WET: If we had had to make new proposals in April we would not have been able to put forward a proposal so reasonable and advantageous to the British Government as we do now, because unless the people consented we would have had to insist on retaining our entire independence.

Lord MILNER: I wish to remind you of what has taken place, and I do not do so to put you in the wrong, but to make the position clear, for these matters are very plain. You came and made a certain proposal. The British Government gave a clear reply—they refused to accept it. The reply was entirely straightforward and quite intelligible; and at the same time the British Government said: "We are desirous of peace; will you make other proposals?" You said: "No, we have no authority to do so without consulting the people." We admitted that argument. Then you said: "Let the British Government make proposals." The British Government did so, and they are equally entitled to an answer. What is the position you place Lord Kitchener and me in? You return with an entirely new proposal and say nothing of ours. This is not a reasonable treatment of the British Government, and we ought not to take your proposal into consideration.

General HERTZOG: I have attempted to point out that our reply really cannot be taken as no reply to the proposals of the British Government, because the great question raised in the correspondence last April between us and the British Government turned on the independence, and now after having consulted the people we come and say: "We are prepared to abandon the independence, and we define to what extent." And now, as General Smuts has said, that is exactly the basis that we lay down here in our proposal.

Lord MILNER: You say you abandon the independence as far as foreign relations are concerned?

General HERTZOG: Yes, but you must understand that this is only a basis, which we shall more fully specify later.

General SMUTS: The independence is abandoned as far as foreign relations are concerned, and with reference to the internal government, that is placed under the supervision of the British Government, so that the effect

of these two clauses is: That the independence is abandoned and that the two Republics cannot after that be considered as sovereign States.

Lord MILNER: I understand very well that they would not then be sovereign States, but my mind is not clear enough to be able to say what they would virtually be.

Lord KITCHENER: They would be a new kind of "International Animal."

General SMUTS: As history teaches us, it has happened before that questions were solved by compromises. And this draft proposal is as near as we can come to colonial government.

Lord KITCHENER: Do you accept the annexations?

General SMUTS: Not formally, but I do not understand that this proposal would be in conflict with the annexation proclamations.

Lord KITCHENER: I fear that my mind is not clear enough to understand this. There will have to be two Governments in one State. And how do you propose that the government should be carried on?

General SMUTS: A fuller explanation would have to be given to the word *supervision*; and I thought that this was exactly the point which could be further discussed, and on which we could negotiate.

Lord MILNER: I shall certainly not depart from a clear basis to accept a vague basis.

Lord KITCHENER: I feel convinced that your proposal could never be carried out in the practical government of a country.

Chief Commandant DE WET: I am also of opinion that our proposal is not developed, just as little as the Middelburg proposals. This was clearly intimated by Lord Kitchener and Lord Milner when those proposals were made; and they were only considered as a basis on which we could negotiate, so that the matter could be set going. We naturally cannot bind

the British Government to accept our explanations; but it is in any case a basis.

Lord MILNER: I am very anxious that these discussions should not end in smoke, and would not allow any formal point to stand in the way; but to depart from the definite proposals of Middelburg (March 7th, 1901) to a thing like this, and to begin discussions anew thereon on something that is very vague, will certainly land us in difficulties. I believe that we are entitled to hold you to the Middelburg proposals, which we can modify as far as details are concerned.

General BOTHA: Perhaps it will be well that you first reply to our proposal.

Chief Commandant DE WET: I understand that unless Your Excellencies are prepared to give a final answer to our proposals it would not be unreasonable of us to request that you first submit them to your Government.

General BOTHA: We have come here with the earnest desire to conclude peace, and I think that if our proposal is developed Boer and Briton will be able to live here side by side; and I assume that it is the desire of both parties not to suppress one race. We wish to conclude a peace, with which both parties are satisfied, and which will be permanent in South Africa.

Lord MILNER: Our object is the same.

Lord KITCHENER: Your proposal will cause important alterations in our proposals, to which we, in my opinion, cannot agree.

General BOTHA: I think that especially because a proposal has been made from your side you must give a decided answer to our proposal.

Lord KITCHENER and Lord MILNER: Then alter your proposal into ours.

Lord MILNER: I do not believe that the British Government is prepared to go further to meet you than they have gone in their last proposals. In their

opinion they went far on the way to peace, further than the views of the British public.

Lord KITCHENER: The difference between our proposals, appears to me, to be too wide.

General BOTHA: We always remain under the supervision of the British Government.

Lord KITCHENER: Will you then consider yourselves as British subjects? "Supervision" is a new word, and "Suzerainty" has given us too much trouble.

General HERTZOG: The idea is not so new. There are, indeed, various kinds of States which all belong to the British Empire, Basutoland, for instance.

Lord MILNER: There are various kinds, but this is a new kind.

General HERTZOG: I trust Your Excellencies will understand us. We came here not to lose a minute of time. We have been to the people. We know what the people want and what the spirit prevailing amongst them is. If we therefore hand in a proposal we have to take two matters into consideration: (1) A proposal that will meet the British Government in a reasonable manner; and (2) A proposal which we have reasonable ground for believing our people will accept. For these reasons we have submitted a proposal, and now we are in the disadvantageous position that we are here before Your Excellencies, who have not full authority to decide finally.

Lord KITCHENER: We are in the same position as you.

General HERTZOG: We suggest something which we know to be in accordance with the spirit of our people, but it is impossible for us to do something that is contrary to that spirit.

Lord MILNER: Must we understand that the Middelburg proposals are not in the spirit of what your people wish?

General SMUTS: No answer has yet been given thereon. The only resolution taken by the meeting of representatives is that which we have submitted here.

Lord KITCHENER: Are you prepared to drop your proposal and to hand in another nearer to the Middelburg proposals? We must try to find a middle way. If we are here to try to arrive at something, let us try to get something that we can discuss. Shall we make a new proposal?

General SMUTS: If there is a final answer to our proposal, then we can take into consideration the question of putting forward a new one.

Lord MILNER: I believe the fact that you have refused to entertain the proposals from the British Government does not justify us to deal with your proposal. No, let us say that your reply is contained therein.

General SMUTS: I understand the position as follows: The British Government has rejected our proposals, and at the same they point to the old basis but without precluding us from making new proposals.

Lord MILNER: The entire difference between you and me is that I read the letter of March 7th, 1901, as being the extreme concession that the British Government could make, not so much to bind us to every clause and sentence of the proposals contained therein, but as an indication of how far they were prepared generally to go. Your reply now is no reply.

Lord KITCHENER read out his telegram, dated "April 14th, 1902: A difficulty has arisen in getting on with the proceedings. The representatives state that constitutionally they have no power to discuss terms based on the surrender of independence, inasmuch as only the burghers can agree to such a basis; therefore, if they were to propose terms, it would put them in a false position with regard to their people. If, however, His Majesty's Government could state the terms that subsequent to relinquishment of independence, they would be prepared to grant, the representatives, after asking for the necessary explanations, without any expression of approval or disapproval, would submit such conditions to their people." He continued: "You have evidently not adhered to what you undertook in this telegram."

Chief Commandant DE WET: If it was the intention that we should give an answer only to the basis given us in the British proposals, it would not have been necessary for the people to come to Vereeniging. But yet we have virtually come with something which in the proper sense of the word is almost similar to the Middelburg proposals, and which meets the British Government as far as possible.

General BOTHA: I do not see why we should so insist on our proposal. If it is not to the satisfaction of Your Excellencies, if it is not acceptable, give us a definite reply.

Lord MILNER: We want to have a reply to the proposal made by us.

General SMUTS: I do not understand that a proposal was made by the British Government. A certain basis only was laid down, and no formal answer is therefore necessary.

Lord MILNER: Our proposals are six times as definite as yours, and I am of opinion that the British Government are entitled to know whether your people are inclined to come to terms on the general lines of their proposals.

Lord KITCHENER: This is an entirely new proposal. How would it be if you went back to the people and asked them whether they would not accept our proposals?

General SMUTS: You must understand that the Middelburg proposals, with all that took place here in April, was read out to the people. Their reply was neither yes nor no, but the election of delegates. These delegates have given no reply yet. They are still considering the matter, and to save time they have delegated us to see whether we could not come to an agreement.

Lord MILNER: We are deviating from the agreement. Tell us what alterations you desire, and then lay our proposals before your people.

Lord KITCHENER: If you agree that your proposal is not in conflict with the annexation, then we have done something.

General SMUTS: Is it your opinion that our proposal must be set aside?

Lord KITCHENER: Yes, certainly. It is impossible for us to act on it.

Lord MILNER: We cannot take your proposal into consideration. We can send it to England, but it will certainly contribute to injure the negotiations. This is my personal opinion, which, of course, you need not accept. We can only say that this is all the reply that we can get out of you.

Lord KITCHENER: It will be better to draft a new document in which we note what is important and what not, and omit the unimportant.

General SMUTS: But Point 3 of our proposal has not even been touched upon. We are prepared to give up a portion of our territory.

Lord MILNER: That would be inconsistent with the annexation of the whole. If the whole is annexed by us, how can you part with a portion of it?

General SMUTS: The portion we gave up would then become a crown colony. The rest would be governed as proposed here.

Lord MILNER: You mean that one portion would become a British Colony of the ordinary type, and the other portion a Protected Republic?

Lord KITCHENER: Two forms of government in the same country would cause great friction. Our proposals are too divergent. From a military point of view, the two forms of government could not exist. We would be at war again in a year's time.

The meeting then adjourned until the afternoon.

During the adjournment the Republican Commission discussed the situation and sent General Smuts to talk over a few matters with Lord Kitchener and Lord Milner.

The Conference resumed at 4 o'clock.

Lord MILNER: In consequence of an informal conversation between General Smuts and ourselves, Lord Kitchener and I have drafted a document, which indicates the form in which we think the only agreement

which can be entered into must be worded. This is a draft document which we think the Governments can subscribe to. Our idea is that after it has been considered here, it can be submitted to the burghers, and you can ask them: "Do you agree to our signing it?"

The document read as follows:

"The undersigned Leaders of the Burgher forces in the Field, accepting on behalf of themselves and the said Burghers the Annexations notified in Lord ROBERTS' Proclamations, dated respectively, the 24th day of May in the year of our LORD 1900, and No. 15 dated the 1st day of September in the year of our LORD 1900, and accepting as a result thereof their position as British Citizens, agree forthwith to lay down their arms, handing over all Guns, Rifles, and Munitions of war in their possession or under their control, and to desist from any further resistance to the Authority of His Majesty King Edward VII. or his successors.

"They take this course on the faith of the Assurances of His Majesty's Government that they and the Burghers surrendering with them will not be deprived of their personal freedom or their property, and that the future action of His Majesty's Government in dealing with the results of the war will be in accordance with the declaration set forth below.

"It is clearly understood that all Burghers, now Prisoners of war, must, in order to participate in the benefits of the aforesaid Assurances, signify their acceptance of the position as British Citizens."



acceptance of the position of Subjects of HIS MAJESTY KING EDWARD VII, ~~will~~ be brought back to the places where they were domiciled before the War.

Returning
4. The BURGHERS so surrendering, will not be deprived of their Personal Liberty, or their Property.

So returning
5. No Proceedings CIVIL or CRIMINAL will be taken against any of the BURGHERS ~~now~~ surrendering for any Acts in connection with the prosecution of the War.

6. The DUTCH Language will be taught in Public Schools in the TRANSVAAL and the ORANGE RIVER COLONY ~~where~~ ^{where} the Parents of the Children desire it, and will be allowed in COURTS of LAW when necessary for the better and more effectual Administration of Justice.

In the Transvaal and Orange River Colony
7. The Possession of RIFLES will be allowed to Persons requiring them for their Protection, on taking out a license according to Law.

shall not be decided until after the introduction of self-government
8. The Franchise will not be given to NATIVES until after the introduction of Self-Government. **The question of franchise for the natives shall be decided by the future Parliament for the introduction of self-government in the T.V. & O.R.C.*
9. MILITARY ADMINISTRATION will be succeeded by CIVIL GOVERNMENT at the earliest possible date, and, as soon as circumstances permit Representative Institutions, leading up to Self-Government will be introduced ~~in the TRANSVAAL and ORANGE RIVER COLONY.~~

**in the T.V. & O.R.C.*
10. No Special Tax will be imposed on Landed Property to defray the Expenses of the War.

The question of granting the franchise to natives will not be decided until after the introduction of self-government.

Facsimile of a page of the Peace Proposals as submitted by the British Representatives, and amended by the Boer Representatives. The alterations

are in the handwriting of Generals Smuts and Hertzog.

** These are by General Smuts.*

General BOTHA: Must we understand that our proposal has now been entirely rejected?

Lord MILNER and Lord KITCHENER: Yes.

General BOTHA: Then I must understand that you are going to adhere to the Middelburg proposals only?

Lord KITCHENER: No, we can alter them.

Lord MILNER: This draft document was originally drawn up to be attached to the Middelburg proposals; but instead of the Middelburg proposals, this document has now been substituted to enable us to cast those proposals in another form.

General SMUTS: If, then, the idea is to alter the Middelburg proposals, would it not be best to do so now and to attach them to this document?

Lord MILNER: What takes the place of the Middelburg proposals must be attached to this document as a schedule, and we must jointly work out the schedule.

General SMUTS: I think it would be better if you alter the proposal yourselves and then submit it to us for consideration, so that we can consider what we shall do with it.

Lord KITCHENER: I am of opinion that a sub-committee out of yourselves should be appointed to do that.

Lord MILNER: My idea is that the schedule can be drafted by two or three of us, to be then considered by us as a whole.

General SMUTS: We would like to consider first whether we shall assist.

Lord MILNER: I am willing to draft it with you or to let you draw it up alone, but on the ground of my experience I do not wish to do it alone.

General SMUTS: If we sign this document, would not the effect of it be that we leaders would make ourselves responsible for the burghers laying down their arms?

Lord MILNER: Yes, if the arms are not laid down, everything is a failure.

Lord KITCHENER: I do not think so. If all do not lay down their arms, the signatories cannot help it. There will always be some dissatisfied ones.

General SMUTS: The document does not say so.

Lord KITCHENER: You can draft it differently.

General DE LA REY: Then there will be no peace, for a portion of the burghers will remain to continue the war.

Lord MILNER: If the meeting of Representatives agrees to your signing this document, then it certainly means that the burghers as a body agree to it. And those who do not agree to it—I do not know what I shall call them—"outlaws." We cannot suppose such a thing.

General BOTHA: That is why we want a peace that will be honourable for both parties. And as I understand this document, we are now going further; we are not only giving up our independence, but every burgher is bound hand and foot. And where is, then, the honourable peace for us? If we make peace we must do so as people who must live and die here. We must not conclude a peace that is offensive to the feelings of one party. I wish to do everything that is in my power to attain that object, but it appears to me that this document demands too much, because, if I understand aright, we must give up the independence, everyone must lay down his arms, and the leaders must, in addition, sign a promise.

Lord MILNER: All that we want is that those persons must live together in peace as British citizens. If we do not attain that, I do not know what we shall get.

Lord KITCHENER: I believe that the Commandant General does not realise what the schedule contains. We say therein what we shall give. Perhaps it

will be best if the schedule comes first, and then you will see that an honourable peace is proposed.

General BOTHA: Set the document forth more fully.

Lord KITCHENER and Lord MILNER: You must help us. We do not know what the burghers desire.

Chief Commandant DE WET: To sign this document will place us in the position which the Commandant General has described in plain words.

General DE LA REY: We cannot form an opinion about a thing that has not been worked out. I have no objection to the appointment of a sub-committee from our midst to assist.

General BOTHA: I also have no objection, for I clearly understand that no one is bound.

Lord KITCHENER: No, no one is bound.

General DE LA REY: We also wish to have the matter at an end, and to know what we have before us.

Chief Commandant DE WET: I wish it to be plainly understood that I see no chance to accept a body of which I have here only seen the head. This appears to me to be an unsurmountable difficulty. Holding this opinion, it would not be honest of me to remain silent; it would not be honest to Your Excellencies.

Lord KITCHENER: I think it would be better that General de Wet first saw the entire document before he gives his opinion.

It was then agreed that General Hertzog and General Smuts would act as a sub-committee to make a complete draft with Lord Kitchener and Lord Milner, advised by Sir Richard Solomon.

The meeting then adjourned.

WEDNESDAY, MAY 21, 1902.

The Conference was resumed.

Lord Milner submitted the document which had been drawn up during the adjournment with the assistance of the sub-committee.

The names of the members of the two Republican Governments were now filled in.

The document given hereunder was telegraphed to the British Government, the last paragraph of Clause II, which deals with the Government notes, the receipts and the sum of £3,000,000, having been added during the Conference between all the representatives of both parties on the terms drafted by the sub-committee. (See page [125](#).)

Stock prices

Acta de Voto

Delivered to the custody of the Joint and the undersigned Leaders
re. claims to each and every one of the great hall, and to
consider a general meeting and to the undersigned the
following articles *



PRETORIA May 19th 1902.



PRETORIA May 19th 1902.

The Undersigned LEADERS of the Burgher Forces in the Field, [accepting, on behalf of themselves and the said Burghers, the Annexations notified in Lord ROBERTS' Proclamations, dated respectively, the 24th. day of May in the year of our LORD 1900, and No. 15 dated the first day of September in the year of our LORD 1900, and accepting as a result thereof, their position as BRITISH CITIZENS,] agree forthwith to lay down their ARMS, handing over all GUNS, RIFLES, and MUNITIONS of WAR in their possession, or under their control, and to desist from any further resistance to the Authority of HIS MAJESTY KING EDWARD VII or his SUCCESSORS, *the names of the leaders of the force are to be given, who took the arms down.* *

They take this course on the faith of the ASSURANCES of HIS MAJESTY's Government that they and the BURGHERS surrendering with them, will not be deprived of their Personal Freedom or their Property, and that the future action of HIS MAJESTY's Government in dealing with the results of the War will be in accordance with the Declaration set forth below.

It is clearly understood that all BURGHERS, now PRISONERS of WAR, must, in order to participate in the benefits of the aforesaid ASSISTANCES, signify their acceptance of the position as BRITISH Citizens.

Facsimile of a page of the Peace Proposals as submitted by the British and amended by the Boer Representatives. The alterations are in the handwriting of General Smuts and Mr. Advocate N. J. de Wet.

** These are by General Smuts.*

The document was read out in English and Dutch, and was as follows:—

General Lord KITCHENER OF KHARTOUM,
Commanding in Chief,

AND

His Excellency Lord MILNER,
High Commissioner,
on behalf of the BRITISH GOVERNMENT,

AND

Messrs. S. W. BURGER, F. W. REITZ, LOUIS BOTHA, J. H. DE LA REY, L. J. MEYER, and J. C. KROGH,
acting as the GOVERNMENT of the SOUTH AFRICAN REPUBLIC,

and

Messrs. M. T. STEYN, W. J. C. BREBNER, C. R. DE WET, J. B. M. HERTZOG, and C. OLIVIER,
acting as the GOVERNMENT of the ORANGE FREE STATE,
on behalf of their respective BURGHERS,

Desirous to terminate the present hostilities, agree on the following articles:—

1. The BURGHER Forces in the Field will forthwith lay down their Arms, handing over all Guns, Rifles, and Munitions of War in their possession or under their control, and desist from any further resistance to the Authority of His MAJESTY KING EDWARD VII., whom they recognise as their lawful SOVEREIGN.

The manner and details of this surrender will be arranged between Lord Kitchener and Commandant General Botha, Assistant Commandant-General de la Rey, and Chief Commandant de Wet.

2. BURGHERS in the Field outside the limits of the TRANSVAAL or ORANGE RIVER COLONY, on surrendering, will be brought back to their homes.

3. All Prisoners of War, at present outside of South Africa, who are Burghers, will, on their declaring their acceptance of the position of Subjects of His MAJESTY KING EDWARD VII., be brought back to the places where they were domiciled before the War.

4. The BURGHERS so surrendering or returning will not be deprived of their personal liberty or their property.

5. No Proceedings, CIVIL or CRIMINAL, will be taken against any of the BURGHERS so surrendering or returning for any Acts in connection with the prosecution of the War.

6. The DUTCH language will be taught in public schools in the TRANSVAAL and the ORANGE RIVER COLONY where the Parents of the Children desire it, and will be allowed in COURTS of LAW when necessary for the better and more effectual Administration of Justice.

7. The Possession of RIFLES will be allowed in the TRANSVAAL and ORANGE RIVER COLONY to persons requiring them for their Protection, on taking out a licence according to Law.

8. MILITARY ADMINISTRATION in the TRANSVAAL and ORANGE RIVER COLONY will at the earliest possible date be succeeded by CIVIL GOVERNMENT, and, as soon as circumstances permit, Representative Institutions, leading up to Self-Government, will be introduced.

9. The question of granting the Franchise to natives will not be decided until after the Introduction of Self-Government.

10. No Special Tax will be imposed on Landed Property in the TRANSVAAL and ORANGE RIVER COLONY to defray the Expenses of the War.

11. A JUDICIAL COMMISSION will be appointed to which Government Notes issued under Law No. 1 of 1900 of the SOUTH AFRICAN REPUBLIC may be presented within six months.

All such notes as are found to have been duly issued in the terms of that law, and for which the persons presenting them have given valuable consideration, will be paid, but without interest.

All receipts given by the Officers in the Field of the late Republics, or under their orders, may likewise be presented to the said Commission within six months, and if found to have been given *bona fide* for goods used by the Burgher Forces in the Field, will be paid out to the persons to whom they were originally given. The sum payable in respect of the said Government Notes and Receipts shall not exceed £3,000,000 sterling, and if the total amount of such Notes and Receipts approved by the Commission is more than that sum, there shall be a *pro rata* diminution. Facilities will be afforded the Prisoners of War to present their Government Notes and Receipts within the six months aforesaid.

12. As soon as conditions permit, a Commission, on which the local inhabitants will be represented, will be appointed in each district of the TRANSVAAL and ORANGE RIVER COLONY, under the Presidency of a Magistrate or other Official, for the purpose of assisting the restoration of the people to their homes, and supplying those who, owing to war losses, are unable to provide for themselves with food, shelter, and the necessary amount of seed, stock, implements, &c., indispensable to the resumption of their normal occupations. Funds for this purpose will be advanced by Government free of interest and repayable over a period of years.

Lord MILNER: If we agree, it is the English document that will be telegraphed to England, and it is that document upon which His Majesty's Government will decide and which will be signed.

General BOTHA: Will a Dutch translation not be attached to it?

Lord MILNER: I have no objection that a Dutch translation be annexed. Well, that is the document that we are prepared to submit to the British

Government.

General BOTHA: There are a few points I wish to talk about. The first is with reference to receipts given by our officers. I would like to have them added to the paragraph referring to the Government notes. These receipts were given on instructions issued by our Government for the purchase of cattle or grain or necessaries, for the support of our commandos, and the chief officers now here, as well as all other officers, have acted in accordance with these instructions and issued receipts. For this reason, I make this request. Some of these receipts were discharged in full, and others in part, in Government notes, but many were not paid at all. I do not think that the amount is large, but it will strengthen our hands by enabling us honourably to terminate this matter, because our honour is in so far concerned that we have signed these receipts. It will be a great point for us if we can meet the delegates, most of whom are officers, and inform them that they have been protected in this matter.

Lord KITCHENER: I understand that General Botha does not refer to commandeered, or requisition notes, but only to actual receipts given on the Treasury.

Lord MILNER: I do not see the difference between these receipts and commandeered notes. The willingness of people to sell goods does not in my opinion make any difference in a legal document.

Lord KITCHENER: I think that it does make a difference if it is an order on the Treasury or a requisition note. I should limit this to receipts on the Treasury, issued in accordance with the law, which allowed that a certain sum could be spent.

Chief Commandant DE WET: In the Free State no resolution was taken fixing the amount that could be spent.

Lord KITCHENER: Do you mean that this is an undefined amount, or that it falls under the amount fixed by the Volksraad?

General SMUTS: The Volksraad authorised the Government to issue notes to a certain amount, which was done. Apart from this law, the officers in the

field had the right to make purchases on behalf of the commandos and to grant receipts therefor.

Lord MILNER: I see no difference between these receipts and requisition notes, and, besides, it is for an unlimited amount.

General SMUTS: These receipts were issued under an entirely different law. They were not paid out of the credit voted by the Volksraad.

Chief Commandant DE WET: I wish it to be plainly understood that I fully agree with what has been said by the Commandant General, that the honour of every officer is affected by these documents. And if Your Excellencies agree, you give us a powerful weapon with which we can return to the Delegates.

Lord MILNER: The proposal is, in fact, that the British Government must pay all the money borrowed by the Republics to fight them.

Chief Commandant DE WET: But we were an honourable party in the fight, and if we cease to be a party, it is only reasonable that we are met on this matter.

General BOTHA: Must I understand from your attitude that we must hand over everything, and that you must walk off with the assets of our country, which amount to millions and millions, and take no responsibility on yourselves for the debts? We are acknowledged by you as a belligerent party, and, therefore, we have the more right to expect that if you walk off with the assets of the country, you must also take upon yourselves the responsibility for the debts; if the British Government attains its great object, then a minor matter like this ought not to stand in the way. We do not come here to haggle at little things, but to contend for something that is an actual difficulty, and you must agree that if we tell you something here, we really mean it. And if we wish to make peace, every one must not draw his own line, but we must take each other by the hand. Now we say that this matter stands in our way. We personally have not signed so many receipts, but the inferior officers who have signed the most mainly constitute the meeting at Vereeniging. In some cases special persons were appointed entrusted with this work.

Lord MILNER: We do not take over the assets of the country without its liabilities. We take over all the debts which the country had before the war, and we have even agreed to take over a debt—a lawful debt—in the shape of notes, the contracting of which we are aware was necessary only on account of the war, and therefore we already pay a share of the expenses incurred to fight us. I thought that this was a very great concession, and when I agreed to put it down, I said that I thought, and I still think so, that the British Government would take exception to it, although I hope that they will not do so. But to go further than that and to ask that we shall pay not only a debt incurred for the purposes of the war, but every debt incurred by every officer of both armies for the purpose of fighting us, is in my opinion a very extreme proposal. In reply to what General Botha has said, I must say that the Commission appear to think that we have no one behind us whose feelings and prejudices (if you wish it) we must consider. If this will cause you difficulty with your burghers, the proposal now made will, I am sure, cause the British Government the greatest difficulties with the people whose feelings they must consider.

Chief Commandant DE WET: I would like to explain the position of the Orange Free State. In the Transvaal a law was passed authorising the Government to issue £1,000,000 in notes. In the Orange Free State this was not done, because the Government had the right to pay with receipts, and we thought that a receipt was as good and lawful as the notes. And therefore these matters have the same importance for me.

General BOTHA: I don't think that we should be so technical, especially not in your case, because our being together here is with the object of causing hostilities which involve great expenditure of money every month, to cease, and our meeting can have the result of speedily putting an end to these costs. And therefore, by accepting our proposal and paying the receipts, you will greatly reduce your expenses. It will be much cheaper to terminate the war by co-operation than to let the negotiations be broken off; and therefore I think that we must accede to points which stand in the way.

Chief Commandant DE WET: I can give His Excellency Lord Milner the assurance that the idea always lived with the people that, even if everything was lost, they would still, after the war, receive the money in payment of

the receipts. And therefore if this is not conceded I cannot conceive what the result will be. I fear that result, and hope that you will try to obviate it.

General BOTHA: It cannot be a particularly large amount; but we do not know how much it is.

Chief Commandant DE WET: You can well imagine that our expenditure was as a drop in a bucket compared with yours. And if I am not mistaken, the Orange Free State had three-quarters of a million pounds when we commenced the war; and the expenditure by means of receipts began after that amount was exhausted. Your Excellencies must therefore admit that these receipts impose upon us the same obligation towards creditors as any other debt would have done.

General BOTHA: You have already many of our notes in your possession. In one place, for instance, 50,000 were hidden and found by you.

General SMUTS: I have already privately used the argument with Lord Milner that what we are now contending for has in principle already been conceded by Lord Kitchener. In the Middelburg proposals the payment of the Government notes was refused, but it was laid down that receipts to the value of £1,000,000 would be paid out, and if this should now be withdrawn it would certainly be a deviation from the Middelburg proposals. The payment of notes is something lawful, and stands on another footing; and I cannot understand how the payment thereof could have been refused in the Middelburg proposals, and therefore an agreement to pay them now is reasonable. But with reference to receipts, the payment of them was partially acceded to, and now it is withdrawn. I think that when we have arrived at such a stage in the negotiations as we have now, then a point such as this, which was as good as agreed upon, must no longer be a stumbling-block to a final agreement. I believe that this amount is small. I was with General de la Rey for one year in command of the half of the South African Republic. Accounts were kept of all receipts, and where the books are no longer in our possession they are in your possession. The issue of these receipts took place in proper order and under proper regulations, and books thereof were kept. As far as I have been able to go into the matter the amount of receipts is really small. And although Lord Milner recoils from the payment of an enormous amount which may be presented for payment

if our proposal be accepted, yet I personally think that the fear is vain, and that the amount will prove to be much less than you probably think.

Lord MILNER: I do not think it is so much a question of the amount. This payment of Government notes and requisition notes is, in my opinion, very reprehensible. I believe that in this respect I feel what the great majority of the British people feels, that it would rather expend a large sum after the war to improve the condition of the people that has fought against them, than pay a smaller amount towards the expenses incurred in fighting them. Whether this be right or wrong, it is a strong feeling with which you must reckon. We do not wish to pay the accounts of both parties, and the clause in the Middelburg proposals with reference thereto was, in my opinion, always one of the bad ones in that document. If something of this kind must be done, then I think that the payment of the Government notes is not so bad as the payment of the requisition notes. I put the point with reference to the payment of notes in this draft proposal, because I thought that if a choice had to be made between the payment of the one or the other, you would consider it better that the Government notes were paid. If it is considered better to go back to the Middelburg proposals on this point, then, however much I object to it, I would agree, if Lord Kitchener agrees.

General SMUTS: I fear that we cannot agree to that, because we consider the Government notes indisputable.

General HERTZOG: I do not think that Your Excellency represents the matter fairly when you say, for instance, that you do not wish to pay the accounts of both parties. There is one matter with reference to the Orange Free State which we must specially note. We have contracted no loans and we have issued no Government notes. The notes we used were South African Republic notes, of which some were sent to the Orange Free State also. Our (Orange Free State) law is based on the principle that in case of war, all cost could be met by commandeering notes. This was acted on in the Orange Free State, and receipts in the usual form or in the shape of requisition notes were given. If we take this into consideration, and at the same time also the fact that we have always acted, and still act, as a party which is a lawful belligerent party, then we come and only say: from our side we give all that we possess, and ask the other party to acknowledge

only that which if we had concluded a loan would in any case, in the shape of a public loan, have fallen on the British Government, which takes over everything from us. Lord Milner will thus understand that from our point of view it is of as much importance for us to obtain payment of these receipts as it will be for the South African Republic to obtain the taking over by the British Government of the liability of a loan concluded before the war. But I can even go further and give Lord Milner the assurance that if we had also concluded a loan before the war, we could never have acted so economically as we have done by using receipts. That was also actually the reason why the Orange Free State never wished to conclude a loan beforehand, because now we have purchased only what was absolutely necessary for the day and for the circumstances. So that really Lord Milner will have to admit that we stand in the same position in respect to those who now hold receipts as we would have stood to any other creditor that we may have had before the war. I have already informally pointed this out to Lord Milner, and can now only express my agreement with what the Commandant General has said that this difficulty is almost insurmountable.

Lord MILNER: We can refer this to our Government; but your proposal is entirely in conflict with the Middelburg proposals, because in them it was absolutely refused to take over all State debts.

Lord KITCHENER: I wish that we could know the amount.

General DE LA REY: I issued Government notes to the value of between £20,000 and £40,000; but to what amount receipts were issued I cannot say.

Lord MILNER: There is really a compromise possible, namely, to allow these notes and receipts to be presented, and to introduce again the limit of £1,000,000.

Lord KITCHENER: Would that meet your difficulty?

General BOTHA: No.

Lord KITCHENER: Would £2,000,000 or £3,000,000 meet you? We want to have a limit, so as to know what to do.

Chief Commandant DE WET: It is impossible to fix an amount.

Lord KITCHENER: If you could fix a limit it would clear up the matter.

Chief Commandant DE WET: With that I fully agree. I appreciate your standpoint, but it is an absolute impossibility to name the amount. Let us withdraw for a moment to discuss this point.

The meeting then adjourned and met again at 2.30 o'clock.

Chief Commandant DE WET: We have agreed to fix an amount of £3,000,000 for Government notes and receipts, which can be reduced *pro rata* if this amount is not sufficient. We have drafted a clause to submit to you.

General Smuts read the draft, which is embodied in the last paragraph of Clause 11 of the draft agreement. (See p. [117](#).)

In reply to Lord Kitchener:

Chief Commandant DE WET said: The prisoners-of-war on the various islands who hold such notes ought also to have the opportunity for presenting them.

Lord MILNER: What is your next point? We now understand what your views are on this matter.

General BOTHA: Must I understand that we pass from this point?

Lord MILNER: That document contains your views which we now know.

General BOTHA: We must know what we must say to our delegates.

Lord KITCHENER: Is that the only point or will other points be raised?

General BOTHA: There is another point with reference to the protection of debtors. This is a serious, a vital question for us.

Lord MILNER: There must be a good understanding between us.... Let everything be embodied in one document.

General SMUTS: Most of the debts incurred before the war will be payable at the conclusion of the war. And, if the debtors cannot pay, we are afraid it will be ruination for a large proportion of the population. And we would like to see that steps are taken to prevent this. If Lord Milner intends to take such steps we should like to be informed what they are.

Lord MILNER: I think it would be better if you made a proposal on this point.

General SMUTS: Our proposal generally would be: that all interest which became payable during the war be added to the principal sum, and that the payment of the principal be put off until twelve months after the conclusion of the war.

Lord KITCHENER: Is it necessary to have this as a proposal?

General SMUTS: If the Government is prepared to meet this difficulty it is unnecessary to make a formal clause of it in the draft agreement.

Lord MILNER: According to my view our Government makes certain promises in this document, and I am of opinion that all promises to which reference will later on be made must be embodied herein. Any matter on which it is desired to bind the Government must be in this document and not outside it. I will not say that I want further clauses, but above all I wish to prevent misunderstanding.

General SMUTS: In that case we are prepared to propose a clause to meet this difficulty.

General BOTHA: We raise this point so that early measures may be taken if we come to an understanding. If a great portion of the population become subjects of His Majesty, it is to the interest of everyone, especially of the Government, to see that these people are not ruined. They will be thrown on the Government, who will have to care for them. If we do not take any steps now then speculators who have bought up debts will demand payment

immediately after peace is concluded; and as soon as the courts of law are open they can sue the debtors, and we want to guard against that.

Lord MILNER: I agree with the Commandant General that this is the view which I take of the matter, and that as soon as these people become subjects of His Majesty they must be cared for. But I think it is neither necessary nor advisable to lay down in all particulars the way in which His Majesty's Government must care for these people. I think that there is perhaps an idea—perhaps a natural idea—that because we have fought the burghers therefore when peace is concluded there will be a feeling of enmity towards them. The contrary, however, is the truth. From the moment hostilities cease our desire would naturally be to try to gain the confidence of the burghers, and to attend to the interests of the people. But if we must bind ourselves beforehand with reference to the manner with which we shall deal with all sorts of complicated legal questions, this will certainly lead to misunderstanding. Naturally if a certain amount of confidence is not reposed in us, that we shall try to be a just government, and try to keep the balance even between the various classes of His Majesty's subjects, then all I can say is this: Put in writing all that you can possibly think of, and let us submit it to His Majesty's Government and see what they think of it.

Chief Commandant DE WET: I hope it will not be presumed that we sit here to bind the hands of His Majesty's Government. Sufficient other points will continually crop up by means of which the Government can gain the confidence of the population. But with reference to the financial condition of the burghers who have been entirely ruined, we feel ourselves obliged to make some arrangement which will be a weapon in our hand when we return to the delegates.

General BOTHA: I do not quite understand Lord Milner. I did not understand from Chamberlain's telegram that we should make new proposals to bind your hands. I understood that proposals should be made with the object and the wish to secure peace.

Lord KITCHENER: I do not think it quite necessary to embody this proposal in the document. It concerns a very complicated legal question, as to what the rights of creditors and debtors will be, and what the law in the Transvaal precisely is on this subject. I think that everyone may feel assured that the

interests of the Boers will be protected equally well by the Government in every possible way, whether this point is actually stipulated or whether it is left over to the Government with the recommendation of this Commission to take the matter into serious consideration. I think that my suggestion is a better way of dealing with such a complicated question. Let the attention of the Government rather be drawn to it. I may be wrong, but as far as I know this will be an intricate question for lawyers, and it would take a long time to state it clearly. It is the desire of us all that you should go to the meeting of your delegates so equipped that you will be able to come to a decision; and I would therefore suggest that you be satisfied that the matter has been brought before us, and entered on the minutes of the meeting. That is, I believe, as far as it is necessary for you to go. The matter can then be taken into serious consideration, not only here, but also in England. And you can be perfectly assured that your interests will be considered in every possible way.

General DE LA REY: I think that the matter has been sufficiently brought to the notice of Your Excellencies, and that it need not be embodied in the draft contract, because by doing so one might possibly be infringing on legal principles.

Chief Commandant DE WET: I proceed from this standpoint: There are two parties, and the one ceases entirely to exist, and it is thus natural that that party cannot allow such a vital question to pass by unobserved. And therefore I cannot approve of it that the matter be not inserted in the draft contract. It will not be necessary to bind the Military Government that exists at present and will continue to exist after the war.

Lord KITCHENER: But this question will have to be dealt with by the civil Government. It is a matter for lawyers, and will have to be submitted to them and demand much consideration.

General BOTHA: If hostilities are terminated now a burgher can be sued for debt incurred before the war. I prefer this request, because our law lays down that no burgher can be sued until sixty days after the conclusion of peace.

Lord KITCHENER: You may rest fully assured that when the war is over every burgher will have the absolute right to have his position taken into consideration on all points, and that his interests will be protected by the Government just as much, I believe, under the new as under the old *régime*.

General BOTHA: I understand that quite well; but the possibility exists that syndicates may be formed to buy up all debts, and the people be ruined before a single burgher is in a position to earn something or to establish his position.

Lord KITCHENER: I quite agree with the Commandant General, and he does right to raise this question. But I do not believe that the draft contract is the place in which to bring the question forward. When there is peace, it is the duty of everyone to draw the attention of the Government to what is necessary to help the people. But to imagine difficulties now, and to try to put them right, appears to me to be an endless matter, for which this document is not intended.

Chief Commandant DE WET: I understand that this is something that must be settled by a proclamation, but I want to have as many weapons as possible in my hand when I go back to the Delegates; and one of the first questions which they will put is: "What guarantees have we that we shall not be ruined by our creditors?" And what objection is there that a draft proclamation be given to us to take to Vereeniging, which will be promulgated as soon as peace is concluded?

Lord KITCHENER: But this will be something apart from this agreement.

Chief Commandant DE WET: Yes.

Lord MILNER: What is the good of it then?

Chief Commandant DE WET: It is such a vital question for us that it cannot be taken amiss in us if we insist upon it, because we must give up everything.

Lord KITCHENER: Of course no one takes it amiss in you.

Lord MILNER: But I must point out without taking it amiss in anyone that the effect of what you propose would be that another clause would have to be embodied in the draft contract undertaking to promulgate such a proclamation.

Lord KITCHENER: I believe that if the Delegates received the assurance that the Government will take this matter into consideration in the interests of their subjects, whom they must protect, that this will be sufficient for them. There will be no written obligation, but only an obligation that the matter will be considered. It is not advisable to press this matter with the Government, after it has been brought before them. The opinions of the burghers will be brought before Lord Milner in other ways also.

Chief Commandant DE WET: There are many other small points which we could take up, which it would, however, not be desirable to do, but we are now speaking of a vital question.

Lord KITCHENER: This is one of those questions which, if brought to the attention of the Government, cannot be set aside. And you may inform the burghers that their interests will be protected as much as possible. I think that this ought to be sufficient for you on such a complicated matter. What is spoken here is being taken down, and the minutes will be considered not only here, but also in England. Are you satisfied with that?

General BOTHA: As far as I am personally concerned, yes.

Chief Commandant DE WET: So am I.

Lord MILNER: I hope it is understood that if the matter is left here, there is no obligation on my Government to deal with the matter in a particular way.

Lord KITCHENER: But there is a pledge that the matter will be properly considered.

Lord MILNER: Yes, of course, if we are going to put an understanding on record. Solemnly I think it is necessary that we understand that this document contains everything concerning which there is anything in the form of a "pledge."

Lord KITCHENER: There is thus a "pledge" that this point which you have raised will be considered in your interest.

General SMUTS: Now the question with reference to the payment of receipts still remains.

Lord KITCHENER: That will be referred to the British Government. As regards the amount, that is an essential point, but I am of opinion that the amount is high. I would like to know whether it is understood now that we are agreed on all these draft proposals with your amendment? And that there are not any other matters? Because they will have to be telegraphed to England.

Chief Commandant DE WET: We have no other matters.

Lord MILNER: The proposed telegram which I wish to transmit reads as follows: "The Commission is prepared to submit the following document to the meeting of representatives of their Burghers (if it is approved of by His Majesty's Government), and to ask that meeting for a 'yes' or 'no' vote." Is that good?

Chief Commandant DE WET: Yes, naturally, except that I cannot say that that document is approved of by me; but I will abide by what the Delegates do.

General HERTZOG: I would not like it to be understood that we will use our influence with the Delegates.

Lord MILNER: I think that that is quite understood. I do not understand that this binds the members of the Commission with reference to the opinion which they may express before the Burghers. It only binds them to lay this document before the people, if the British Government approves of it. The telegram which I have just read, and propose to send, makes this clear. I further wish to say that we have departed very much from the Middelburg proposals, and I believe it is fully understood that the Middelburg proposals are absolutely dead, and if this document is agreed to and signed, there can then be no attempt to explain this document or the terms thereof by anything in the Middelburg proposals.

The meeting then adjourned.

WEDNESDAY, MAY 28, 1902.

The Commission again met Lord Milner and Lord Kitchener at 11 a.m. to hear the reply of the British Government to the draft proposal submitted to them by their Lordships.

Lord Milner read the following Memorandum: "In reply to our last telegram drafted at our last meeting with the consent of the Commission, and of which they have received a copy, the following message has been received from His Majesty's Government: 'His Majesty's Government approves of submitting to the Meeting for a "yes" or "no" vote the document drafted by the Committee, and transmitted to the Secretary of State for War by Lord Kitchener on May 21, with the following alterations^[4]:

General Lord KITCHENER OF KHARTOUM,
Commanding-in-Chief,

AND

His Excellency Lord MILNER,
High Commissioner,
on behalf of the BRITISH GOVERNMENT,

AND

Messrs. S. W. BURGER, F. W. REITZ, Louis BOTHA, J. H. DE LA REY, L. J. MEYER, and J. C. KROGH,
acting as the GOVERNMENT of the SOUTH AFRICAN REPUBLIC,

AND

Messrs. M. T. STEYN, W. J. C. BREBNER, C. R. DE WET, J. B. M. HERTZOG, and C. OLIVIER,

acting as the GOVERNMENT of the ORANGE FREE STATE
on behalf of their respective BURGHERS,

desirous to terminate the present hostilities, agree on the following Articles:—

1. The BURGHER Forces in the Field will forthwith lay down their Arms, handing over all Guns, Rifles, and Munitions of War, in their possession or under their control, and desist from any further resistance to the Authority of HIS MAJESTY KING EDWARD VII., whom they recognise as their lawful SOVEREIGN.

The manner and details of this Surrender will be arranged between Lord Kitchener and Commandant-General Botha, Assistant Commandant-General de la Rey, and Chief Commandant de Wet.

2. Burghers in the Field outside the limits of the TRANSVAAL and ORANGE RIVER COLONY, and all Prisoners of War at present outside South Africa, who are Burghers, will, on duly declaring their acceptance of the position of subjects of HIS MAJESTY KING EDWARD VII. be gradually brought back to their homes as soon as transport can be provided and their means of subsistence ensured.

3. The BURGHERS so surrendering or so returning will not be deprived of their personal liberty or their property.

4. No Proceedings, CIVIL or CRIMINAL, will be taken against any of the BURGHERS so surrendering or so returning for any Acts in connection with the prosecution of the War. The benefit of the Clause will not extend to certain Acts contrary to the usages of War which have been notified by the Commander-in-Chief to the Boer Generals, and which shall be tried by Court Martial immediately after the close of hostilities.

5. The DUTCH language will be taught in Public Schools in the TRANSVAAL and the ORANGE RIVER COLONY, where the Parents of the Children desire it, and will be allowed in COURTS of LAW when necessary for the better and more effectual Administration of Justice.

6. The Possession of Rifles will be allowed in the TRANSVAAL and ORANGE RIVER COLONY to persons requiring them for their protection, on taking out a licence according to Law.

7. MILITARY ADMINISTRATION in the TRANSVAAL and ORANGE RIVER COLONY will at the earliest possible date be succeeded by CIVIL GOVERNMENT, and, as soon as circumstances permit, Representative Institutions, leading up to Self-Government, will be introduced.

8. The question of granting the Franchise to natives will not be decided until after the introduction of Self-Government.

9. No Special Tax will be imposed on landed Property in the TRANSVAAL and ORANGE RIVER COLONY to defray the Expenses of War.

10. As soon as conditions permit, a Commission, on which the local inhabitants will be represented, will be appointed in each District of the TRANSVAAL and ORANGE RIVER COLONY, under the Presidency of a Magistrate or other official, for the purpose of assisting the restoration of the people to their homes and supplying those who, owing to war losses, are unable to provide for themselves, with food, shelter, and the necessary amount of seed, stock, implements, &c., indispensable to the resumption of their normal occupations.

His Majesty's Government will place at the disposal of these Commissions a sum of three million pounds sterling for the above purposes, and will allow all notes, issued under Law No. 1 of 1900 of the GOVERNMENT of the SOUTH AFRICAN REPUBLIC, and all receipts, given by the officers in the field of the late Republics or under their orders, to be presented to a JUDICIAL COMMISSION, which will be appointed by the Government, and if such notes and receipts are found by this Commission to have been duly issued in return for valuable consideration, they will be received by the first-named Commissions as evidence of War losses suffered by the persons to whom they were originally given. In addition to the above-named free grant of three million pounds, His Majesty's Government will be prepared to make advances as loans for the same purposes, free of interest for two years, and afterwards repayable over a

period of years with 3 per cent. interest. No foreigner or rebel will be entitled to the benefit of this Clause."

Lord MILNER: In submitting this communication to the Commission, we are instructed to add that if this opportunity of concluding an honourable peace is not availed of within a time to be fixed by us, the Conference will be considered at an end, and that His Majesty's Government will not in any way be bound by the present terms. In order that there may be no misunderstanding with reference to these terms, I have made a copy of the document and of Lord Kitchener's telegram, with the additions and alterations made by His Majesty's Government with a memorandum of what I have now said.

A discussion followed over the time that would be required to consider the matter at Vereeniging, and it was agreed that General Botha would propose a time-limit before the Committee left Pretoria that day.

This was done later on, and the time was fixed for Saturday evening, May 31, 1902, at the latest.

General Botha asked whether there would be any objection to the Delegates deleting some clause or other from the proposal now submitted by the British Government?

Lord MILNER: There can be no alteration. There must simply be a reply of "yes" or "no."

General Botha thought that they had the right to alter one or more of the clauses, because the burghers in the field had the right to surrender unconditionally.

Lord Milner said that the burghers could naturally do so. But the document from the British Government could not be altered.

THE COLONIAL REBELS.

Privately, much discussion had already taken place in the interests of the Colonials who had fought on the Republican side, and an informal conversation now followed on this subject.

Lord Milner communicated what the British Government intended to do with these Colonists, which intention appears from the following document which he read:—

"HIS MAJESTY'S GOVERNMENT must place it on record that the treatment of CAPE and NATAL Colonials who have been in Rebellion, and who now surrender, will, if they return to their Colonies, be determined by the Colonial Governments and in accordance with the Laws of the Colonies, and that any BRITISH Subjects who have joined the Enemy will be liable to trial under the Law of that part of the BRITISH EMPIRE to which they belong.

"HIS MAJESTY'S GOVERNMENT are informed by the Cape Government that the following are their views as to the terms which should be granted to BRITISH Subjects of the Cape Colony who are now in the Field or who have surrendered or have been captured since April 12, 1901. With regard to Rank and File, that they should all upon surrender after giving up their Arms sign a document before the Resident Magistrate of the District in which surrender takes place acknowledging themselves guilty of High Treason, and that the Punishment to be awarded to them, provided they shall not have been guilty of Murder or other acts contrary to the usages of Civilised Warfare, should be that they shall not be entitled for life to be registered as Voters or to vote at any Parliamentary, Divisional Council, or Municipal Election.

"With reference to Justices of the Peace, and Field Cornets of the Cape Colony and all other persons holding an Official Position under the Government of the Cape Colony, or who may occupy the Position of Commandant of Rebel or Burgher Forces, they should be tried for High Treason before the ordinary Court of the Country or such special Courts as may be hereafter constituted by Law, the Punishments for their Offence to be left to the discretion of the Court, with this proviso, that in no case shall the penalty of Death be inflicted.

"The NATAL Government are of opinion that Rebels should be dealt with according to the Law of the Colony."

The Conference then broke up. The secretaries, assisted by Advocates N. J. de Wet and Igns. S. Ferreira immediately commenced with the task of making copies and translations of the proposals of the British Government for the use of the Meeting of the Delegates at Vereeniging. This work occupied them till the evening.

At 9 o'clock p.m. the Commission left for Vereeniging by special train.

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CHAPTER VI.

VEREENIGING AND PEACE.

MINUTES

of the meeting of the Special Delegates at Vereeniging, South African Republic, on Thursday, May 29, 1902, and following days.

The Meeting commenced at 9 a.m., and, at the request of the Chairman, was opened with Prayer by the Rev. J. D. Kestell.

Having declared the Meeting open, the Chairman requested the Commission, which had been delegated to negotiate with Lord Kitchener and Lord Milner, to report on what they had done.

The acting State President S. W. Burger, on rising to do so, first requested the Secretary of the Meeting (Mr. D. E. van Velden) to read the following report of the COMMISSION:—

Pretoria, May 28, 1902.

To the Governments of the Orange Free State and South African Republic.

GENTLEMEN,

In accordance with the instructions received by us from the two Governments, we proceeded to Pretoria to negotiate with the British Representatives on the question of peace, and have the honour to report as follows:—

Our meetings with the British Authorities lasted from Monday, May 19, till Wednesday, May 28, and the delay was principally due to the long time required for cable correspondence with the British Government.

At first we made a proposal^[5] in which we tried to establish a restricted independence by the surrender of a portion of our territory as a basis of

negotiation. Lord Kitchener and Lord Milner, however, decidedly refused to negotiate on that basis, and informed us that if that proposal were cabled to the British Government, it would be detrimental to the negotiations.

At the same time we were informed that, as had already been intimated to both Governments, the British Government were prepared to negotiate only on the basis of the Middelburg proposals, subject to alterations as to details.

In order to prepare this proposal in a final form, Lord Milner requested the assistance of some members of our Committee, to which we acceded, with the understanding that the assistance of these members of the Commission would be rendered without prejudice.

As the result of the labours of this Sub-Committee, Lord Milner submitted a draft proposal, in which we insisted in the incorporation of a new clause, which was embodied therein (Clause No. 11). The draft proposal which is attached to this^[6] was then cabled to the British Government, and was altered by them and communicated to us in a final form. This final proposal is attached hereto.^[7]

We were informed on behalf of the British Government that this proposal could not be further altered, but must be accepted or rejected in its entirety by the Delegates of both Republics. At the same time, we were informed that this acceptance or rejection must take place within a definite time.

We thereupon informed Lord Kitchener that this final decision would be communicated to him by next Saturday evening at the latest.

During the formal negotiations some informal discussions also took place with reference to the British subjects in the Cape Colony and Natal who had fought on our side. As the result of these informal discussions, we received a communication from the British Government which we attach hereto.^[8]

We have, &c.,
(Signed)

LOUIS BOTHA,
C. R. DE WET,
J. H. DE LA REY,

J. B. M. HERTZOG,
J. C. SMUTS.

Acting President S. W. BURGER said: If some point or other in the documents that have just been read to you is not clear, one or other of the members of the Commission will give the necessary explanations. You will observe that the Commission tried to negotiate more or less in the spirit of this meeting. The Representatives of the British Government declared that they could not negotiate on any other basis than the surrender of the independence. We have now before us a document upon which the British Government thinks peace can be concluded. The question before us now is: how must we set to work? I think there are three courses open to us upon which we must decide before Saturday evening. The three courses are:—

(1) To continue the struggle. Is this possible for us under the circumstances in which we find ourselves; what are the prospects; and what will the consequences be? This we must consider.

(2) Accept the proposal of the British Government and conclude peace thereon.

(3) Surrender unconditionally.

On these questions the Meeting must now decide.

On the proposal of General S. P. du Toit, seconded by Commandant Mentz, it was resolved that minutes of the discussions be kept as briefly as possible, and also that all proposals and resolutions be recorded.

Mr. J. DE CLERCQ (Middelburg): I would like to have some elucidation of Clause 2. Whom does it include?

General SMUTS: The words are: "in the veld." It is thus plain that other persons are not included in it.

Mr. DE CLERCQ: What, then, becomes of persons who have been banished?

General SMUTS: Clause 3 provides for persons who, according to the British, have been banished.

Commandant JACOBSZ: Clause 2 deals with "burghers." I should like to know whether officers are also included.

General SMUTS: "Burghers" includes officers also. "Rebels" is the term in contra-distinction to "burghers."

General S. P. DU TOIT: In clause 4, I read: "The benefit of this clause will not extend to certain acts." May I know what acts are here referred to?

General BOTHA: As communicated by Lord Kitchener to the Commission, three persons are excluded from the benefit of Clause 4 of the peace proposals. They are namely: Mr. van Aswegen for the shooting of Captain Mears; Mr. Cilliers for the shooting of Capt. Boyle; and a certain Muller for the alleged murder of a certain Rademeyer in the district of Vrede. These three persons will have to stand their trial on the conclusion of peace.

Chief Commandant DE WET: Lord Kitchener arranged this matter informally with General Botha without reference to me, as I think he should have done, because two of the cases mentioned are of Free Staters. It is not down in black and white, that the three persons mentioned will be the only exceptions, and if more exceptions are made later I do not wish to be held responsible.

General BOTHA: I should like further to explain this matter. This point in Clause 4 was raised by the British representatives. Lord Kitchener asked to see me personally and informally, and at the suggestion of General de la Rey I went to him. Lord Kitchener then informed me that certain three alleged murders in the course of the war had attracted much attention in England, and that the British Government, on account of the feelings of the English people, did not see their way open to leave these three cases untried. The three cases already mentioned here were then communicated to me by Lord Kitchener. On a later occasion I took General Smuts with me, and Lord Kitchener repeated in the presence of both of us that only these three persons would be excluded from the benefit of Clause 4.

General HERTZOG: I am quite prepared to accept Lord Kitchener's word given to Generals Botha and Smuts.

General BRAND: Why are the names of these cases not inserted in the peace proposal?

General HERTZOG: They could not be inserted because as laid down by the British Government it could not be altered.

General DE LA REY: Only the three persons mentioned are excluded from the benefit of Clause 4, and because we were afraid that there might be more cases General Botha went and satisfied himself.

Chief Commandant DE WET: I did not wish to remain silent on this point, because there was only the word of Lord Kitchener and no other guarantee that other persons will not be prosecuted. I, of course, entirely believe what Generals Botha and Smuts have stated.

General HERTZOG: I am fully satisfied on this point.

Mr. C. BIRKENSTOCK (Vryheid) asked with reference to Clause 1 whether having regard to the large number of Kaffirs in many districts it would not be dangerous for the burghers to part with all their arms.

General BOTHA replied that the Commission had seen Lord Kitchener informally on this point, and pointed out this danger to him, and he had then agreed that in the districts on the boundaries where there were many Kaffirs, the landed proprietors and their sons could retain their arms under a licence, and that if there was a laying down of arms, he would send persons immediately to return the arms to these landed proprietors under a licence.

General DE LA REY: On this point I spoke out freely to Lord Kitchener. I said that I would never agree that burghers in the frontier districts should be entirely disarmed, and thus made lower than the Kaffirs. Lord Kitchener then said that he would take the arms from landed proprietors with one hand and return them immediately with the other.

Mr. BIRKENSTOCK: Clause 2 says: "The prisoners of war will gradually be brought back to their homes." Has a time been fixed, or will it be done in the course of years? I have heard that the British have an objection to sending back 30,000 persons.

General SMUTS: The Committee tried to get a time fixed within which all prisoners of war must be brought back, but the British had a great objection to binding themselves, because it would depend upon the number of transport ships they would be able to obtain to convey the 30,000 prisoners of war back, and also because it would not be advisable on account of the scarcity of food in the two Republics to bring back so many people at once.

The meeting then adjourned till two o'clock in the afternoon, when the proceedings were resumed.

Mr. L. JACOBSZ: Does Clause 2 provide for the return of the deputation and other persons in Europe?

General SMUTS: The members of our deputation and other burghers in Europe, if they wish to return, also fall under this Clause.

Mr. BIRKENSTOCK: What property is referred to in Clause 3?

General SMUTS: The word "property" includes every form of property.

Commandant VAN NIEKERK (Kroonstad): What course will be pursued with reference to the farms which have been sold?

Mr. J. L. GROBLER (Carolina): How many farms have been sold?

General SMUTS: Twenty farms, as stated unofficially.

Mr. J. L. GROBLER: Where?

General SMUTS: In the Orange Free State.

General HERTZOG: The Commission spoke informally to Lord Milner about the farms which have already been sold or confiscated by the British. He replied that they could not be returned to the former owners, but that the purchase-price would be refunded to them. About twenty farms had been thus sold, all situate in the Orange Free State.

Landdrost STOFBERG: Does Clause 5 signify that the medium of instruction will be Dutch?

General SMUTS: There is nothing against it in this Clause. According to this Clause the Dutch language will be taught, but it is not stipulated that Dutch will be the medium of instruction. My own impression is that the language in the schools will be English, but if the parents desire it, Dutch.

Landdrost STOFBERG: It means therefore that the language medium will be English, but that Dutch will also be allowed.

General HERTZOG: Lord Milner declared that he wanted only one language in South Africa, and that was English. English will be the medium.

Landdrost STOFBERG: A foreign language therefore?

General DU TOIT: What will be the Constitution of the Civil Government?

General BOTHA: It will be that of a Crown Colony.

General KEMP: Is no time fixed within which Civil Government must be introduced?

General BOTHA: No.

General DU TOIT: In Clause 9 mention is made of war taxes. Will there be no other taxes?

General BOTHA: The British Government says that they will not defray their expenses out of a tax on the farms.

Commandant ALBERTS: No war tax—therefore there will be other taxes?

General SMUTS: Yes, certainly, but they will be imposed on all inhabitants.

Mr. P. R. VILJOEN: If anyone has a Government note or receipt must he prove how he obtained it?

General SMUTS: Clause 10 is directed against speculators who have bought up notes.

Commandant JACOBSZ: What course will be pursued in cases where notes have passed from hand to hand?

General BOTHA: The Clause is directed only against speculators.

Mr. BIRKENSTOCK: Do the words: "to assist those who are not able to assist themselves," mean that widows, orphans and maimed will be assisted?

General BOTHA: Yes.

Mr. BIRKENSTOCK: A pension, for instance?

General BOTHA: No pension.

Commandant FLEMMING: Was nothing said about receipts issued by the British themselves?

General DE WET: Lord Kitchener said that they would not be paid out till after the war, but not to speculators.

Commandant FLEMMING: There is therefore hope for British receipts?

General DE WET: Yes.

Mr. NAUDÉ: Is a man a burgher who became such after the commencement of the war?

Advocate L. J. JACOBSZ: No one is a burgher who became such after the war had begun.

Mr. BIRKENSTOCK asked a question with reference to creditors.

General BOTHA: In reply to Mr. Birkenstock I may say that we discussed that question formally, but the British representatives would not bind themselves with reference to the new Government's future policy, but asked us to trust that new Government to protect debtors.

General DU TOIT: Does Natal hold another view regarding the rebels?

General DE WET: Yes.

General DU TOIT: If the rebels remain outside the boundaries of their Colonies will they then be free?

General SMUTS: Yes, if they remain outside the Cape Colony and Natal.

Commandant OPPERMAN: Will their property be confiscated?

General SMUTS: In the Cape Colony there is no law providing for confiscation.

General BOTHA: Lord Kitchener said to me that at the coronation of the King he would recommend a general amnesty.

The Chairman at this stage asked the meeting to confine itself to the following questions:—

- (1) Whether it would accept the document at present before them.
- (2) Whether it would decide to continue the war.
- (3) Or, whether it would decide to surrender unconditionally.

Mr. J. DE CLERCQ (Middelburg) said: I have already expressed my opinion on the question as to whether we shall continue the war. If we cannot proceed, then the question is whether we shall accept the proposals of the British Government, or whether we shall surrender unconditionally. It cannot be denied that these proposals are not so good as we wished, but the question is whether in the circumstances we can get anything better. If we surrender unconditionally and return to the burghers and they ask us: "What

have you obtained for us on surrendering?" and we reply: "We have done nothing except surrendering you and ourselves unconditionally to the enemy," then we shall be in difficulties, and how shall we be able to justify ourselves? The burghers expect that we shall obtain the best terms possible for them, and I say that it is a greater honour for a people to negotiate than to surrender themselves unconditionally. If we get terms we shall be better able to satisfy the people than if we can only inform them that we have handed them over to the mercy of the enemy. I do not believe that anyone will be able to convince me that unconditional surrender will be better for the burghers. Unless I can be convinced of the contrary, I think it will be best to accept the proposal of the British Government.

General NIEUWOUDT: I think that the matter is now plain, and propose that we immediately proceed to vote whether we shall continue the war or not. If the majority is not in favour of continuing the struggle, then we can discuss the question whether we shall accept terms or surrender ourselves unconditionally.

This proposal was seconded by General Froneman.

Mr. C. BIRKENSTOCK: We must not act with undue haste in this important matter. Every Republican knows what the sentiment of freedom is, for which everything has already been sacrificed, and therefore it is not so easy to approve of, or to reject, a document such as the one now before us. I cannot agree with General Nieuwoudt that we should immediately decide as to whether we shall or shall not continue the war. We must consider the question of our independence as something sacred. We should consider whether we can continue the war, or whether we cannot continue it, and whether by proceeding we can obtain better terms. Are we now able to continue the war? Are there not at least two or three districts that cannot proceed with the struggle? Co-operation is the all-important matter for us. To think that a portion of the country can continue the war alone is certainly wrong. Let us calmly consider whether our strength and resources are such that we can maintain the struggle for a year. If we cannot do so, let us rather accept terms, for half a loaf is better than no bread. With my heart I cannot part with our independence, and it is hard for me to make our people so

unhappy, but for the sake of the people and of the widows and orphans we must make the best we can of the matter.

Commandant JACOBSZ also could not agree with the proposal of General Nieuwoudt, because the matter was far too weighty to be disposed of so hastily.

Mr. P. R. VILJOEN (Heidelberg): The document that lies before us is painful. We are so tied up by it, so "knee-haltered," that it appears to me that we shall never get loose again. But I must admit that if we continue the war we may later be hobbled instead of "knee-haltered." I have already been informed that all my properties have been confiscated. If this had happened to my properties only I would not mention it, but I fear there are more people whose properties are threatened in the same way. I think we must instruct the Governments to conclude peace on the best terms.

General S. P. DU TOIT (Wolmaransstad): We are passing through critical moments. We must respect each other's opinion because everyone thinks that he has grounds for his views, and here especially it is expected that everyone will express his opinion honestly and freely. If that is done we shall be able to decide what course to pursue. We must not be over-hasty, because we are on the eve of a most important decision, and if a delegate declares that he is not able to prosecute the war any further we must not consider him cowardly or unfaithful. His Honour the Acting State President S. W. BURGER, said: There are three questions before us, but I think that we must for the present put aside the question of unconditional surrender, and only discuss the document before us or the continuance of the war. When I left my commandos it was my opinion, and that of my burghers, that unless we retain our independence we must continue to fight, and my instructions were to that effect. But my burghers gave me those instructions because they were not acquainted with the true conditions of the country, as I have learnt them here now. We received but few reliable reports from other parts. We fixed our eyes on God and on the leading commandos in the Eastern portions of the country. If the burghers had known that those leading commandos cannot continue the war they would have thought differently. We cannot deny that there are commandos which, if the war must proceed, must take some great step or other. We always expect that when it comes to

voting the minority must submit to the majority. This is the general principle, and also the best in times of peace. But we are here under other circumstances. If it were decided here by a majority of say, twenty, to continue the war, then I ask: why do the others vote in the minority? Is it because they are afraid, or tired out, or do not wish to co-operate? No; it is because they cannot proceed any further. And can the majority then go on alone? No, they are too weak for that. If we cannot all continue to co-operate, it means that we cannot continue with the struggle. And therefore I say that here to-day the majority must bow to the minority. We must speak out freely, for no one of us here stands now under the orders of General Botha or of General de la Rey. Everyone stands here with his own vote, and is himself responsible. I am of opinion that if we continue the war our people will die a national death, and also run a great risk of dying a moral death. On what grounds can we hope to prosecute the war to a successful issue? If such grounds can be pointed out to me, I shall very willingly decide to go on manfully, but as far as I can see there is no hope for us. I feel that we cannot continue, and if I had to continue now I would do so in a very disheartened manner. If I return to my commando and inform them that the British proposal has been rejected, they will ask me on what grounds have we done so, and what reasons have we for hoping for better results. Then I must be able to state our grounds, and I cannot say that I have read this or that in a cutting from a newspaper, or that the opinion or this one or that one is so or so, or that there is hope that war will break out in Europe. If I were to do that they will say: "You have built on sand." I do not see my way open to do that, and if it were done, what I fear with heart and soul will come to pass, namely, that small parties of burghers will make terms for themselves with the enemy, and surrender, and where shall we then stand? Almost all the burghers of some districts have already been captured, and our position becomes daily worse, and it depends upon us whether our people will be preserved, or whether we shall later be so reduced that there will be an unconditional surrender. What will then become of us and of our officers? Will they not be banished? I am not thinking of myself. If I knew that by being banished I could save my people, I, and many with me, would willingly sacrifice ourselves. It is plain to me that if we decide to continue, unconditional surrender will follow of itself, and the Lord preserve us from that. Our people will then simply die as such, because there will be no one to help them. I will never lay down

my arms if the majority decides to prosecute the struggle. No. I will occupy myself somewhere, and operate here or there with other Generals. But we cannot take such a decision unless we have good grounds. Mention is made of faith. Yes, and we had faith, but in my opinion faith must have its grounds. When Abraham went to sacrifice Isaac he knew that, even if Isaac were killed, God's promise would nevertheless be carried out. If we believe that God will ultimately deliver us, we must use our brains.

I do not see a chance of continuing the war, but must associate myself with those who say: "I have done what I could for my people and myself, and now I can do no more." I see no other course open to us than to accept the proposal before us.

Commandant RHEEDER (Rouxville): The British refuse to allow our Deputation to come out to see us. Many ask on what grounds we can continue the war, and to them I reply that this refusal is one of the grounds, because, on the face of it, it is obvious that something good is brewing for us. Let us take everything into consideration. If we accept these terms we have a dismal future. And what can we expect from the coming generation, who cannot now understand what is being done? Later they will read that there were still so many burghers in the field, and that the conditions were such and such, and then they will read that a free people surrendered. If the next generation should say: "There were so many burghers in the field, and yet we are not free; where is our country?" we shall have to reply: "We laid down our arms when we should have fought." We shall have to say that we did that because our faith deserted us, because we feared the enemy's strength. I think that we have better prospects now of good results from the continuance of our struggle than when we commenced. When we are forced as a People to lay down our arms, then I shall be satisfied to bow to the will of the Lord, but I cannot be satisfied to proceed to surrender as a divided people. Our families are prepared to suffer for another year to retain our freedom, and how shall we meet them if we now make peace on these terms? Our State President is so indispensable to us, and now the Lord lays His hand upon him, but this trial is a proof to me that the Lord is still with us. If a commando cannot remain in its district, it can go somewhere else where it can exist. We must not give up the struggle until we get back our independence.

Acting State President S. W. BURGER remarked: Commandant Rheeder says that we must go on with the struggle, but he has not pointed out the way to us, nor mentioned any ground upon which we can continue.

Commandant RHEEDER: The time for surrender is past. If we wished to surrender, we should have done so while the burghers still had all their possessions. Now they have nothing more, but we have still space enough, and, therefore, we must fight until we have our country back.

Commandant P. L. UJS (Pretoria): So much is said about our Deputation and about what they have perhaps done for us or can still do, but we must remember that they are in continuous communication with the Netherlands Government, and I am convinced that the correspondence between the Netherlands Minister and Lord Lansdowne was sent to our Government with the cognisance of the Deputation. I think that we must banish from our minds the hope of obtaining any benefit through the mediation of our Deputation. The correspondence in question between the Netherlands and British Governments probably took place with their co-operation.

The Meeting was adjourned till 7.15 that evening.

At 7.15 the Meeting resumed, and was opened with Prayer.

Commandant CRONJE (Winburg) said: I only wish to say a few words. It has been rightly stated that we are passing through a serious stage—in my opinion the most important stage—in the history of the South African people. The Delegates represent the South African people, and we must now decide for that people. It is asked: "What are our prospects?" but I ask, "What were our prospects when we commenced the war? Were there grounds then?" It was indeed believed that right was might, and trust was put in God. And God helped us. If we want grounds, we must look back. When the enemy entered our country, everything was dark and gloomy. There was a time when more than 4,000 men surrendered. They said: "Our struggle is hopeless." Those who would not surrender with the 4,000, but continued the struggle, were called mad. Two years ago the difficulty was raised that there was no more food. A year ago the same difficulty was raised, with the addition that the enemy was too strong, and that we would

have to give in. And yet the fight was continued. We, as representatives of a free people, must not act hastily to repent a few days later of a step we have taken and upon which we cannot go back. I never had hopes of intervention, and it was never said by the Government or by the Generals that they had hopes of intervention. I have always said that we must put our trust in God. When I return from here I shall be able to say to my burghers that the ground upon which we are going on with the struggle still is: Trust in God. We have no right to give up the struggle now. In some parts of the Free State, also, there was no food, and yet deliverance was always at hand. We have sent our Deputation to Europe, and President Kruger is there now, too. I ask: "Have we, then, no more faith in them?" If they find that there is no chance for help for us in Europe, will they not inform us to that effect soon enough? I ask you, who would acquaint us thereof sooner than they? And we must note that the enemy will not allow us to have any communication with our Deputation, or that one of the members should come out here. It is said that by continuing the struggle we shall exterminate our people, but I say that by accepting this proposal we shall utterly destroy our people. We have nothing more to lose now, but everything to gain. We may be able to retain our independence yet, which is so dear to us. In the verbal message from our Deputation they say we must not treat with the enemy without giving them notice. And when President Kruger left, it was his request also that we should not negotiate without his cognisance. I say we have no right to conclude peace on this basis. By doing so we shall deliver a death-blow to the Africander race. I think that there is something brewing in Europe. Five years ago there was an Armenian question, and it took five years before the Powers stepped in and made them conclude peace. I wish to ask you not to take a step which you may regret later. Let us ponder before we part with our freedom. I must also point out that our comrades in the Cape Colony are not safeguarded by the terms offered. They will have to leave their country, and they have lost all they have. Those who remain with us will have to be supported by the British, their enemies. Then the farms of some burghers have been sold, for which they will receive nothing. With reference to the £3,000,000 offered for compensation, that is not even sufficient to cover a fifth or even a tenth part of our losses. For these and many other reasons the British proposals are quite unacceptable to me, and we cannot and may not do anything else but vigorously continue the struggle.

General FRONEMAN (Ladybrand): What I wish to say breathes the same spirit as the words of the last speaker. My country is dear to me, and I cannot think of parting with it. An answer is insisted upon to the question: "What grounds have we for continuing the war?" But I ask in turn: "What grounds had we when we commenced the war?" I have taken part in the struggle since it began, and have never had more grounds for continuing it than now. My division was also entirely exhausted, but the Lord has made provision again. I was present when 4,000 burghers gave up the struggle in despair, and I was also present at the surrender of General Cronje, and all I can say is that we commenced the war with prayer and with faith in God. We have suffered, but it was the Lord Who allowed this war to come over us. We prayed that the war might be warded off, but God disposed otherwise. One of our Generals has rightly said that the Lord would reveal Himself only after all human resources have been exhausted. Although we only number hundreds where the enemy has millions, we must nevertheless stand firm in our trust in God. If we accept this proposal, our name as "Republicans" is lost for ever and always. We, two small Republics, are offering resistance only to defend the possession which we have received from our forefathers, and I can never think of giving up our dearly bought rights. Even if I were the only one, I would never give my vote for that. I have consulted my burghers and also their wives, and they said to me: "Bring us peace." I then asked what kind of peace they desired, and their reply was that our independence was not to be sacrificed. I thus have a clear instruction, and before I can part with our independence, I shall first have to return to my burghers to consult them.

Field Cornet B. H. BREYTENBACH (Utrecht) said: On the question whether the war must be continued a reply of "yes" or "no" must be given. The general condition of our country has been laid before us by the Delegates, and the Meeting now stands before the stubborn fact that the war cannot be continued. Hitherto not one of the facts which indicate that we cannot prosecute the war has been removed or controverted. The facts still stand, and I thus ask on what grounds can we decide to go on with the war? I am not going to proceed blindly or in the dark. We, as responsible persons, cannot step blindly over facts. If we are going to continue, we must have good grounds for believing that the future will bring us light. If not, my instruction is to vote for a settlement for peace. It would, in my opinion, be

criminal of me to vote for the continuance of the war, if our circumstances remain as laid before us here. Our attention is directed to the grounds we had when we commenced the war, and we are asked what our hopes and prospects were then. I say, whatever they may have been, what have we gained? We must now declare that there is no progress in our cause. On the contrary, are we not gradually going backwards? I say "Yes," and we may not go on unless the facts and difficulties laid before this meeting are removed. It is plain that at least 11, and perhaps 14, commandos cannot continue the struggle, and if we decide to continue, it speaks for itself what the consequences will be. What will it profit us to resolve to go on if we have no people to fight? Who can take the people by the throat and say to them: "Do this or that"?—especially if we ourselves see the true state of affairs. If we decide to continue, the war will in any case cease of itself in the course of a few months, and the end will be far more fatal and pitiful than if we make peace now.

Commandant W. J. VILJOEN (Witwatersrand): Some are in favour of continuing the war, others are against it. I do not stand here with a ready-made opinion, but with a mind that is open to be convinced by facts. Those who are for peace have given facts and grounds upon which they base their opinions. The others only speak of faith. A year ago we decided to continue the war on faith, and now, having fought for another year, we are convinced that we must make peace. If it is desired to proceed, the way must be indicated and the grounds stated which can convince us that we act wisely. Otherwise we must make peace now.

General DE LA REY: It is my custom to speak briefly. I do not use three words where one is sufficient. I went to meet the people with definite instructions neither to approve of nor to reject what might be said at the meetings, and I have adhered to them. There are now here 8 representatives from my districts, with one from the Cape Colony, and they represent almost the half of the South African Republic. I need not say anything about the spirit of my burghers, but everyone can understand that after the recent victories they are courageous, as all the Delegates can testify.

With reference to our cause, I do not wish to shut my ears and eyes to facts. If there is deliverance for the Africander people, then I am with them,

and if a grave must be dug for that people, then I go into it with them. You can talk and decide here as you choose, but I tell you that this meeting is the end of the war. But the end may come in an honourable or in a dishonourable way. If we decide to continue the war without grounds before us, the end will be a dishonourable one.

You speak of faith. What is faith? Faith is: "Lord, *Thy* will be done—not *my* will to be the victor." I must kill my will, and I must act and think as He directs and leads me. That is what I understand by the faith in which God's children must live.

There are three courses open to us this evening, and one of these must be chosen by the Delegates. Which course must be chosen? You may accept the proposal of the British, or you may decide on unconditional surrender. If you do the latter, know, then, that the matter is not disposed of, for then the question arises: "What will become of our people?" After those people have fought so faithfully, after all the sacrifices they have made, to hand them over now unconditionally into the hands of the enemy? That must not be! Do consider clearly where the decision you may take will lead you to. If it was desired to surrender unconditionally, the time for that would have been while the people still had all their possessions with which they could help themselves, but not now that the people have been deprived of everything. There is not one in a hundred who can help himself now. It is therefore hard for me to think of unconditional surrender.

There is another course which can be followed: to go on with the struggle. But I am convinced that if we do that, one district after the other will lay down their arms—will have to lay down their arms—and the war will thus terminate in a dishonourable manner. If you can indicate a way to me, or show me grounds upon which we can hope for good results, I am prepared to go and fight again.

I have a responsibility, a very great responsibility, resting upon me. The proposal before us, the terms which the British wish to grant us, are not of great value, but yet they stipulate a few things. The prisoners of war must be brought back, the Government must provide the families with food and other necessities, until they can care for themselves. The terms also provide that many hundreds will not be considered as criminals and be convicted as

such. If any one can say: "We can go on," I and my officers can do so, but I shall never allow such words to pass over my lips, because I may not decide for one part of the country only. I must consider our condition as a whole. We have had some successful encounters, but I put myself the question: "What have I actually effected by these victories?" Since they have been fought, the enemy has sent down about 40,000 mounted troops against me, which have deprived me of all my cattle. During the last three months I have lost more than 600 men, killed, wounded, or captured. It is plain to me that the enemy wish to attain their object at whatever cost.

Many speak of hope from the Deputation in Europe. About a year ago the Deputation wrote us that they expected our deliverance only from our own perseverance, and now a year later we must not continue saying that we have hope from the Deputation, who themselves had no hope of intervention. If they have not been able to do anything in two years, they will never be able to effect anything.

When I speak thus you must not think that I do so from cowardice, because I can assure you that I fear no man or power in the whole world. Neither do I wish to take it amiss in anyone here who thinks or speaks differently. There are some who have come with a definite instruction to hold out for independence only. But I am now well informed on the condition of affairs over the whole country, and I challenge any Delegate to go with me on a platform before the people. I am convinced that, out of the three courses open to us, the people will approve of the course which I am going to choose, because I shall prove to them that in following that course I have done or obtained something for them at the last moment. And is that not better than to say to the people: "You must continue fighting, but the future is dark and without hope, and I cannot point out to you even a small ray of light"? By deciding differently, we shall force our people who were so faithful to become "handsuppers," and in that way the war will come to a dishonourable end. Therefore, Delegates, reflect on what you are about to do.

Landdrost BOSMAN (Wakkerstroom): I am thankful that General de la Rey has spoken out so frankly. It will give more than one of us light on what we have to decide. As several speakers have already remarked, the matter

before us is very important and difficult, because not only does the future of our people rest upon us, but that future depends upon what we shall decide.

I must say frankly that I am against the continuance of the war, and my reasons are briefly these: It is stated that we did not commence the war with the hope of intervention, but with faith in the Lord. I cannot quite agree with that, and I say that we did begin the war with the hope of intervention, and now we find that that hope will not be realised. If we did not cherish that hope, why did we send the Deputation to Europe? And why, while we were still in Natal, was it stated in war reports that the Deputation were doing good work? That was said to encourage the Burghers. Many took up arms in that hope. Who was the cause of that hope originating amongst the people I do not know, but many Volksraad members spoke as if our independence had been guaranteed by European Powers. The truth of what I say was proved when the meetings to elect delegates for this meeting were held. I was present at several of those meetings, and at each one of them the burghers insisted that we should try to get into communication with our Deputation. Why should they have done that if there was no hope of intervention? That hope dwindled away when we noticed that there was no ground for it. It is thus plain that we did not commence the war with faith in God alone. A further proof of this is that we hoped and expected much from what our comrades in the Cape Colony would accomplish. That hope has also vanished, now that General Smuts has declared that we must not expect much from the Cape Colony, and that there will be no general rising there.

Another reason why I am in favour of peace is because our commandos have been much weakened. From 50,000 men our number has fallen to 15,000, and that number is fast decreasing. Another reason is the scarcity of foodstuffs. Last year this scarcity was also spoken of, but that was nonsense. Now it is only too true. You can now ride from Vereeniging to Piet Relief, and only here and there will you come across a few cattle. I may say that you will see scarcely any cattle. Then we must think of the suffering of the women and children still with us, and especially of those in the Concentration Camps.

If we decide to continue, many of the 15,000 men still under arms will be lost to us, and our numbers will decrease month by month. Many say we

may not so trample on the blood already shed as to make peace by surrendering our independence, but that for the sake of that blood we must continue the struggle. This is a serious matter, and I hope that I shall never be guilty of trampling on such costly blood. But there is something more costly than the blood which has already been shed, and about which we can do nothing now, and that is the blood of burghers and of women and children which will still have to be shed if we decide to continue. And that blood will be given for a cause, which, so far as human beings can see, is hopeless. That is a much more serious matter to me. If we continue the war, we become the cause of still more widows and orphans who will have no one to care for them.

I did not intend to speak on the religious side of the question, but it has been touched upon, and for that reason I also wish to say something upon it. It is difficult for us to find out what course God wishes us to pursue in this matter. We do not know whether it is God's decree that we must retain our independence or not. It may be God's will that we should give it up. What we know for certain is that God desires us to do right. Everyone who does right is on the right road. There is no doubt about that. I am convinced that if I vote for the continuance of the struggle under the existing circumstances, and in that way cause more suffering, then I am not on the right road, and thus not on God's way. On the other hand, when I see no hope or prospect of prosecuting the war with good results, and I vote for giving up the struggle, then I am on the right road, and thus also on God's road.

There is another course open to us—namely, unconditional surrender—but I cannot vote for that. If we do that, then one of the first things that the enemy will do after the restoration of peace will be to represent to our people that their leaders did not do what they could have done, and I am of opinion that thereby mistrust and suspicion will be raised in the minds of many of our burghers. Therefore, after all that we have suffered and done, I think that, however hard it may be, we can now do nothing else but choose what is best and most acceptable to us. Our feelings and love for our country and people rise up against that, but if we allow ourselves to be led by our feelings, and by our love, without using our reason, we shall find ourselves on the wrong road. Everything will work together for our good.

I conclude by warning all that we can only too easily mistake a will-o'-the-wisp for a star, and that we should thus decide very honestly and carefully.

Commandant H. S. GROBLER (Bethel): There are three courses open to us, and if ever an important choice had to be made, it is now. As far as I am concerned, I must say that it is in my opinion impossible for us to continue the war. My district must be abandoned, and if I, as an officer, cannot state other reasons to my burghers upon which we can go on, how can I expect them to continue? There are about 12 districts in the South African Republic which must be evacuated if the war is to go on. That means that we shall have to resort to our furthestmost boundaries and leave the enemy in possession of the heart of our country. But by fleeing about we shall not be able to retain our independence. We must fight for that. It is asked what prospects we had when we commenced the war, and it is answered: Faith. Yes, we must have faith, but the means must be there too. Then we had burghers, cannon, food, and war material, but now we lack all those means. It appears to me that the time for fighting is past, and that we must think about the people. I am a born son of the soil, and have once before fought for my independence, so that it is very hard for me now to think of giving it up; but with the facts before us, I shall have to vote for the acceptance of the British proposals. Our families are in a pitiable condition, and the enemy uses those families to force us to surrender. The burghers who have sent us to this meeting are in an equally pitiable condition. What will it avail us to resolve to continue the struggle if the burghers cannot hold out any longer? We must also not lose sight of the fact that, by accepting this proposal, we get our prisoners of war back. What would otherwise become of them? And we burghers in the field are threatened with the sale of our properties, which hangs as a sword over our heads. If that threat were carried into execution, what would become of us? Further, our burghers and families in the Concentration Camps are dying a moral death. These are all facts which force me to accept the proposal before us. If we can prosecute the war vigorously and with a chance of success, I shall be the first to say: let us do so for the sake of our burghers, our families, and ourselves.

Commandant VAN NIEKERK (Ficksburg): It is impossible for me to vote for the acceptance of this proposal. The last word of my burghers to me was:

"Do not part with our independence; we are prepared to die for that," and that is our opinion still. Grounds are asked for the continuance of the struggle, and it is difficult for me to state such grounds, but I can point out that there is a difference between this proposal and the Middelburg proposal of a year ago, and that is a proof to me that the enemy is now more prepared to meet us, and the longer we hold out, the better terms we shall get, until we obtain what we want. Let us thus not be too hurried, but stand firm as men and hold on. I am convinced that if we hold out for our independence we shall soon be in a better position, and that the enemy will again approach us for the purpose of opening negotiations.

General J. G. CILLIERS (Lichtenburg): I have already informed the meeting what my instructions were from the burghers with reference to our independence. Naturally, I do not feel myself bound by those instructions, because I am here to make the best of the circumstances for my people, and I am sure that I have the confidence of my burghers.

The other evening it was asked whether we are justified in continuing the struggle. I then answered: Yes, if we considered the justness of our cause, we are indeed justified. But when we consider our cause further and take our general position into consideration, then the question arises whether we are not perpetrating a murder on our people if we continue the war. The position in both the Republics has been made clear to us, and that condition is very pitiful. As far as my district and burghers are concerned, we with some other districts are still in a position to continue the war, but must I not consider the situation in other districts? And shall we accuse those men who have up till now stood faithfully with us of cowardice because they cannot go on any longer? No, we may not do that. I, of course, long for peace with the retention of our independence, but we cannot get that, and nobody can get that for us. We have delegated a Commission who enjoy our fullest confidence, and they have tried to get all that they possibly could from the British Government, and there lie the terms now upon which we can conclude peace. Who of us is in a position to-night to say we can continue the struggle and thereby obtain something better for our people than these terms now before us? It is thought that the Deputation are doing good work because the enemy will not allow us to get into communication with them, but the last we heard from our Deputation was to the effect that our

salvation lay in our having to fight to the utmost, and till our last cartridge has been fired. If, now, we were to go so far as to sacrifice the last man and to fire our last cartridge, what have we then? Is such a message from the Deputation encouraging to you? To me it is by no means encouraging.

Further, some argue about Faith, and it is said that we commenced the war in faith. To that I wish to say that we must not believe one thing and not the other. We must not believe that if we persevere we shall obtain the victory. We must also believe that it is possibly God's will that we must for a time bow to the power of the enemy. Our Commission to the Representatives of the British Government have done their best to obtain as much as possible for the people, and I see no other way than to accept the proposal before us. It is indeed true that the voices of our families call to us: "Do not give up the struggle on our account." But they also say: "Do not go on if the future becomes dark to you." If my burghers had known what I know now they would have given me a different instruction. Must we demand more sacrifices from the burghers and families if we see no light for the future? However hard it may be, we cannot fight against impossibilities. We must only consider what is best for our people and take care that we give no one the opportunity to say: "You could have saved us, but you have left us in the lurch." Just because our cause is dark and difficult, we must use our minds and keep only the welfare of our people in view. I can only agree to accept the proposals that lie before us.

Chief Commandant DE WET then said: I feel myself compelled to express my feelings too. The last speaker declared that the last word we had from our Deputation was that we must fight till the last man was dead and the last cartridge fired. I must say that I never heard of such a message. What I know is that the Deputation let us know last year that they saw no hope of intervention, but that we should hold out till the last means of resistance had been exhausted. But I did not understand from that that we must continue till the last man was dead and the last cartridge fired.

I wish to express my feelings briefly but candidly, and I must go back to the beginning of the war. I must say that when we began the war I had not so much hope of intervention as now. In saying this, I do not wish to intimate that I now have hope of intervention, but that we did not then know

whether we had the slightest sympathy in England or in Europe. And now we have found out that we have indeed sympathy, and although no one intervenes on our behalf, our cause is nevertheless strongly supported, so that even English newspapers give reports of "pro-Boer" meetings over the whole world. This information we obtain from Europe through a man sent hither by the Deputation, and I have no reason to say or to think that our informant is not trust-worthy. He brought the last letter from the Deputation, and thus certainly enjoys their confidence. This man is acquainted with public feeling in Europe towards the two Republics, and informs us that our cause is daily gaining ground in Europe and even in England. The question may now be asked: Why have the Deputation not sent us a report on these conditions? The reason is clear as daylight to me. We sent the Deputation to seek help for us. They went to ascertain from the other Powers what could be done for us, and thus came to know what the policy of those Powers was. Will they now be able to lay bare that policy to us? No, certainly not, because there is a great danger that their letters will fall into the hands of the enemy. Even though the Members of the Deputation were here themselves, I doubt whether they would be free to explain to us the future policy of the European Powers. It is therefore significant to me that the Deputation is silent, and this should not discourage, but rather encourage us.

If there is any man who feels the pitiful condition of our country, then I am that man. And I believe every word that has been said here about the conditions in the various divisions. It is asked: What prospect have we of continuing the fight with success? To reply to that I must go back to the beginning of the war, and ask what hope and prospects had we then? My reply is: Only Faith, nothing more. And that Faith we still have. How weak we were in comparison with that Power, our enemy, with its three-quarters of a million of soldiers, of which it has sent some 250,000 to fight us! How could we have entered into such a struggle if we had not done so in Faith? We could only speculate on help from Natal and the Cape Colony. Some said that Natal and the Cape Colony would stand by us, but now we miss the persons who said that. They are lost to us, but we have not lost them on the battlefield, for they sit amongst the enemy, and many of them are even in arms against us. However, I never built on that help, although I hoped

from what history teaches us that we should not stand alone to defend our rights by force of arms.

I feel why some, taking into consideration our position, seek for tangible grounds upon which we can justify a continuance of the struggle; but then the question arises again: What tangible grounds had we when we began? Has the way become darker or lighter to us? It is still all Faith, and we know what a small people can by Faith triumph over the most powerful enemy. And if we, a small people, overcome by Faith, we shall not be the only people that has done so. Those who say that the struggle must be given up want tangible grounds from us for the continuance of it, but what grounds had we at the commencement? Has it become darker now? On the contrary, the history of the last 22 months has given me strength. A year ago General Botha wrote to me, and correctly too, that the scarcity of ammunition gave him anxiety. We also had that anxiety, because our ammunition was exhausted as well. There was a time when I feared and trembled when a burgher came to me with an empty bandolier and asked me for ammunition. But what happened? Since September last ammunition in large and small quantities has miraculously poured in, so that, to use an expression of the late General Joubert's, I was agreeably surprised (*Ik met een blijde schaamte moest staan*). And what happened with ammunition occurred also with horses. We always obtained a supply from the enemy. I do not take it amiss in those who want grounds for our Faith. I have mentioned some grounds, but those are only a thousandth part of what might be mentioned. I may add this further reason. The enemy has approached us. I agree that this proposal is an improvement on the Middelburg proposal of last year. The enemy have made further advances. How have they not approached us since the commencement of the war, when they forced themselves into our country? When our Governments negotiated with Lord Salisbury at the beginning of the war in April, 1900, the British Government would hear of nothing but unconditional surrender. To-day England is negotiating with us. Before we accept this proposal, let us once more take up this struggle, and do our duty—do what our hands find to do, and I have no doubt that the enemy will afterwards approach us again with more favourable proposals, if they do not leave us our entire independence. The Deputation said to us: "Persevere," but I do not think that they can lay bare to us on what grounds this advice was based.

Remember, too, that in the first (Boer) war the South African Republic stood alone against the powerful England, without any assistance. There were wavering ones then also—the so-called loyalists. It was then also a struggle in Faith only, and what was the result? They fought in Faith only and won. Is our Faith, then, going to be so much weaker than that of our forefathers?

It is asked: What about our families? Certainly we must care for them, but only as far, and as well, as we can. More we cannot do. It has been said that we must let the men lay down their arms to save the families, but it is a hard matter to say to a Boer: "Take your family, go to the enemy, and lay down your arms." However, we could do that rather than to see an entire people fall.

We can learn much from the history of America. It has been said that our circumstances cannot be compared with those of the Americans, and yet a comparison is not out of place. Even the powerful England had to give in to them. It may be said that America is much larger than the two Republics, but we are not bound to the territories of the two Republics. The Orange Free State offers many difficulties on account of her situation. The railway passes through the entire country, and on the borders we have the Basutos, a powerful nation. We have no Bushveld like the South African Republic, and have thus to find our way through the British forces.

The matter is a very grave one for us, but we cannot part with our arms. Everything else is of minor importance to me, but if we give up our arms we are no longer men. Let us persevere. Three or six or twelve months hence or later, a time may dawn when we may be able to do everything with our arms. But if we give up our arms and such a time dawns, we shall all stand as women.

Now, I wish to ask you: Why has Lord Kitchener refused to allow our deputation to come out? And why did he say that we could see from the papers that there was nothing brewing in Europe? Which papers, however, did he refer to? *The Star*, *The Cape Times*, *The Natal Witness*, and other Jingo papers, which, you must moreover bear in mind, are all censored. If we can accept his word that the deputation can bring us no favourable news it would have been to the interest of England to let the deputation come out,

or to allow all newspapers through. But there is no question of allowing certain European and even certain English newspapers through. If we therefore give up the struggle now, we do so in the dark. We do not know what is going on in the outside world. We cannot say that the enemy are making their terms more and more onerous, because that is not so. They are conceding.

Considering all this, and also the fact that the tension in England can be looked upon as an indirect intervention, I believe that we should continue with the bitter struggle. By standing manfully we shall get our just rights. When the time arrives that we cannot go on any further, we can again open negotiations. Let us keep up this bitter struggle and say as one man: We persevere—it does not matter how long—but until we obtain the establishment of our independence!

General C. F. BEYERS (Waterberg) said: The matter presents itself to me thus: Which must I follow: my conscience or my reason? To that I have only one reply—I must follow my conscience, because if I fall, and I have followed my reason and not my conscience, I do not know whither I go. But if I follow my conscience I am at any time prepared for my death. History, as you all know, tells us about many men who have been martyrs, and who have been burnt for the sake of their faith, but it seems to me that only in books do we read of such great things, and that they do not occur any more in our time. I respect everyone's opinion on our great cause, which is most important and serious, but we must not forget to observe how much welfare and salvation was born out of all the great sufferings of the heroes of old, although when the martyrs died it seemed as if everything was lost with them. But observe how much welfare and salvation arose from the circumstance that those men laid down their lives for what they considered right. Are we not convinced that our cause is right? If we did not have this conviction at the beginning of the war we would not have taken up arms. Then we were all prepared to give our lives for our cause, but now that the hour of death has arrived we recoil. I cannot express myself differently.

Our national existence is spoken of, but the Lord will care for that. That is not a matter for us. Our cause was right, and will remain right, and might shall not triumph over right. For that reason I wish to persevere in the

struggle. I wish to see that right triumphs, even though that triumph is realised only after my death.

It is said that we shall never get such an opportunity again for negotiating. General de Wet has touched upon this matter, and I agree with him, and others, that we shall always be able to negotiate again. This is proved by what has already taken place, and I may further point out that there was a time when General Botha wished to see Lord Roberts, and when the latter replied that it was not necessary. And now the British are negotiating with us; in fact, they opened up these negotiations.

I am open to conviction, but if I had to vote how I should be able to vote only for the continuance of the war. Facts are stated, but none of the difficulties mentioned are to my mind insurmountable. The difficulty about the women and families we can surmount. Similarly the difficulty about food, horses, ammunition, &c. But there is one matter that troubles me, and that is the spirit that seems to be animating our people. From the speeches it appears that there is a large portion of our people who will go over to the enemy, and surrender; and when such a spirit animates the burghers it is impossible to take them by the neck and say: Go and fight. What I want is that if the majority decide to continue the war, that decision must be taken with enthusiasm. The great danger, however, that I foresee is that such a decision will lack enthusiasm. I will even go so far as to say that some of our brothers in the Free State, although they declare that it is a matter of faith, and in spite of what General de Wet and others may say, are also animated by a spirit which will drive them to go over to the enemy, however good and brave they may be.

General de la Rey challenges anyone to come on a platform with him and to put the true condition of the country before the people and to induce them to reject this proposal of the enemy. That is so. The spirit of which I speak is infectious, and if burghers on Commando learn that the spirit of their fellow-burghers elsewhere is in favour of giving up the struggle, many will become disheartened. When once a spirit gets hold of a people it works marvels, and this fact we must take into consideration. I know it will be of no use to continue the war if everybody around me lays down his arms. It

would be ridiculous for me to go on. We must be very sensible in this matter, and have no disunion. You know repentance always comes too late.

I repeat, my conscience is Number 1 with me, and as long as that remains so I must vote against this proposal.

After Prayer the meeting was adjourned to the following day.

FRIDAY, MAY 30TH, 1902.

At nine o'clock the meeting resumed after a Prayer by the Rev. J. D. Kestell.

Acting State President S. W. BURGER said: Before we begin I consider it my duty to inform the Delegates and the members of both Governments, that President Steyn had to tender his resignation as President of the Orange Free State yesterday, on account of illness, and that he was forced to give the enemy his parole to enable him to obtain medical treatment. General de Wet has been appointed in his place as Acting State President, and, on behalf of the members of my Government, on behalf of you all, and on behalf of myself, I wish to assure him of our deep sympathy, and to express our heartfelt regret at the loss of a man who has hitherto been the support and the rock of our good cause. His retirement is a great loss to us all.

Chief Commandant de Wet thanked the Acting State President of the South African Republic for his sympathetic references, and assured the meeting that as far as his poor powers enabled him he would do everything in his power for the Africanders.

Mr. J. NAUDÉ (Detached Commando under General Kemp) desired some information about the rebels, and an explanation of the document in which the British set forth how they would treat the rebels, if their peace proposals were accepted.

General Smuts furnished the desired information.

Mr. NAUDÉ further asked whether it rested with the Delegates to decide to surrender the independence, or whether they could only carry out their instructions.

General BOTHA replied, that from the documents before the meeting it was very clear in the opinion of the Governments, as expressed to Lord Kitchener and to Lord Milner at their first meeting, that only the people or their special Delegates had the power to decide on the independence. They had gone to the people, and the people were now represented by the Delegates here in this meeting.

Mr. NAUDÉ said: I thus understand that, when the members of the Governments left Pretoria to have the special Delegates elected they knew that the persons elected would have to decide whether the independence would have to be given up or not. I find myself now in a difficulty, and I must say that some Delegates have (by an oversight, perhaps) been misled. I have been chosen with a definite instruction, and with all respect for the explanation of our legal advisers, who say that we can speak and act here according to circumstances, I must say that I have come here with a definite instruction from my burghers to instruct the Governments not to sacrifice the independence. Further, the burghers gave the Government the right to negotiate, but then it was to be stipulated in the negotiations that they could retain their arms, that the rights of the Dutch language should be guaranteed, which rights are of such great significance to the people, and a means by which they could again become a people. But in the terms offered these questions are entirely ignored. I also notice that provision is made for those burghers who have property, but very little provision is made for the poor man. And the burghers whom I represent are not rich. They are not landowners. Three million pounds are indeed offered, but how much is that among so many? Nor is it stipulated that the Government notes which have been issued must be paid, so that the poor will get very little. I cannot therefore vote for the acceptance of the proposals before us.

As regards our prospects, I wish to bring to your recollection the address which the Commandant General delivered to the burghers at the Warmbaths towards the end of 1900. The situation was very gloomy then. He said: "We have nothing more to lose and everything to gain. Let us thus go on." No

ground for perseverance were then given or asked. And to say now that we are not going a step further without grounds and facts before us is in conflict with what we have hitherto done. We have seen how in the past relief was always at hand. When Pretoria fell the outlook was darker than now, but there was then a spirit which animated the people. There was faith and a trust that we must persevere. And there is no one now who has been put to shame because he maintained the struggle. I can state no definite grounds upon which we can build, but when I consider the past, I can say to my burghers that we can still continue the struggle, and we will do that too. There is nothing more for us to lose, whereas we have the opportunity of persevering with our arms in our hands till better days dawn.

General DE LA REY: I must remark that I never misled anyone at any meeting. Every document that was handed to me by the Government I caused to be read out at every meeting, and on that the people had to decide. The last speaker asks whether the responsibility rests on him to-day to decide on the question of independence. My answer is: "Yes, and not only on him, but on every one of you." The responsibility rests upon you generally. You do not represent a certain village or district, but the whole country, and it is the duty of everyone to decide according to the general condition of circumstances all over the country.

Mr. NAUDÉ: I am not indifferent in this matter, and I do not wish to shirk my responsibility; on the contrary, I will gladly bear it. But I am not here in the same position as a member of the Volksraad, who is entrusted to deal with all matters. I have a definite commission to submit the views of my burghers, and do not feel myself justified to take upon myself the responsibility of deciding upon the surrender of our independence.

General HERTZOG: Although I am not a delegate, I wish to state which course I would pursue if I were one. The Delegate is here for the people, and what he should ask himself is: Suppose that that portion of the people which has delegated me was fully acquainted with the situation in both Republics, how would that portion decide? That appears to me to be the point upon which the Delegates must decide.

As regards the great question before us, I wish to be fair and view it as clearly as possible from both sides. The one party says: "Stop the war," and

they continually ask on what grounds can the struggle be continued? But I think it is for you, who say: "Stop the war," to state your grounds. Those who wish to go on say: "We are at war; show us why we are to stop." It is also asked what prospects have we if we go on. This would have been a very good question when we commenced the war. It is argued: We have grown weaker. On that I ask: "Has the enemy not grown weaker too?" That is clearly the case, especially financially. England has already spent over 200 million pounds, and she can spend another 100 million. Yes, if the people wish it. But how long will the people wish it? Have we not the right to assume that England is already in difficulties financially? No one who is acquainted with English history can do otherwise than feel the significance of an imposition of a tax on wheat. That is not done unless matters are serious. In 1831 there was a revolution over this tax. It presses very severely on the people, and the people are beginning to feel that they are incurring debt for which they will have to suffer later.

With reference to the Deputation it is said: "They have been away two years now, and have effected nothing yet; how can we still hope that they will be able to effect something for our good?" But I say just because they have already been two years in Europe, we are nearer the time when a great war must break out. It is a known fact that the nations are arming themselves more and more and building ships of war, which is all done in preparation for the day when war will break out in Europe. A year ago the Deputation sent us a telegram which amounted to this: "Keep on." Why will the enemy not allow us to hear from our Deputation? It would have taken the members of the Deputation only a fortnight to come out and be with us. It is said that it would constitute an irregular military procedure. But is this meeting not also an irregular military procedure? I am thus forced to the conclusion that there is something behind this refusal. We know who the three members of the Deputation are. Mr. Fischer is a man who fought against the war up to the last. He even went to the South African Republic for that object. So is Mr. Wessels. They are both men in whom you can place your full confidence; and have all their interests, and large interests, in this country. Mr. Wolmarans I do not know personally, but it is generally known that he is a man upon whom you can depend. I am convinced of it, that these men will give the fullest attention to our interests. If they saw that we were being ruined by holding out, they would inform us to that effect.

But they let us continue. What their reasons are for doing so I do not know, but I depend upon them.

I am open to conviction, and if I can be convinced that our struggle is hopeless, I shall side with those who wish to give it up. There is another aspect to the question; but let me first say that it grieves me that on every public meeting the question of religion is touched upon. It is continually said that this or that is God's finger. Now, although I also have my belief, I say that neither you nor I know in the least what is the finger of God! God has given each one of us reason and a conscience, and if these lead us we need not follow anything else.

I must further say that we are undeniably in a pitiful condition. Food is scarce. We are exhausted, but still we all live. Almost all our horses have been taken, so that what we require we have to take from the enemy. Thousands of our people are prisoners-of-war. We have some thousands of our own people, who are in arms against us. Our women and children have been cooped up for almost two years in the Concentration Camps, where they die by thousands. Not only do they die, but they are exposed to destructive moral influences. The Kaffirs are armed against us, and only recently 56 burghers were murdered by Kaffirs. Truly, our prospects are not bright. In how far all this must weigh with the Delegates, I leave to you. As far as I am concerned, I must confess that all these things have made a tremendous impression on me. No one with a heart can feel differently. I shall always respect Commandant General Botha, because he has proved to have a heart that feels all these matters, and because he has had the courage to lay before his people and before us with great honesty precisely how matters stand.

We are here under exceptional circumstances. Awful wars have already been fought, but I do not believe that a war has ever been waged in which the people have proportionally suffered so much and sacrificed so much as our people have done in this war. In the American War of Independence the people did not suffer a third of what we have suffered. But all this has not yet turned the scales as far as I am concerned. We consider all these matters, but we must consider particularly what awaits us if we give up our country. What will our future be? Will there then be such satisfaction in the Orange

Free State and in the South African Republic that we shall be able to say: We will await the day of deliverance from God's hand? If I knew that there would be a rising in a few years, I would rather fight on till I am dead. If I conclude peace I want a lasting peace.

There is a matter that weighs more heavily with me than all this, and that is the holding of this meeting. I regret from the bottom of my heart that it ever took place. This meeting gives us a death blow. I also experienced hard times, when my burghers surrendered in hundreds, but I always found comfort in the thought that I was not fighting alone, and I knew that when I had a hard time of it, my comrades in the struggle elsewhere had an easy time. However, I do not wish to blame anyone for the holding of this meeting, because I am convinced that everything was done with the best intentions. Now, what has been the result of this meeting? The Commandant General has had to express his views, and expose the situation, and this has had the effect of disheartening some of our burghers. If we now decide to continue, hundreds and thousands will go over to the enemy who would otherwise have remained with us. I would have suggested that the discouraged ones leave us, but now those who were not discouraged have also become so.

Although all these facts have made me dubious, I am not yet convinced that we should stop the war. If I were a delegate, I should say: "Go on," because I think that if we are in doubt we should lay down this as an axiom: "Proceed on the road we are on." In the proposal before us we get nothing at all of what we have the right to lay claim to.

General L. J. MEYER (Member of the S.A.R. Government) said: According to General Hertzog, the persons who went to the various commandos to have delegates elected explained the situation of the country to the people. But that was not done. We said to the burghers: "You must elect someone whom you can trust as a delegate to the meeting at Vereeniging. To him the situation of the country as a whole will be laid bare, and then he must act according to circumstances."

Now I want to express my views also. The question of independence is so dear to every Afrikaner that this word can hardly be spoken. Our condition, however, has now become such that we must express our

opinions on this matter. I am well acquainted with the condition of the commandos north of the Eastern Railway to the other side of the Sabi River, and I can assure you that every commando finds it very difficult to obtain food. All officers complain that clothing, horses, and food are scarce. All burghers long for peace, if they can retain their flag and their Mauser, but after the accounts which have been given us here, every responsible person must feel that a great portion, if not the half, of the South African Republic is not able to continue the war. Now if half of the South African Republic must be abandoned, the burghers must move from there to the other districts, and it is clear that those districts which still have food have only barely sufficient for their own commandos. What will happen if the burghers from the other parts of the Transvaal resort to those districts also?

Our burghers have done what almost no other nation has ever done. Our bitterest enemies acknowledge this. Then we still have to contend with the large hordes of Kaffirs who go about to murder and plunder. The people expect from us that we will save what can still be saved. Everyone takes the matter up seriously, and it is so serious that if we pass an ill-considered resolution we shall exterminate the Africander people. It has rightly been remarked that everything is dark. If I was sure what to do I would be very glad. The Lord, however, has given us reason, and in my opinion we have now got to such a stage that we must do what we can to keep the head of the Africander people above water, so that later on they can develop again.

The position of our families is a very tender point with me. They are dying out in the Concentration Camps, and must submit to much misery. We have already sacrificed much blood, and if we had hopes and ground for a favourable result we could sacrifice still more. My blood, which is no better than the blood of so many others that has been shed, can also be shed, but my conscience tells me that we may not allow one more man to be shot, if there is no hope for us.

If we were to decide now to go on, we should never get the opportunity to negotiate again. The end would be that we should all be dead or captured or shall have surrendered to the enemy. It is asked what will future generations say, if they read that we decided to make peace and to give up our independence? My reply is: We do not fight for name and honour, but

for our people. What will future generations say, if we do not save what can still be saved? They will say that we fought bravely, but without wisdom.

With reference to the terms offered, I must say that I expected more. The three millions are nothing, but yet there is a promise that our people will later have a vote again, and be allowed to govern themselves, and further—God will help us. Some are of opinion that we must show our manliness by continuing the struggle. It may, however, be more manly to conclude peace. In the Volksraad I was in favour of granting the franchise, after a five years' residence, but that proposal was rejected by twenty-one votes to seven, and three of those seven persons are now here with us. We did not vote as we did because we were afraid, but because we did not wish to drench the soil with blood, and we knew that England sought cause for war. Shall we now continue to shed blood?

Before Lord Roberts entered Pretoria the Government considered whether the time had not arrived to put an end to the war. That was, of course, a secret. But the Orange Free State would not agree, and I am convinced that we would have obtained better terms than now. The people were then not so ruined and exterminated. The Government in its wisdom decided to continue the war. A year later the two Governments met each other again at Waterval, in the Standerton district. It was again resolved to go on with the war. Later we again suggested that we should make peace proposals to the British. President Steyn agreed, but no agreement had yet been arrived at with reference to the time and conditions, and the enemy operated against us with such great forces that we could not make any progress in the matter. Now, as far as human judgment goes, there is no chance for us to continue the war. There is no hope of intervention, for the big Powers do not make war so easily. We have now come to such a pass that we must save the seedling, otherwise I fear it is all over with the Africander people. It is argued that we must go on because so many have already given their lives for their country, but everyone must admit that unless a miracle is worked, we shall not get the enemy out of our country by force of arms. We have taught the British how to wage war. Our own people are with them, and show them how to trek in the night, and where the footpaths are.

Much reference is made to the American War of Independence, but this war cannot be compared to that one. The enemy had only 40,000 troops in America, whereas they have 240,000 here. And then Americans a large country, and had harbours through which to import, and had in addition the assistance of France. I am convinced that our struggle cannot be maintained.

Commandant VAN NIEKERK (Kroonstad): With reference to the Cape Colonists, I wish to say that we expected much help from them, and they did assist us largely. Must we now jump out of the door and leave them in the lurch? Many of them have already been banished, some shot, and others hanged. It is sad to think of laying down our arms. The promise that landed proprietors can retain their arms is more of a comfort than a reality. If I consider everything I must say—let us rather offer passive resistance, but concede nothing.

General BOTHA was the next speaker. He first explained his attitude at the various meetings of the people, and said that he had caused them to elect Delegates with power to act. He continued: When the war began, we had about 60,000 burghers, and we further relied upon help from the Cape Colony. We expected that that Colony would not allow her railways to be used to convey troops to fight against us. I also hoped that the Powers would interfere, but they were silent spectators of how Britain waged war against us, and how she introduced all kinds of new methods into that warfare—methods contrary to international law. Further, we had provisions in abundance, and commandos could be supported for weeks in the same place. However, matters have now so changed that a man must consider himself fortunate if his family is away. It is argued that to save the families still with us, the husbands of such families can surrender with their families. The husbands, however, of most are unfortunately already in the hands of the enemy. Whom can I send to care for those whose natural protectors are already prisoners of war? These families are thus thrown upon us, and we must care for them. As long as we had plenty of food, the enemy gladly received our families into their Camps, but now that they are in want, and they (the enemy) can do something for them, their kindness has come to an end. What shall we now do with these families? That is the great difficulty.

It is stated that we do not rely on help through the medium of the Deputation in Europe, but when the enemy refuses to let the Members of the Deputation come out to see us, it is at once said that that is a proof that the Deputation are doing something to our advantage. Reliance is thus placed upon the Deputation, because they can only tell us that there is hope of intervention. The Deputation have already been in Europe for more than two years, and our State President is there too, and up to this day the Deputation have not yet succeeded in getting itself acknowledged by any other Power than the Netherlands Government. They were accredited by us to all the Powers, but it appears that they did not consider it advisable to hand in their credentials to any Power except to Holland, naturally because they were given to understand that they would not be acknowledged. Now, if a Power refuses to acknowledge our Deputation, what help can we as a nation expect from such a Power? There is another point. Before President Kruger left us we received letters from the Deputation, from which it clearly appeared that they could do nothing for us, and in which they informed us that they would return and land in Delagoa Bay. The Government, however, in consultation with President Steyn, who was with us then, decided to ask the Deputation not to return, even though they could effect nothing, because, if they came back, it would be a death blow to our people, who were always still expecting something good from the efforts of the Deputation. I say these things, so that the people may not be misled. In my opinion, we have nothing else than the sympathy of the European nations, and than that we shall get nothing else, but that will not save us. A year ago we were in communication with the Deputation, and all they could then tell us was that we should persevere, on the ground of all the personal and material sacrifices which had already been made, until all means of resistance were exhausted. Well, we have done that, and it is very plain to me that there is no hope of any help from the Deputation. But I wish to go further. We know that there is one friendly Power, and that it wishes to help us as much as possible. That Power is the Netherlands Government. What did the Netherlands Minister write to the British Government on the 1st of January, 1902? He wrote as follows:—

"The Government of her Majesty the Queen is of opinion that the exceptional circumstances, in which one of the belligerent parties in South Africa is situated, and which prevents it from putting itself into

communication with the other party by direct means, constitutes one of the causes of the prolongation of the war, which continuously, without interruption or termination, harasses that country, and is the cause of so much misery."

Thus wrote the Power in Europe who is best disposed towards us, a few months ago; and in that same letter they suggested that our Deputation should come out here with the object of meeting the leaders of the people, in order to bring about peace. It was certainly never the intention that peace would be concluded on the basis of the independence of the Republics. Can we thus cherish any hopes of assistance from European nations? I am convinced that we can arrive at a decision in this matter without worrying ourselves for a moment with the idea that we shall obtain help elsewhere. A war in Europe is, of course, possible, but the war we are engaged in has opened the eyes of all the Powers, so that every European Government now avoids war as much as possible. I will even go so far as to say that it is in the interest of more than one Power that this war continues.

A great difficulty is also the unfaithfulness of our own burghers, and much injury is done us by those who lay down their arms. A year ago we took a resolution at Waterval, in the Standerton district, to continue the war vigorously. We kept it up for a year, and fought and sacrificed. What have we gained by it? I say we are now so broken up and weakened that if matters go on like this a little longer we shall no more be able to assert ourselves as a party. It is maintained that this proposal goes further than the proposal made to us at Middelburg in March, 1901, but I do not think that that argument is correct, because we did not negotiate on that proposal. We simply replied that we could not negotiate on the basis proposed. If we had negotiated then we might perhaps have obtained better terms than now. But even granted that the present proposals are more favourable, what have we not sacrificed for such improvement? Twenty thousand women and children have been laid in their graves in the Concentration Camps. Almost the half of our burghers are prisoners of war; we have had to bury hundreds of our comrades. When I review the past year, I must say that we have lost ground tremendously. We can only gauge the future by the past. We now stand face to face with the fact that we shall have to abandon a large tract of our country, and I do not see any chance of retaining our independence in that

way. We commenced with 60,000 men, and now we have only 15,000 in the field. Our Information-bureau in Pretoria informs me that the enemy has already 31,400 of our burghers as prisoners of war, and that 600 have already died in the prisoner-of-war camps. Three thousand eight hundred of our burghers have fallen during the war. Is it not a serious matter that so many fell in the course of two and a half years? What must not the sufferings of our women and children in the Concentration Camps have been at the death of so many of their number?

The question is asked, and rightly too: What about the Cape Colonists who have thrown in their lot with us? I have always said that if we lose our independence it will be our first and foremost duty to care for them because they have got into trouble through us. I was always prepared to say: "Banish me, but give terms to the Cape Colonists." And now there is a chance for us to-day to save those comrades. Would it therefore be advisable to miss that chance, and simply to say that we must persevere in the struggle? I say it is not advisable. The other members of our Commission and I did our best at Pretoria for those Colonists. Let us now take what we can get. If we decide to continue, it would only be honest to these Colonists to say that they must stop fighting and accept these terms. A few thousand men become free with the temporary loss of the franchise. If we can get no better terms for them they cannot blame us, nor will they do so if the facts are put before them.

I am referred to what I said about a year ago at the Warmbaths, but let me remind you that, when I spoke there, the commando of that division was 2,000 men strong. What is the situation there to-day? The commando consists of only 480 men. I said then that the war must continue till famine stared us in the face. Now I do not stand here to dishearten anyone, but I must acquaint you fully with all circumstances, and I tell you that there are districts in our country where famine truly and actually stares the commandos in the face, and many of the Delegates can testify to this. Our great strength always lay in this, that we could keep a commando, however small, in each district, which compelled the enemy to divide its enormous armies over the entire country. But if we must give up portions of our country we must trek to other parts; in other words, we must concentrate, and therein lies great danger for us, because that will enable the enemy to concentrate their large forces against us, and our fall will speedily follow.

Some say we can go to the Cape Colony. I also know something about that. Chief Commandant de Wet could not get into the Cape Colony in good times with good horses and with a large force. How shall we get there, now that winter is approaching and our horses are so poor that we can only ride at a walk, and the distance for most of us is so much further? I tell you we shall not get there. On the way there, most of the commandos will dwindle away.

The question is asked: "What will the future bring us if we surrender?" Well, that is a most vital question, and for every Africander who has done his duty, surrender is a terribly bitter cup. But we must take the situation as it is, and, however bitter, we must choose the better of two bad roads. It is maintained that we must persevere, but unless we can do so for ten or twelve years, I do not see any grounds for hoping that we shall be able to retain our independence, and I do not see any chance whatever of keeping up the struggle so long. What chance have we of persevering so long? If in two years' time we have been reduced from 60,000 men to a fourth of that number, to what number shall we have sunk in another two years? A hopeless perseverance may also later bring us to a forced surrender, which will be very fatal to us. Let us use our reason, and not stand in relation to each other as two parties. Let us try to find a common way. I shall remain in the field as long as fighting goes on. Personally, I have no objection to persevere.

It is further asked: What will become of our widows and orphans if we make peace? But I in turn ask: Who will care for them if we are later forced to surrender? Even though we conclude peace now we remain in existence as a people, though under the British flag, and if we in surrendering stand by each other we can, after the surrender, also stand by each other, and devise means to assist the widows and orphans. If, on the other hand, we entirely cease to exist, we can do nothing more. We cannot, for instance, even send people to Europe to seek financial help to build up the fortunes of our people again.

There are three ways open to us, and I shall submit to the decision of the majority, but I shall feel it keenly if we are not unanimous in our decision. I must say I can see no salvation for us in the continuance of the war, but

only the extermination of our people. The other two ways are: Surrender *with*, and surrender *without* conditions.

I always held the opinion that when the day dawned that we could not maintain the struggle any longer, it would be best to stop without making any terms, and to say to the enemy: "Here we are. We cannot go on any longer. Banish the leaders, deal with the people as you wish; we refuse to submit." But the question is whether we can to-day adopt that course and act accordingly. I think we cannot. Our people have been totally ruined, and will therefore be entirely exposed to the mercy of the enemy. They must be financially assisted, and if the enemy do so they can stipulate what they like and demand an oath to their taste from every one they help. The enemy will then also be able to carry out all their proclamations, and so destroy our national existence. They can banish all the leaders, and further, they can refuse to let the prisoners of war return until such time as it suits them. In these terms the return of all prisoners of war is at least stipulated, and all the enemy's proclamations against our persons and property nullified. I am thus of opinion that it will be better for us to accept these terms than to surrender unconditionally. Our cup is bitter, but do not let us make it more bitter still. If we are convinced that our cause is hopeless, it is a question whether we have the right to allow one more burgher to be shot. Our object must be to act in the interest of our people.

General HERTZOG remarked that in his opinion the extract from the letter from the Netherlands Government to Lord Lansdowne read by General Botha had not been well translated. Instead of "... the war which raged in the country *without object or termination*," the translation should be: "... the war, which *without interruption or termination* rages in that country," and that this made a difference.

The meeting was adjourned till two o'clock that afternoon.

At two o'clock the meeting resumed.

General MULLER (Boksburg) said: The burghers suspect something from Lord Kitchener's refusal to allow the Deputation to come out, and have instructed me to try and come into communication with the Deputation.

Some of my burghers commissioned me to stand for our independence, but others gave me a free hand, to act according to circumstances, and, if there was no other course, to accept the best possible terms. I have always pointed my burghers to the Lord, and told them that as we were at present situated it was impossible for us to succeed in the struggle in our own strength and by means of our own arms, but that we should trust in God, and that He would help us in His own way and in His own fashion. If I now return to my burghers and inform them that I have not been in communication with the Deputation, and that the proposal before us has been accepted, there will be awful dissension—I cannot think of surrender. It will be a painful matter for me, if I must vote for making peace on these terms, but, taking into consideration what I have heard here about the situation in the other districts and from the Commandant General, it will be difficult for me to go and continue the fight alone, although I and my burghers are still prepared to go on. They also have a hard time of it, and all necessities are scarce, but provision is always forthcoming. If we cannot agree with reference to the terms before us, I can suggest only one course, and that is, that we all together make a compact with the Lord. Then we shall have something to stand on, which we can make clear to the people. We commenced the war with faith in the Lord. Where then shall we stand with regard to Him if our faith now forsakes us?

I wish to say, further, that the three million pounds, which the enemy offers, will go only to the burghers who have remained in the field, and to the prisoners of war. What will become of all the other thousands of poor in the country? I represent some of the poorest in the land. They have lost everything in the war, and no provision is made for them. With the instructions I have and according to the dictates of my conscience I do not know whether I can vote for this proposal.

Commandant DE KOCK (Vrede) pointed out that the 30 Free State Delegates represented 5,000 or 6,000 burghers, and the 30 Transvaal Delegates 10,000, and General Smuts' 3,000 burghers of the Cape Colony, and asked what the position would be if the 30 Free Staters, who represented a minority, decided to continue the war? Would those representing the majority have to submit?

The CHAIRMAN replied that although the Free State Delegates represented a smaller number of burghers, the Free State had an equal vote with the Transvaal in this matter.

General J. C. SMUTS spoke as follows: Hitherto I have not taken part in the discussion, although my views are not unknown to my Government. We have arrived at a dark stage in the development of the war, and our cause is all the darker and more painful to me because I, as a member of the Government of the South African Republic, was one of the persons who entered into the war with England. A man may, however, not shrink from the consequences of his acts, and on an occasion like this, we must restrain all private feelings, and decide only and exclusively with a view to the permanent interests of the Africander people. These are great moments for us, perhaps the last time when we meet as a free people, and a free Government. Let us thus rise to the magnitude of the opportunity and arrive at a decision for which the future Africander generation will bless and not curse us. The great danger before this meeting is, that it will come to a decision from a purely military point of view. Almost all the representatives here are officers who do not know fear, who have never been afraid, nor will ever become afraid of the overwhelming strength of the enemy, and who are prepared to give their last drop of blood for their country and their people. Now, if we view the matter merely from a military standpoint, if we consider it only as a military matter, then I must admit that we can still go on with the struggle. We are still an unvanquished military force. We have still 18,000 men in the field, veterans, with whom you can do almost any work. We can thus push our cause, from a military point of view, still further. But we are not here as an army, but as a people; we have not only a military question, but also a national matter to deal with. No one here represents his own commando. Everyone here represents the Africander people, and not only that portion which is still in the field, but also those who are already under the sod and those who will live after we have gone. We represent, not only ourselves, but also the thousands who are dead, and have made the last sacrifice for their people, the prisoners of war scattered all over the world, and the women and children who are dying out by thousands in the Concentration Camps of the enemy; we represent the blood and the tears of an entire nation.

They all call upon us, from the prisoner-of-war camps, from the Concentration Camps, from the grave, from the field, and from the womb of the future, to decide wisely and to avoid all measures which may lead to the decadence and extermination of the Africander people, and thus frustrate the objects for which they made all their sacrifices. Hitherto we have not continued the struggle aimlessly. We did not fight merely to be shot. We commenced the struggle, and continued it to this moment, because we wished to maintain our independence, and were prepared to sacrifice everything for it. But we may not sacrifice the Africander people for that independence. As soon as we are convinced that, humanly speaking, there is no reasonable chance to retain our independence as Republics, it clearly becomes our duty to stop the struggle in order that we may not perhaps sacrifice our people and our future for a mere idea, which cannot be realised. What reasonable chance is there still to retain our independence? We have now fought for almost three years without a break. Without deceiving ourselves we can say that we have exerted all our powers and employed every means to further our cause. We have given thousands of lives, we have sacrificed all our earthly goods; our cherished country is one continuous desert; more than 20,000 women and children have already died in the Concentration Camps of the enemy. Has all this brought us nearer to our independence? On the contrary, we are getting ever further from it, and the longer we continue, the greater will be the gap between us and the object for which we have fought. The manner in which the enemy has carried on this war and still carries it on has reduced us to a condition of exhaustion which will ultimately make the continuance of the war a physical impossibility. If no deliverance comes from elsewhere, we must certainly succumb. When a year ago I, on behalf of my Government, communicated our condition to His Honour President Kruger in Europe, he expressed the opinion that, with a view to the situation in the Cape Colony, and to the feelings of the European peoples, we should continue with the struggle till the last means of resistance was exhausted. With reference to foreign politics, I only wish to direct your attention to the indisputable facts. (The speaker here discussed fully the political developments in America and of the principal European Powers during the last two years, and then proceeded.) For us the foreign situation is and remains that we enjoy much sympathy, for which we are, of course, heartily thankful. That is all we get, nor shall we receive anything more for many years. Europe will sympathise

with us till the last Boer hero lies in his last resting-place, till the last Boer woman has gone to her grave with a broken heart, till our entire nation shall have been sacrificed on the altar of history and of humanity.

With reference to the situation in the Cape Colony, I have stated fully on a former occasion what that is. We have made mistakes, and the Cape Colony was perhaps not ripe for these events. In any case we cannot expect any general rising there. The 3,000 men who have joined us are heroes, whom we cannot sufficiently honour, for having sacrificed their all for us, but they will not regain our independence.

We have now for twelve months acted on the advice of President Kruger, and have tried both the means indicated by him, and in both cases we have become convinced that, if we still wish to fight, we have only ourselves to depend upon.

The facts laid before this meeting by the Delegates from both the Republics convince me that it will be a crime for us to continue this struggle without the assurance of help from elsewhere. Our country has already been ruined to its foundations, and by our continuance, without any reasonable prospect of success, we shall hopelessly ruin our people also.

Now the enemy approaches us with a proposal which, however unacceptable, is coupled with the promise of amnesty for the Colonial comrades who have joined us. I fear that the day will come when we shall no more be able to rescue the so-called rebels, and then they will have just grounds to reproach us that we have sacrificed their interests also for our already hopeless cause. And I am afraid that the rejection of the proposal of the British Government will cause us to lose much sympathy abroad and greatly weaken our position.

Comrades, we decided to stand to the bitter end. Let us now, like men, admit that that end has come for us, come in a more bitter shape than we ever thought. For each one of us death would have been a sweeter and a more welcome end than the step which we shall now have to take. But we bow to God's will. The future is dark, but we shall not relinquish courage and our hope and our faith in God. No one will ever convince me that the unparalleled sacrifices laid on the altar of Freedom by the Africander people

will be vain and futile. The war of freedom of South Africa has been fought, not only for the Boers, but for the entire people of South Africa. The result of that struggle we leave in God's hand. Perhaps it is His will to lead the people of South Africa through defeat and humiliation, yea, even through the valley of the shadow of death, to a better future and a brighter day.

Commandant A. J. BESTER (Bloemfontein) said: I have been delegated by a commando of 800 men, and although General de Wet clearly explained our position to them, these 800 men declared that they would not submit to England. My commando has been taking part in the war since the commencement, and we have sacrificed everything already that was dear to us, all for our national existence and independence. Eight months ago my commando was in very bad circumstances. We were badly supplied with horses and clothing, but now we are furnished with all we want, almost as well as when we commenced the war. Every burgher has at least two horses, and some have five, and they are all full of courage. Where they get the courage from is a riddle to me, because dark days have passed over them.

Arguments with reference to our circumstances are piled up, but I must point out that we did not commence with arguments. In 1880 the South African Republic dared to rise against the powerful England. The view then taken was that the Africander, who had settled here, and who had shed his blood for his country, had a just claim to this country, and by the London Convention the enemy had acknowledged that right, that claim. Now the enemy has broken that Convention, and we took up arms in the hope that right would triumph. The war was forced upon the South African Republic and her confederate, the Orange Free State, and why? For the sake of the franchise? No, but for the gold of Johannesburg. That is what England wished to have, just as formerly she wanted the diamond fields of Kimberley and scooped them in.

We commenced the war knowing that London alone had about 5,600,000 inhabitants, and we barely 200,000, but we relied on the justness of our cause, and on the firm conviction that a just cause could never be put down. The facts which have been summed up against the continuance of the war cannot be reasoned away, but neither can the fact be reasoned away that for

two years and eight months we had pitted against us the greatest Power, with unheard-of forces, with Kaffirs and with even our own people against us, and yet they cannot exterminate us. And how does the enemy fare? A force of 500 or even of 1,000 men dare not trek out, or 200 burghers make mincemeat of them. We have already performed such deeds that they cannot be otherwise described than as miracles. We must only be unanimous. I stand or fall with my freedom.

Mr. C. BIRKENSTOCK asked whether the proposal of the British could not be accepted under protest.

General J. C. SMUTS replied that the meeting could authorise the Governments to sign the proposal under certain conditions.

Commandant A. J. BESTER was of opinion that it was not necessary to discuss the matter further, and proposed that the discussion be closed.

His proposal received no seconder.

Commandant J. E. MENTZ (Heilbron) said: I represent the Vechtkop division of the Heilbron district. I believe there is nothing else for us to discuss than the questions: Shall we continue the war, or shall we accept the terms before us? In my opinion, unconditional surrender is out of the question, and I must say that after my experiences, and taking into consideration the general condition in which, according to the communications made to us here, we are in, I do not see a chance of going on further with the struggle. The conditions in Heilbron, Kroonstad, and parts of Vrede and Bloemfontein are most pitiable. Not five cattle have remained over in these districts for the families to slaughter. In my division, there are between 200 and 300 women and children, and the husbands of most of them are prisoners-of-war. Many are widows, whose husbands have sacrificed their lives, and now they are helpless. If the war must continue I shall have to leave my district; but will it be right and honest of me to leave the families there to the mercy of the enemy? There is, indeed, a chance of getting cattle through the block house lines of the enemy, but in about half a day the cattle are retaken from us. I can assure you that when I left my commando they had nothing to live on except a little mealies. Our horses are also poor, and we have no forage for them. Since March the enemy has

continually been surrounding us, and we have been very much harassed. We are beginning to be so hard pressed that we are obliged even by day to break through the cordon which the enemy draws round us. A week before I came here I had to fight my way twice through a cordon, and 40 of my burghers, whose horses were poor, were captured.

I was surprised to learn that our Deputation wished to return, because we were always hoping that they would be able to do something for us. I am afraid that if we do not accept these terms we shall crumble away bit by bit. I see no other prospect for us if we continue the struggle, and fear that the longer we continue the worse we shall fare.

General J. KEMP (Krugersdorp) spoke as follows: Although I have already expressed my opinion, I wish to do so again. This is a grave moment for every Africander, because if we take a wrong step, it can have fatal consequences for our people. As far as my division is concerned, I still see a chance of going on with the struggle, and the instruction of my burghers was: "Stand for the independence." In spite of the legal opinion given here, I must ask: Where shall I stand, if I vote for this proposal, and my burghers do not approve of it, since they gave me a definite instruction? The document before us is so vague and unintelligible, that it will enable the enemy to suppress us altogether. The three millions for payment of Government Notes and receipts will not cover a third of the amounts owing. I say that the enemy will make the payment of these three millions so troublesome that the poor will see very little or nothing of it. The Dutch language will be allowed where the parents of the children desire it, but what does that avail against the declaration of Lord Milner, that he wants only one language in South Africa? It is plain that it is intended to entirely suppress and Anglicise the whole Africanderdom. We have struggled so long for our independence, and although our situation is difficult and dark we may not give up the fight. Two years ago everything was just as dark. If we accept these terms, our people will go under entirely, while by continuing we may still be able to right matters. If we stand together we are invincible; if we accept these terms, then all our suffering and struggling and sacrifices will have been in vain. I must carry out my instruction and stand for our independence.

Acting State President S. W. BURGER said: I intended not to say a single word more on this question, because I have already expressed my opinion, but in these grave moments there are a few points I wish to put forward. There are in this meeting two parties, as it were, and that is to be regretted. We must stand together as one man, one in heart, one in opinion, and with only one object in view—the future salvation and welfare of our people.

I notice that most of those speakers who plead for the continuance of the war are still young men, and it is perhaps the first time that they have had to decide on such a weighty matter. I ask you: Can we under the existing circumstances prosecute the war? And to that I must reply that, according to my views, based on what I have seen, on what I have heard here, on what I have experienced myself, there is no reasonable possibility for us to prosecute the war with the expectation that the result will be favourable to us. We are referred to the war of 1880-1881, but that cannot be compared with the present struggle. I took part in it from beginning to end. We were then a small people, and we triumphed—yes, but not with our arms. There were other circumstances, which gave us the victory. President Brand, of our sister State, who remained neutral, assisted us, and Gladstone in England stood by us, and did us justice. There were then better men in England than now. It was not by the sword that we gained the victory.

It is argued that we have carried on the struggle for more than two years, and that we can still go on. But if we observe with what we commenced, and how we are situate now, it must be seen that we are going to certain ruin, as has already been explained. If I take into consideration the means we had and our numerical strength when we commenced, and our present condition, then I can cherish no hope of gaining the victory. Every man we lose makes the enemy stronger, and the troops against us have not been reduced, but increased, since Lord Roberts entered Pretoria, and the enemy is being taught by us, and by our people who fight for them, how to carry on war against us. I do not even wish to mention all the Kaffirs which the enemy have on their side and who help them. If you do not see facts it is impossible for me and others to open your eyes to them.

It is stated that we commenced the war with faith and trust in God, but is that quite correct? Let each one ask himself whether he had such faith and

trust only. Was there not also a spirit of self-confidence, of trust in our own arms, and our efficiency to handle those arms? Was there not also a contempt of our great enemy? There was also a spirit of war amongst the people without considering what war could bring us. Only victory and not defeat was thought of. No one may deny this. But the question is, what must we do now? I do not think much of the document that lies before us. What is offered us in it does not urge me to make peace. On me, as acting Head of the Transvaal, there rests a great responsibility, especially towards all those who with me have hitherto tried to do their duty to their country and people, and if I am convinced that by the continuance of the war we dig a grave for our people for ever and aye, can I then vote for the continuance of it? Am I not called upon to guard the interests of that people committed to my guidance by my reason? I say it is my holy duty to stop this struggle now that it has become hopeless, and not to allow one more man to be shot, and not to allow the innocent, helpless women and children to remain any longer in their misery in the plague-stricken Concentration Camps. We are now called upon to sacrifice our freedom, just as Abraham was called upon to sacrifice his son; and faith is to walk on the path on which we are led, however dark it may be.

If we decide to continue, two facts stare us in the face. The one is, that many burghers will be compelled to lay down their arms, and the other, that we shall have to abandon parts of the South African Republic, as well as of the Orange Free State. Is that progress? If parts of the country are abandoned by us, they, of course, fall entirely into the hands of the enemy, who will certainly make use of that circumstance.

It is asked whether we shall not later on get an opportunity again for negotiating if we desire to do so. I say: No. We must not lose sight of the position in which the enemy stands towards us, and their power. If we separate now without making peace, the enemy will never again acknowledge us as a party, and a later opportunity for negotiation will in my opinion be out of the question. This is probably our last meeting. The time for unconditional surrender is past, and in reply to the question, What will become of our people if we accept these terms? I say: "There remains a root, and that root will again sprout up as a child, and the time will arrive when we shall again have the right to speak in the government of our

country. Let us thus preserve the root, because, if that is eradicated, it is all over with us. Chop off a tree, and it will sprout again; but root it out, and it is no more. And surely our people have not deserved to be rooted out.

Other speakers have clearly pointed out what the continuance of the war will bring us. Those who are in favour of its prosecution speak only of hope. But on what do they build that hope? On our arms? No one says that. On intervention? No, every one declares he does not believe in that. Upon what, then, is the hope founded? Speaking of intervention, I wish to say that I do not believe or expect that any Power will help us. My experience is that the Powers make use of the difficulty in which England is situated in South Africa to settle all their outstanding questions with that country. They profit by this war, and will therefore not lift a finger for us.

There are men among you who will not hear of giving up the struggle. But they follow the dictates of their hearts, and not of their heads. However painful it is, I must say, with the facts before us, we must give up the fight.

I very much regret that, since the Orange Free State, our confederate, threw in her lot with us, the Transvaal should to-day exhibit the greater weakness, and is obliged to say that she cannot go on any more, while many of our Free State comrades still wish to maintain the struggle. But you must know that the enemy have latterly specially applied themselves to subjugate the Transvaal first, and for that purpose have concentrated all their forces upon us. However painful it is to me, my reason tells me that we cannot go on any further, but that it is better to bow to a foreign flag and to save our people, than to continue and to allow our people to be entirely exterminated."

Mr. L. J. JACOBSZ (Acting State Attorney of the South African Republic) said: I have not yet expressed an opinion, because I am not a fighting burgher. I have, indeed, suffered great privations and been in great danger, but I consider that as nothing compared to what others have suffered. I also maintained silence from fear that my views might make a wrong impression on others, and in that way prejudice our cause, while those who do the actual fighting know what they can still effect.

I have heard all the discussions, but I have heard nothing that has made me change the opinion which I have long held and which I expressed at Klerksdorp, viz., that we cannot continue the struggle any longer. My opinions have been voiced by our military leaders. We have heard the opinions of Generals de la Rey, Louis Botha, and J. C. Smuts, and also of some of the Free State Delegates, and I fail to see how it will be possible for us, if we should decide to continue and return to our burghers, not to convey to them the impression made on us by these opinions. And if these opinions become known, what will the result be? Dissatisfaction and paralysis will at once follow, with the result that the burghers will not be able to prosecute the struggle any further. Those opinions are based on facts, and will undoubtedly dissipate the courage which so many still had. We all know what the condition of our country is. The country cannot support the commandos any longer. This has been proved. And, further, what is the condition of our women and children? We have officially been informed that over 20,000 have already died, and there is another more important matter, viz., the immorality in the Concentration Camps, about which we hear from various sources. This is the worst cancer which can attack a people. Our female sex stands under the influence of the enemy, and is beginning to deviate from the morals of their and our forefathers, and that deviation touches the root of our national existence. No one can argue that away.

If we were more or less certain that by perseverance we should succeed in our object, then let us persevere and defy all privations and dangers. Many of us have hoped for and built on intervention, but personally I see no ground for such hope.

I have great sympathy for men like Commandant Bester, who do not even think of laying down their arms, but we stand face to face with facts, and we must not proceed with our head against the wall. It is argued that we must have faith, but faith must have grounds, and what grounds have we? We cannot compare our people to the Israelites of old. Israel had definite promises. General de Wet has attempted to adduce some grounds, but they were, in my opinion, not satisfactory or sufficient.

The idea of accepting terms from the enemy never occurred to our Government at first, and an unconditional surrender is what will be agreeable to our feelings, but what our reason dissuades us from. For the sake of our people, we must take what we can get in order to help them, even though the three millions is so trifling and the terms before us so disappointing. The Commission delegated by us did what they could, and all the members have our perfect confidence. Our people are longing for peace, and if they know that we did our best, they will be satisfied.

I want to add further that I am of the same opinion as Advocates Hertzog and Smuts with reference to the difficulty of some of the Delegates, that they have a definite instruction, and must vote accordingly.

Commandant J. J. ALBERTS (Standerton) spoke more or less in the strain of his former speech. He was in favour of terminating the war by sacrificing some territory, but if that was impossible, the war should in any case be concluded.

General DE WET was of opinion, with a view to the limited time within which the Meeting had to decide, that, if possible, proposals should be submitted to the Meeting.

General G. A. BRAND held the same view.

Field Cornet D. J. E. OPPERMAN (Pretoria) said: I have no definite instruction from my burghers, except that I must make the best of the situation when we have considered all the circumstances. It is well that in this important matter we have men of different opinions, which they express, because in that way we become well posted on all matters, and are thus enabled to arrive at a good decision.

Unconditional surrender we can put out of our minds, because, in my opinion, we have gone too far for that. It is as difficult for me to decide to continue the war as to accept these terms before us. Before I came here I was of opinion that we should continue the struggle because we have already experienced too many hardships and too much bitterness to have to give up our country to the enemy after all. My burghers will stand by me if I tell them that we must go on, but if they are informed of the condition of affairs over the entire country as we know them now, then I do not believe that they will follow me or any officer in maintaining the fight. My great difficulty is the condition of the families with us. Formerly, when we still had food in abundance, the enemy gladly took the families into their Concentration Camps, but now that they know that our supply of food is almost entirely exhausted, they refuse to receive any more families, in order to force us to surrender on account of their fatal condition. All provisions with which we supply them are looted by the enemy, who leave them

deprived of everything. My conscience will therefore not allow me to say that we must continue the war, because that will mean that the families will have to die of hunger. We men can make some arrangement to help ourselves, for we can move about from one place to another to look for food, and if it came to a push, we could take provisions from the enemy; but the women and children are helpless victims. According to the dictates of my conscience, therefore, I must vote for the acceptance of these terms before us in order to save our families, but I shall record my vote only under protest and with notification that I give it thus for the said reasons.

On the motion of Field Cornet B. J. VAN HEERDEN, seconded by Field Cornet B. J. ROOS, it was unanimously resolved to close the discussion, after which the Meeting was closed with Prayer till the following morning.

SATURDAY, MAY 31ST, 1902.

At 9.30 o'clock in the morning the Meeting was opened with Prayer.

The following two proposals were handed in:—

(1) By General NIEUWOUDT, seconded by General BRAND:—

"This Meeting of special Delegates from both the Republics having considered the proposal by His Britannic Majesty's Government for the restoration of peace, and considering—

"(a) The wishes and the instructions of the Burghers in the Field;

"(b) That they do not feel themselves justified to conclude a peace on the basis laid down by His Majesty's Government before having been placed in communication with the Delegates of the Republics at present in Europe, Resolves—

"That they cannot accept the proposal of His Majesty's Government, and instructs the Governments to communicate this Resolution to His Britannic Majesty's Government through their Representatives here."

(2) By General P. R. VILJOEN, seconded by General H. A. ALBERTS:—

"That this Meeting resolves to accept the Proposal of the British Government."

State Secretary F. W. REITZ now addressed the Meeting, and said: I consider it a duty to myself, as State Secretary and as burgher, to my nation, and to posterity, to say that if this Meeting decides to conclude the war and to accept the British terms, they will have to make provision for the signing thereof, because I shall affix my signature to no document by which our independence is relinquished. But I must also say that if this Meeting does not see its way clear to go on with the war, they ought not to accept any terms from the enemy, but should simply say: "Here we are, here are our people. We cannot continue the war any further; take us." I do not wish to hurt anybody's feelings. On the contrary, I have the greatest respect for the feelings of those brave men here who have fought so well and so faithfully for their country and people, but I consider that it would be wrong of us to make terms with England.

The CHAIRMAN remarked that the State Secretary was out of order.

General P. R. VILJOEN said: I have prayed that God may grant that I shall not trample on the precious blood that has been shed, on the blood of my own son, but after all that I have heard here I have become convinced that we must terminate this war. I have tabled a proposal from which the future generations can see that we are obliged and forced to sacrifice our independence. I only trust that we shall be unanimous in our resolution.

21 Mei 1902

Deze Vergadering van Volksvertegenwoordigers voor beide de Z. A. R. en O. V. S. gehouden te Vereeniging van 15 Mei tot 31 Mei 1902, heeft met leedwezen kennis genomen van het voorstel door L. M. Regering gedaan in verband met het beëindigen van de bestaande vijandelijkheden en van hare mededeeling dat dit voorstel onveranderd moet goed of afgekeurd worden. Zij betreurt het dat L. M. Regering absoluut geweigerd heeft met de regeringen der Republieken te onderhandelen op de basis onzer onafhankelijkheid of onze Regeringen toe te laten met onze deputatie in communicatie te komen. Ons volk toch heeft steeds gemeend dat niet alleen op grond van recht maar ook van de groote stoffelijke en persoonlijke opofferingen voor ~~ons~~ zijne onafhankelijkheid gebracht, het een gegronde aanspraak op die onafhankelijkheid heeft.

Deze vergadering heeft den toestand van ons land en volk ernstig overwogen en heeft vooral op de volgende feiten gelet:

1. Dat de Krijgpolitiek door de Britsche militaire autoriteiten gevolgd geleid heeft tot de algeheele verwoesting van het grondgebied der beide Republieken, met afbranding van plaatsen en dorpen, vernieling van alle middelen van bestaan en uitputting van alle hulpbronnen noodig voor het onderhoud onzer families, het bestaan onzer liegsmachten en het voortzetten van den oorlog. —
2. Dat het plaatsen onzer gevangen families in de concentratie kampen geleid heeft

heeft tot een ongehoorden toestand van lijden en ~~een~~ ziekte, zoodat in betrekkelijk korten tijd ongeveer 20.000 onzer dierbaren aldaar gestorven zijn, en het afgrijselijke vooruitzicht ontstaat is, dat bij voortetting van den oorlog ons gansche geslacht op die wijze zal kunnen uitsterven. —

3. Dat de Kafferstammen buiten en binnen der grenzen van het grondgebied der beide Republieken meest allen gewapend zijn en deel nemen in den strijd tegen ons en door het plegen van moorden en het aanrichten van allerhande gruweldaden een onbestaanbaren toestand in vele districten der beide Republieken versorgen, zooals nog onlangs, ~~sedert de beginselen van de onlusten~~ ^{gebeurt} is in het district Vrijheid, alwaar 56 burgers op gruwelijke wijze bij dezelfde gelegenheid vermoord en verminkt werden. —
4. Dat door proclamaties van den vijand, waaraan hij reeds begonnen is uitvoering te geven, de nog reehtende burgers bedreigd worden met het verlies van al hun loof en vast eigendom, en dus met totalen stoffelijken ondergang. —
5. Dat het door de omstandigheden van den Krijg voor ons reeds lang onmogelijk is geworden de vele duizenden krijpsgevangenen door onze krijgsmachten genomen aan te houden, en dat wij dus betrekkelijk weinig schade aan de Britsche legermachten kunnen aanbrengen, terwijl de burgers die gevangen worden ~~—~~ door de Britsche legermachten buitenslands gezonden worden, en dat na ~~de~~ ^{het} woeden van den oorlog voor bijna drie jaren er

2
er slechts een gering gedeelte overblijft van de
strijdmachten waarmee wij den oorlog zijn
begonnen. —

6. Dat dit strijdend overblijfsel, hetwelk maar
een klein minderheid van ons geheel volk
vormt, te rechten heeft met tegen een over-
weldigende overmacht des vijands, en boven-
dien in een feitelyken toestand van hongers-
nood en onttering van noodzakelyke levens-
behoeften verkeert, en dat niettegenstaande
het aanwenden onzer nimmer pogingen en
het opofferen van alles dat ons lief en dier-
baar was, wij niet redelyken wyze op een
eventueele overwinning kunnen uitzien.

Deze vergadering is dus van meening, dat er
geene redelyke grond is te verwachten dat door het
voortzetten van den oorlog het volk zijne onafhanke-
lykheid zal blijven behouden, en beschouwt dat
onder de omstandigheden het volk niet gerecht-
vaardigd is met den oorlog voort te gaan,
door zulke alleen kan strekken tot den maats-
schappelyk en stoffelyk ondergang, niet alleen
van ons, maar ook van ons nageslacht.

Beslissingen door bovenstaande omstan-
digheden en beweegredenen draagt deze
vergadering beiden Regeringen op het
voorstel van L. M. Regering aan te nemen,
en namens het Volk der beide Republieken
hetzelve te onderteekenen.

Deze vergadering van afgevaardigden
drukt haar vertrouwen uit, dat de bestanden
thans

4.
thans in 't leven geroepen door de aan-
name van 't voorstel van zmr. Regering
spoedig op die wijze moge verbeterd worden
dat ons volk daardoor zal geraken tot
't genieten van die voorrechten waarop het
op grond niet alleen van zijn verleden maar
ook van zijne opofferingen in dezen oorlog recht-
matig aanspraak meent te kunnen maken.

Deze vergadering heeft met gezamen-
ken kennis genomen van het besluit van zmr.
Regering om een groote ~~deek~~ mate van
amnestie toe te kennen aan die Britsche
onderdanen die de wapens aan onzen
kant hebben opgenomen, en aan wie wij
door ~~alle~~ banden van bloed en een
verloosden zijn, en drukt den wensch uit
dat het zmr. moge behagen deze amnestie
nog verder uit te breiden.

Voorgesteld door *H. P. J. Pretorius*
Gezondeerd door *Chris. Botha.*

*Facsimile of the original proposal by Commandant H. P. J. Pretorius,
seconded by General Chris. Botha, to accept the British Peace Proposals.*

General DE WET said: The time is too short to admit of further discussion on these proposals, and we must arrive at a decision. I propose that we appoint a committee, consisting of Advocates Smuts and Hertzog, to draft a proposal embodying the views of this Meeting. I do not say what the proposal must embrace. Let us then adjourn for an hour, and let the Delegates of the South African Republic and of the Orange Free State meet each other separately, in order to try to come to unanimity. We must arrive at a unanimous decision, because that will be of incalculable value to us for the future.

General BOTHA: I think we must adopt General de Wet's suggestion. We have fought and suffered together; let us now decide together. In this matter we can and must devise means to be unanimous.

General DE WET'S proposal was unanimously adopted by the Meeting, and the Orange Free State Delegates withdrew to the tent of General de Wet, while those of the South African Republic remained in the tent in which the meeting was held.

Fully an hour later all the Delegates met again, and the following resolution drafted by Generals HERTZOG and SMUTS was read:—

"This Meeting of Representatives of the people of both the South African Republic and the Orange Free State, held at Vereeniging from May 15 to 31, 1902, has with regret taken cognisance of the proposal made by His Majesty's Government relative to the termination of the existing hostilities, and of its communication that this proposal must be accepted or rejected without alteration. It deplores the fact that His Majesty's Government has absolutely refused to negotiate with the Governments of the Republics on the basis of their independence, or to permit their Governments to communicate with their Deputation. Our People have, indeed, always been of opinion that not only on the ground of Right, but also of the great material and personal sacrifices made for their independence, they had a well-founded claim to that Independence.

"This Meeting has seriously weighed the condition of their Country and People, and has specially noted the following facts:—

"1. That the Military policy followed by the British Military Authorities has led to the entire devastation of the territory of both the Republics with the burning of farms and villages, the destruction of all means of subsistence, and the exhaustion of all sources necessary for the support of our families, for the existence of our troops, and for the continuation of the war.

"2. That the placing of our captured families in the Concentration Camps has led to an unheard-of condition of suffering and disease, so that in a comparatively short time about 20,000 of our dear ones have perished in

those camps, and the horrible prospect has arisen that by the continuance of the war our entire race may in that way die out.

"3. That the Kaffir tribes within and without the boundaries of the territory of both Republics have almost all been armed, and have taken part in the struggle against us, and, by perpetrating murders and committing all kinds of atrocities, have brought about an impossible state of affairs in many districts of both the Republics, as has only been recently proved in the Vrijheid district, where on a single occasion 56 burghers were murdered and mutilated in an awful manner.

"4. That by the proclamations of the enemy to which they have already begun to give effect the burghers who are still fighting are menaced with the loss of all their movable and immovable property, and thus with entire material ruin.

"5. That through the circumstances of the war it has long ago become impossible for us to retain the many thousands of prisoners of war taken by our forces, and that we can thus do comparatively little damage to the British Forces while the burghers who are captured by the British are sent out of the country, and that after the war has been raging for almost three years there remains only an insignificant portion of the fighting force with which we commenced the war.

"6. That this struggling remnant, which constitutes only a small minority of our entire people, has to fight against overwhelming odds of the enemy, and is, moreover, practically in a state of famine and privation, wanting even the indispensable necessities of life, and that in spite of the application of our utmost endeavours and the sacrifice of all that was dear and precious to us, we cannot reasonably expect ultimate victory.

"This Meeting is therefore of opinion that there is no reasonable ground to expect that by carrying on the war the People will be able to retain their independence, and considers that, under the circumstances, the People are not justified in proceeding with the war, since such can only tend to the social and material ruin, not only of ourselves, but also of our posterity.

"Forced by the above-mentioned circumstances and motives, this Meeting instructs both Governments to accept the proposal of His Majesty's Government, and to sign the same on behalf of the People of both the Republics.

"This Meeting of Delegates expresses the belief that the conditions thus created by the acceptance of the proposal of His Majesty's Government may speedily be so ameliorated that our People will thereby attain the enjoyment of those privileges to which they consider they can justly lay claim, on the ground not only of their past history, but also of their sacrifices in this war.

"This Meeting has noted with satisfaction the decision of His Majesty's Government to grant a large measure of amnesty to those British subjects who took up arms on our side, and to whom we are bound by ties of blood and honour, and expresses the wish that it may please His Majesty to extend this amnesty still further."

This proposal was moved by Commandant H. P. J. PRETORIUS (Jacobsdal), and seconded by General Chris. BOTHA.

General NIEUWOUDT withdrew his proposal, which was, however, immediately adopted by General C. C. J. BADENHORST (Boshof), and seconded by Commander A. BESTER (Bloemfontein).

The Meeting then adjourned till two o'clock.

At two o'clock the Meeting was resumed.

The proposal of Commandant H. P. J. PRETORIUS, seconded by General Chris. BOTHA, was then put to the vote.

The voting was as follows:—

FOR.

H. A. Alberts.

A. J. Bester (Bethlehem).

L. P. H. Botha.
G. A. Brand.
H. J. Bruwer.
J. F. de Beer.
C. J. Brits.
H. J. Bosman.
Chris. Botha.
C. Birkenstock.
C. F. Beyers.
B. H. Breytenbach.
F. R. Cronje.
D. H. van Coller.
J. de Clercq.
J. G. Cilliers.
T. A. Dönges.
C. C. Froneman.
D. F. H. Flemming.
H. S. Grobler.
J. L. Grobler.
J. N. H. Grobler.
F. J. W. J. Hattingh.
J. A. M. Hertzog.
B. J. van Heerden.
J. N. Jacobs.
F. P. Jacobsz.
J. F. Jordaan.
J. J. Koen.
H. J. Kritzinger.
A. J. de Kock.
P. J. Liebenberg.
J. A. P. Van der Merwe.
F. E. Mentz.
C. H. Muller.
T. K. Nieuwoudt.
H. van Niekerk.
J. J. van Niekerk.
D. J. E. Opperman.

A. M. Prinsloo.
H. P. J. Pretorius.
A. Ross.
L. J. Rautenbach.
P. D. Roux.
F. J. Rheeder.
B. Roos.
D. J. Schoeman.
T. Stofberg.
S. P. du Toit.
P. L. Uijs.
W. J. Viljoen.
P. W. de Vos.
W. J. Wessels.
P. R. Viljoen.

AGAINST.

J. J. Alberts (S.A.R.).
J. Kemp (S.A.R.).
J. Naudé (S.A.R.).
A. J. Bester (Bloemfontein), (O.F.S.).
C. C. J. Badenhorst (O.F.S.).
C. A. van Niekerk (O.F.S.).

By 54 votes to 6 the proposal was adopted.

When this resolution had been passed there were not many tearless eyes in the tent.

Acting President S. W. BURGER then addressed the following words to the Meeting: We stand here at the graveside of the two Republics. Much remains for us to do, even though we cannot do what lies before us in the official positions which we have hitherto occupied. Let us not withdraw our hands from doing what is our duty. Let us pray God to guide us and to direct us how to keep our people together. We must also be inclined to forgive and to forget when we meet our brothers. We may not cast off that portion of our people who were unfaithful. With these words I wish

officially to bid farewell to you, our respected Commandant General, General de Wet, Members of both Executive Councils, and Delegates.

With this the last meeting of the two Republics terminated. It was closed with Prayer.

21. Mei 1902

Z. v. Z. Pretorius — Chris. Botha

Alphabetische lijst van afgevaardigden op
het congres te Vereeniging op 15 Mei 1902

Voor	Tegen	Voor	Tegen
1.1. H. A. Alberts		31. 1. J. J. Jordaan	
2. J. J. Alberts		32. J. Kemp	
1.3. A. J. Bester (Bethlehem)		33. 1. J. G. Koen	
4. A. J. Bester (Bloemfontein)		34. 1. H. J. Kritzinger	
1.5. L. P. H. Botha		35. 1. A. J. de Kock	
1.6. G. A. Brand		36. 1. P. J. Liebenberg	
1.7. H. J. Bruwer		37. 1. J. A. P. v. d. Merwe	
8. C. C. J. Badenhorst		38. 1. F. E. Mentz	
1.9. J. F. de Beer		39. 1. C. H. Muller	
1.10. C. J. Brits		40. J. Naudé	
1.11. H. J. Bosman		41. 1. J. K. Nieuwoudt	
1.12. Chris. Botha		42. C. A. v. Niekerk	
1.13. C. Birkenstock		43. 1. H. v. Niekerk	
1.14. C. F. Beyers		44. 1. J. J. v. Niekerk	
1.15. B. H. Breitenbach		45. 1. D. J. E. Opperman	
1.16. F. R. Bronje		46. 1. A. M. Grinsloo	
1.17. D. H. van Coller		47. 1. H. P. J. Pretorius	
1.18. J. de Clercq		48. 1. A. Roos	
1.19. J. G. Cilliers		49. 1. R. J. Rautenbach	
1.20. J. A. Dönges		50. 1. P. O. Roux	
1.21. C. C. Froneman		51. 1. F. J. Rheeder	
1.22. D. F. H. Glemming		52. 1. B. Roos	
1.23. H. S. Glemming		53. 1. D. J. Schaeffer	
1.24. J. L. Grabler		54. 1. J. Stoffberg	
1.25. J. N. H. Grabler		55. 1. L. P. du Toit	
1.26. F. J. W. J. Hattingh		56. 1. P. L. Thys	
1.27. J. A. M. Hertog		57. 1. W. J. Viljoen	
1.28. B. J. van Heerden		58. 1. P. W. de Vos	
1.29. J. N. Jacobs		59. 1. W. J. Wessels	
1.30. J. S. Jacobsz		60. D. J. Schaeffer	
		1. P. R. Viljoen	

54 voor, 6 tegen.

Facsimile of the document on which the voting on the proposal by
Commandant H. P. J. Pretorius, seconded by General Chris. Botha, was

recorded.

The Secretary, Mr. D. E. van Velden, was then instructed to request Lord Kitchener's representatives in the camp—namely, Captain P. J. Marker and Major Henderson—to come to the tent in which the meeting was held in order that the decision of the Meeting might be communicated to them.

They speedily arrived, and under a death-like silence General Botha informed them that the Meeting had accepted the peace proposals of the British Government.

Immediately afterwards the British Authorities made the necessary arrangements for the conveyance by rail to Pretoria of the members of both Republican Governments to sign the Treaty of Peace in accordance with the instruction of the Meeting.

That night, shortly before 11 o'clock, the said Governments duly arrived at Pretoria.

On arrival at the Railway Station they were conveyed in great haste to the residence of Mr. George Heys in Maré Street, which was occupied by Lord Kitchener, and served as the Army Headquarters in South Africa.

For a few moments the members of the two Republican Governments, who were accompanied by the two Secretaries, Rev. J. D. Kestell and Mr. D. E. van Velden, were left alone in the spacious dining-room, as they wished to read the resolution of the Delegates once more in order to satisfy themselves that it was correct.

When this had been done, Lord Kitchener and Lord Milner entered.

The two Representatives of the British Government sat at the head of the table next to each other at the south side of the apartment. On the left of Lord Milner sat Acting President S. W. Burger, State Secretary F. W. Reitz, Commandant General Louis Botha, General J. H. de la Rey, Mr. J. C. Krogh, and General L. J. Meyer. On Lord Kitchener's right sat Acting President C. R. de Wet, General C. H. Olivier, General J. B. M. Hertzog, and Acting Government Secretary Mr. W. J. C. Brebner.

The Peace Treaty had been typed in quadruple on parchment. One copy was intended for the King of England, one for Lord Kitchener, one to be preserved in the Archives in Pretoria, and one in the Archives in Bloemfontein.

There was perfect silence when Acting President S. W. Burger took up the pen.

It was five minutes past eleven on May 31, 1902.

Acting President Burger signed. After him the members of the Government of the South African Republic. Then Acting President de Wet and the Members of the Orange Free State Government. Lord Kitchener followed, and last of all Lord Milner signed.

Before signing State Secretary Reitz rose in his seat, pen in hand, and stated that he signed only in his official capacity, and not as F. W. Reitz.

President Steyn was not there. Physical prostration due to his serious illness prevented him from doing what he had always said he would never do, viz., put his hand on paper to sign away the Independence of his People.

The document was signed.

Everything was silent in the apartment where so much had taken place.

For a few moments everyone sat still.

As the members of the Governments of the now late Republics stood up, as men stupefied, to leave the apartment, Lord Kitchener rose, and, going up to each of them, offered his hand, saying, "We are good friends now."

They then left the apartment and proceeded to the adjoining house (the residence of Mr. Carl Rood), which had been placed at their disposal.

After the resolution of the meeting had been communicated to the British Representatives, the Delegates met again, when the following proposal by

Commandant Jacobsz, seconded by General Muller, was unanimously adopted:—

"This meeting of Delegates, considering the pressing necessity to collect means to provide for the wants of the suffering women and children, widows and orphans, and other necessitous persons who have been reduced to a state of indigency by the war,

"And considering the desirability of appointing a Head Committee, whose duty it shall be to take the necessary steps to make provision herein and to decide finally about the Administration and application of the means to be collected,

"Resolves to appoint Messrs. M. T. Steijn, S. W. Burger, L. Botha, C. R. de Wet, J. H. de la Rey, Rev. A. P. Kriel, and Rev. J. D. Kestell (Secretary), a Head Committee, to make all such further arrangements for carrying out the said objects as may appear desirable and practical to them, and especially to add new members to their number, to appoint Sub-Committees and an Executive Committee, which is authorised to draw up Statutes and amend the same whenever necessary."

It was further proposed by Commandant Jacobsz, seconded by General Muller, and carried by the meeting:—

"This meeting further resolves to delegate General C. R. de Wet, General Louis Botha, and General J. H. de la Rey, of the said Head Committee, to proceed to Europe to collect the said funds." [\[Back to Contents\]](#)

APPENDIX

THE MIDDELBURG PROPOSALS.

Pretoria, March 7, 1901.

YOUR HONOUR,

With reference to your conversation at Middelburg on February 28, I have the honour to inform you that, in the event of a general and complete cessation of hostilities, and the surrender of all rifles, ammunition, cannon, and other munitions of war in the hands of the burghers, or in Government *depôts* or elsewhere, His Majesty's Government is prepared to adopt the following measures:—

His Majesty's Government will at once grant an amnesty in the Transvaal and Orange River Colony for all *bona fide* acts of war committed during the recent hostilities. British Subjects belonging to Natal and Cape Colony, while they will not be compelled to return to those Colonies, will, if they do so, be liable to be dealt with by the laws of those Colonies specially passed to meet the circumstances arising out of the present war. As you are doubtless aware, the special law in the Cape Colony has greatly mitigated the ordinary penalties for High Treason in the present case.

All prisoners of war now in St. Helena, Ceylon, or elsewhere, being burghers or Colonists, will, on the completion of the surrender, be brought back to their country as quickly as arrangements can be made for their transport.

At the earliest practicable date military administration will cease, and will be replaced by civil administration in the form of Crown Colony Government. There will, therefore, be, in the first instance, in each of the new Colonies, a Governor and an Executive Council, composed of the principal officials, with a Legislative Council consisting of a certain number of official members to whom a nominated unofficial element will be added. But it is the desire of His Majesty's Government, as soon as circumstances permit, to introduce a representative element, and ultimately to concede to the new Colonies the privilege of self-government. Moreover, on the

cessation of hostilities, a High Court will be established in each of the new Colonies to administrate the laws of the land, and this Court will be independent of the Executive.

Church property, public trusts, and orphan funds will be respected. Both the English and Dutch languages will be used and taught in public schools when the parents of the children desire it, and allowed in Courts of Law.

As regards the debts of the late Republican Governments, His Majesty's Government cannot undertake any liability. It is, however, prepared, as an act of grace, to set aside a sum not exceeding one million pounds sterling to repay inhabitants of the Transvaal and Orange River Colony for goods requisitioned from them by the Republican Governments, or subsequent to annexation, by Commandants in the field being in a position to enforce such requisitions. But such claims will have to be established to the satisfaction of a Judge or Judicial Commission, appointed by the Government, to investigate and assess them, and, if exceeding in the aggregate one million pounds, they will be liable to reduction *pro rata*.

I also beg to inform your Honour that the new Government will take into immediate consideration the possibility of assisting by loan the occupants of farms, who will take the oath of allegiance, to repair any injuries sustained by destruction of buildings or loss of stock during the war, and that no special war tax will be imposed upon farms to defray the expense of the war.

When Burghers require the protection of firearms, such will be allowed to them by licence, and on due registration, provided they take the oath of allegiance. Licences will also be issued for sporting rifles, guns, &c., but military firearms will only be allowed for purposes of protection.

As regards the extension of the franchise to Kaffirs in the Transvaal and Orange River Colony, it is not the intention of His Majesty's Government to give such franchise before representative Government is granted to those Colonies, and if then given it will be so limited as to secure the just predominance of the white race. The legal position of coloured persons will, however, be similar to that which they hold in the Cape Colony.

In conclusion, I must inform your Honour that, if the terms now offered are not accepted after a reasonable delay for consideration, they must be regarded as cancelled.

I have, &c.,
KITCHENER, GENERAL,
*Commander-in-Chief, British Forces,
South Africa.*

To his Honour COMMANDANT-GENERAL LOUIS BOTHA. [\[Back to Contents\]](#)

Footnote 1: What the Republican Governments had repeatedly requested. [\[Back to Main Text\]](#)

Footnote 2: For the Middelburg Proposals, see p. [210](#). [\[Back to Main Text\]](#)

Footnote 3: See Appendix, p. [210](#). [\[Back to Main Text\]](#)

Footnote 4: Compare the first document, page [116](#), with what follows here. [\[Back to Main Text\]](#)

Footnote 5: See p. [98](#). [\[Back to Main Text\]](#)

Footnote 6: See p. [116](#). [\[Back to Main Text\]](#)

Footnote 7: See p. [133](#). [\[Back to Main Text\]](#)

Footnote 8: See p. [136](#). [\[Back to Main Text\]](#)

*** END OF THE PROJECT GUTENBERG EBOOK THE PEACE
NEGOTIATIONS BETWEEN THE GOVERNMENTS OF THE SOUTH
AFRICAN REPUBLIC AND THE ORANGE FREE STATE, AND THE
REPRESENTATIVES OF THE BRITISH GOVERNMENT, WHICH
TERMINATED IN THE PEACE CONCLUDED AT VEREENIGING ON
THE 31ST MAY, 1902 ***

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